Edinburg Consolidated Independent School District

STUDENT PARENT HANDBOOK

2026-2027

***This Handbook serves as only a guide and is subject to periodic updates based on the Texas Association of School Boards and/or Local ECISD Policy revisions.**

Edinburg CISD does not discriminate on the basis of race, color, national origin, sex, disability or age in its programs or activities and provides equal access to the Boy Scouts and other designated youth groups. The following person has been designated to handle inquiries regarding the nondiscrimination policies: Title IX issues: Mark S. Micallef, m.micallef@ecisd.us, Director of Personnel/Legal Issues, ADA/504 issues: Sofia Hinojosa, sofia.hinojosa@ecisd.us , Director of Student & Social Services, 411 N. 8thAvenue, Edinburg, TX 78539, (956) 289-2300.

Edinburg CISD no discrimina por motivos de raza, color, origen nacional, sexo, discapacidad o edad en sus programas o actividades y brinda igualdad de acceso a los Boy Scouts y otros grupos juveniles designados. La siguiente persona ha sido designada para manejar consultas sobre las políticas de no discriminación: Title IX issues: Mark S. Micallef, m.micallef@ecisd.us, Director of Personnel/Legal Issues, ADA/504 issues: Sofia Hinojosa, sofia.hinojosa@ecisd.us , Director of Student & Social Services, 411 N. 8th Avenue, Edinburg, TX 78539, (956) 289-2300.

PARENT CONSENT TO ACCOUNTABILITY

I understand and consent to the responsibilities outlined in the Edinburg CISD Student/ Parent Handbook and the Student Code of Conduct. I also understand and agree that my child shall be held accountable for the behavior and consequences outlined in the Student/Parent Handbook and the Student Code of Conduct at school and school-sponsored activities, including school-sponsored travel and any school-related misconduct, regardless of time or location. I understand that any student who violates the rules in the Student/Parent Handbook and the Student Code of Conduct shall be subject to disciplinary action. I am also aware that the use of tobacco products by any individual is prohibited on all District property.

Regarding student records, federal law requires that directory information on my child be released by the Edinburg CISD to anyone who requests it unless I object in writing to the release of any or all of this information. This written objection must be filed within ten school days of the time this handbook was given to the student. Directory information ordinarily includes the student's name, participation in officially recognized activities and sports, weight, and height of members of athletic teams, dates of attendance, awards received in school, enrollment status, and most recent previous school attended. In exercising my right to limit release of this information, I have marked through the items of directory information listed above that I wish the district to withhold about my child.

Student's Last Name Student's First Name (Please Print) ID #

Signature of Parent (Required by law) Date

ACKNOWLEDGMENT

My child and I have been offered the option to receive a paper copy of or to electronically access at https://www.ecisd.us the Edinburg CISD Student/ Parent Handbook and the Student Code of Conduct for the 2026-2027 school year.

I have chosen to:

☐ Receive/requested a paper copy provided by the home campus of the Student/Parent Handbook and the Student Code of Conduct Handbook.

☐ Accept responsibility for accessing the Student/Parent Handbook and the Student Code of Conduct Handbook by visiting the web address listed above.

We acknowledge that we have reviewed the Edinburg CISD Student/Parent Handbook and Student Code of Conduct Handbook for this school year, and that we are responsible for reading and understanding the rules and other information contained in the handbooks.

Student's Last Name (Print) Student's First Name (Print)

Parent's Last Name (Print) Parent's First Name (Printed)

School Grade Level Date

Parent Signature

Please sign this page, remove it, and return it to the student's school if you have not done the online registration. Thank you.

EDINBURG CONSOLIDATED INDEPENDENT SCHOOL DISTRICT

BOARD OF TRUSTEES
2026-2027

Xavier Salinas
President

Carmen Gonzalez
Vice-President

Letty Flores
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Victoria Martinez
Executive Director

Yesenia T. Molina
Executive Director

Dr. Anthony Garza
Executive Director

2026-2027 Elementary Campuses

Austin Elementary, 289-2331
Ma. De Lourdes Lopez, Principal

Avila Elementary, 289-2307
Brenda Govea, Principal

Betts Elementary, 289-2560
Nelda Gaytan, Principal

Brewster School, 289-2334
Ruth Torres, Principal

Cano-Gonzalez, **Elementary, 289-2380**
Marissa Sanchez, Principal

Canterbury Elementary, 289-2374
Denise De Leon, Principal

Cavazos Elementary, 289-2535
Daisy De Leon, Principal

Crawford Elementary, 289-2410
Dr. Catherine Salazar, Principal

De La Viña Elementary, 289-2366
Maria Estela Lopez, Principal

Eisenhower Elementary, 289-2540
Belinda M. Garcia, Principal

De Escandon Elementary, 289-2545
Zulema Garcia, Principal

Esparza Elementary, 289-2308
Arnoldo Pesina, Principal

Flores/Zapata Elementary, 289-2445
Araceli De Los Santos, Principal

Freddy Gonzalez Elementary, **289-2520**
Dr. Christian Trevino, Principal

Gorena Elementary, 289-2460
Oneida Colunga-Gaitan, Principal

Guerra Elementary, 289-2530
Diana Cervantes-Smith, Principal

Hargill Elementary, 289-2338
Araceli Tanguma, Principal

Jefferson Elementary, 289-2385
Ana H. Salinas, Principal

J.F. Kennedy Elementary, 289-2390
Erika Torres, Principal

L.B. Johnson Elementary, 289-2358,
Dr. Enrique de la Cruz, Principal

Robert E Lee Elementary, 289-2342
Sonia Olmeda, Principal

Lincoln Elementary, 289-2525
Yecenia Pulido, Principal

Magee Elementary, 289-2306
Armidia Rios, Principal

Monte Cristo Elementary, 289-2362
Maria Luisa Gonzalez, Principal

Ramirez Elementary, 289-2425
Priscilla Trigo, Principal

San Carlos Elementary, 289-2370
Rosalinda Ochoa, Principal

Travis Elementary, 289-2354
Eliana Flores, Principal

Treviño Elementary, 289-2550
Dr. Nora Smith, Principal

Truman Elementary, 289-2555
Gricelda Sanchez, Principal

Villarreal Elementary, 289-2377
Arminda Ramos, Principal

De Zavala Elementary, 289-2350
Iraida Rea, Principal

2026-2027 Secondary Campuses

Middle School

Francisco Barrientes Middle School, 289-2430
Homero Tijerina, Principal

Brewster School, 289-2334
Ruth Torres, Principal

Baldemar L. Garza Middle School, 289-2480
Dr. George Espinoza, Principal

Betty Harwell Middle School, 289-2440
Monica Perez, Principal

Elias Longoria Middle School, 289-2486
Dr. Jaime H. Serna, Principal

Memorial Middle School, 289-2470
Dr. Hugo Leal, Principal

South Middle School, 289-2415
Dr. Russen Vela, Principal

High School

Edinburg High School, 289-2400
L. Dominic Pena, Principal

Edinburg North High School, 289-2500
Fernando Delgado, Principal

Johnny G. Economedes High School, 289-2450
Evangelina Leon, Principal

Robert Vela High School, 289-2650
Michele Peña, Principal

UTRGV-ECISD Collegiate High School, 289-2680
Marisol Abrego, Principal

Edinburg Academy, 289-2598
Juvenile Detention Center (JDC), 289-2321
Arturo Gonzalez, Principal

MISSION STATEMENT

"Edinburg Consolidated Independent School District is committed to providing high quality programs that nurture the development of well-rounded, respectful, responsible, and service-oriented students."

VISION STATEMENT

"Edinburg CISD empowers students with creativity and innovation to change the world."

GOALS

- To achieve **Excellence,** ECISD will provide high quality multi-disciplinary education that will be measured by reviewing participation rates in programs and academic outcomes, semi-annually and annually.
- To achieve **Respect,** ECISD will ensure a positive and inclusive environment which embraces all students by providing services such as Pre-K3 - 4, after school enrichment, UIL, Fine Arts, sports and academic differentiation in all classes which will be measured by increased enrollment and participation annually.
- To achieve **Integrity,** ECISD will provide transparency and accountability with all stakeholders and provide access to all resources at the District level and each campus annually.
- To achieve **Responsibility,** ECISD will provide a safe learning environment to all stakeholders by providing trainings in professional development which will be monitored with student surveys at the beginning, middle and end of the year to ensure students' academic success.
- To achieve **Service,** ECISD will increase service by 10% annually through volunteering and participating in school and community events.
- To achieve **Honesty,** ECISD will provide an open organization for all stakeholders by increasing the communication methods at all of the District's campuses and departments annually.

Edinburg Consolidated Independent School District

Parent's Objection to the Release Of Student Information to Military Recruiters

Federal law requires that the district release to military recruiters, upon request, the name, address, and phone number of secondary school students enrolled in the district, unless the parent or eligible student directs the district not to release information to these types of requestors without prior written consent. [See **Objecting to the Release of Student Information to Military Recruiters** on page 3 for more information]

Parent: Please complete the following only if you do not want your child's information released to a military recruiter with your prior consent.

I, parent of _____ (student's name), request that the district **not** release my child's name, address, and telephone number to a military recruiter upon their request without my prior written consent.

Parent signature _____ **Date** _____

Parent's Objection to the Release of Student Information to Institutions of Higher Education

Federal law requires that the district release to institutions of higher education, upon request, the name, address, and phone number of secondary school students enrolled in the district, unless the parent or eligible student directs the district not to release information to these types of requestors without prior written consent. [See Objecting to the Release of Student Information to Institutions of Higher Education on page 3 for more information]

Parent: Please complete the following only if you do not want your child's information released to an institution of higher education with your prior consent.

I, parent of _____ (student's name), request that the district **not** release my child's name, address, and telephone number to an institution of higher education upon their request without my prior written consent.

Parent signature _____ **Date** _____

Edinburg Consolidated Independent School District Handbook

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Preface Parents and Students:

Welcome to the new school year!

Education is a team effort. Students, parents, teachers, and other staff members working together will make this a successful year.

The Edinburg Consolidated Independent School District Student Handbook is a general reference guide that is divided into two sections:

Section One: Parental Rights describes certain parental rights as specified in state or federal law.

Section Two: Other Important Information for Parents and Students is organized alphabetically by topic. Where applicable, the topics are further organized by grade level.

Note: Unless otherwise noted, the term "parent" refers to the parent, legal guardian, any person granted some other type of lawful control of a student, or any other person who has agreed to assume school-related responsibility for a student.

The Student Handbook is designed to align with law, board-adopted policy, and the Student Code of Conduct, a board-adopted document intended to promote school safety and an atmosphere for learning. The Student Handbook is not meant to be a complete statement of all policies, procedures, or rules in any given circumstance.

In case of conflicts between board policy (including the Student Code of Conduct) and any Student Handbook provision, the district will follow board policy and the Student Code of Conduct.

Therefore, parents and students should become familiar with the Edinburg Consolidated Independent School District Student Code of Conduct. To review the Code of Conduct, visit the district's website at https://www.ecisd.us. State law requires that the Code of Conduct be prominently displayed or made available for review at each campus.

The Student Handbook is updated annually; however, policy adoption and revisions may occur throughout the year. The district encourages parents to stay informed of proposed policy changes by attending board meetings and reviewing communications explaining changes in policy or other rules that affect Student Handbook provisions. The district reserves the right to modify the Student Handbook at any time. Notice of revisions will be provided as is reasonably practical.

Although the Student Handbook may refer to rights established through law or district policy, it does not create additional rights for parents and students. It does not, nor is it intended to, represent a contract between any parent or student and the district.

A hard copy of either the Student Code of Conduct or Student Handbook can be viewed at https://www.ecisd.us.

Note: References to board policy codes are included for ease of reference. The hard copy of the district's official policy manual is available for review in the district administration office, and an unofficial electronic copy is available at https://www.ecisd.us.

The policy manual includes:

- Legally referenced (LEGAL) policies that contain provisions from federal and state laws and regulations, case law, and other legal authorities that provide the legal framework for school districts.
- Board-adopted (LOCAL) policies that articulate the board's choices and values regarding district practices.

For questions about the material in this handbook, please contact a teacher, the counselor, or the principal.

Complete and return to the student's campus the following forms (provided in the forms packet distributed at the beginning of the year or upon enrollment):

- Acknowledgment of Electronic Distribution of Student Handbook,

- Notice Regarding Directory Information and Parent's Response Regarding Release of Student Information,
- Parent's Objection to the Release of Student Information to Military Recruiters and Institutions of Higher Education (if you choose to restrict the release of information to these entities), and
- Consent/Opt-Out Form for participation in third-party surveys.

[See **Objecting to the Release of Directory Information** on page 7 and **Consent Required Before Student Participation in a Federally Funded Survey** on page 8 for more information.]

Accessibility

If you have difficulty accessing this handbook because of a disability, please contact your child's designated campus principal.

Public Notification of Nondiscrimination in Career and Technical Education

1. Edinburg Consolidated Independent School District offers career and technical education programs in Agriculture, Food & Natural Resources, Architecture & Construction, Arts, A/V Technology & Communications, Business, Management & Administration, Education & Training, Finance, Health Science, Hospitality & Tourism, Human Services, Information Technology, Engineering & Transportation, and Distribution & Logistics. Admission to these programs is based on age and grade level as required by the Texas Education Agency.

2. It is the policy of Edinburg Consolidated Independent School District not to discriminate on the basis of race, color, national origin, sex or handicap in its vocational programs, services or activities and provides equal access to the Boy Scouts and other designated youth groups as required by Title VI of the Civil Rights Act of 1964, as amended; Title IX of the Education Amendments of 1972; and Section 504 of the Rehabilitation Act of 1973, as amended.

3. It is the policy of Edinburg Consolidated Independent School District not to discriminate on the basis of race, color, national origin, sex, handicap, or age in its employment practices as required by Title VI of the Civil Rights Act of 1964, as amended; Title IX of the Education Amendments of 1972; the Age Discrimination Act of 1975, as amended; and Section 504 of the Rehabilitation Act of 1973, as amended.

4. Edinburg Consolidated Independent School District will take steps to assure that lack of English language skills will not be a barrier to admission and participation in all educational and vocational programs.

5. For information about your rights or grievance procedures, contact the Director of Personnel/Legal Issues, Mark S. Micallef, at P.O. Box 990, Edinburg, TX 78541, m.micallef@ecisd.us, (956) 289-2300, and/or the Director of Student & Social Services, Sofia Hinojosa, at P.O. Box 990 Edinburg, TX, 78541, sofia.hinojosa@ecisd.us, (956) 289-2300.

Notificación Publica de No Discriminación en Programs de Educación Técnica y Vocacional

1. El Distrito Escolar de Edinburg ofrece programas de educación técnica y vocacional en Agriculture, Food & Natural Resources, Architecture & Construction, Arts, A/V Technology & Communications, Business, Management & Administration, Education & Training, Finance, Health Science, Hospitality & Tourism, Human Services, Information Technology, Engineering & Transportation, and Distribution & Logistics. La admisión a estos programas se basa en edad y grade nivel como es requerido por la Agencia de Educación en Texas (TEA).

2. Es norma de del Distrito Escolar de Edinburg no discriminar en sus programas, servicios o actividades vocacionales y brinda igualdad de acceso a los Boy Scouts y otros grupos juveniles designados por motivos de raza, color, origen nacional, sexo o impedimento, tal como lo requieren el Título VI de la Ley de Derechos Civiles de 1964, según enmienda; Título IX de las Enmiendas en la Educación de 1972, y la Sección 504 de la Ley de Rehabilitación de 1973, según enmienda.

3. Es norma del Distrito Escolar de Edinburg no discriminar en sus procedimientos de empleo por motivos de raza, color, origen nacional, sexo, impedimento o edad, tal como lo requieren el Título VI de la Ley de Derechos Civiles de 1964, según enmienda; Título IX de las Enmiendas en la Educación, de 1972, la ley de Discriminación por Edad, de 1975, según enmienda; y la Sección 504 de la Ley de Rehabilitación de 1973, según enmienda.

4. El Distrito Escolar de Edinburg tomará las medidas necesarias para asegurar que la falta de habilidad en el uso del inglés no sea un obstáculo para la admisión y participación en todos los programas educativos y vocacionales.

5. Para información sobre sus derechos o procedimientos de quejas, comuníquese con el Director of Personnel Mark S. Micallef, en P.O. Box 990, Edinburg, TX 78541, m.micallef@ecisd.us, (956) 289-2300, y/o la Directora de Servicios Sociales y Estudiantiles, Sofia Hinojosa en P.O. Box 990, Edinburg, TX 78541, sofia.hinojosa@ecisd.us, (956) 289-2300.

Section One: Parental Rights

This section describes certain parental rights as specified in state or federal law.

Consent, Opt-Out, and Refusal Rights

Consent to Conduct a Psychological or Psychiatric Evaluation

Unless required under state or federal law, a district employee or contractor of the district will not conduct a psychological or psychiatric examination, test, or treatment without obtaining prior written parental consent.

Note: An evaluation may be legally required under special education rules or by the Texas Education Agency for child abuse investigations and reports.

Annual Notification

As a part of the district's curriculum, students receive instruction related to human sexuality. The School Health Advisory Council (SHAC) makes recommendations for curriculum materials, and the school board adopts the materials and determines the specific content of the instruction.

The ECISD school board did not adopt a curriculum for human sexuality (March 24, 2022).

[See **Consent to Instruction of Prevention of Child Abuse, Family Violence, Dating Violence, and Sex Trafficking** on page 4.]

Consent Before Human Sexuality Instruction

Before a student receives human sexuality instruction, the parent must give written consent. Parents will be sent a request for written consent at least 14 days before the instruction begins.

Consent to Instruction on Prevention of Child Abuse, Family Violence, Dating Violence, and Sex Trafficking

Before a student receives instruction on the prevention of child abuse, family violence, dating violence and sex trafficking, the district must obtain written consent from the student's parent. Parents will be sent a request for written consent at least 14 days before the instruction begins.

Annual Notification

Students receive instruction related to the prevention of child abuse, family violence, dating violence, and sex trafficking. The School Health Advisory Council (SHAC) makes recommendations for curriculum materials, and the school board adopts the materials and determines the specific content of the instruction.

For further information, see the district's abuse prevention instruction website at https://www.ecisd.us.

In accordance with state law, a parent may:

- Review, receive a copy of, or purchase a copy of curriculum materials depending on the copyright of the materials. As required by law, any curriculum materials in the public domain used in this instruction will be posted on the district's website at the location indicated above.
- Remove his or her child from any part of this instruction without academic, disciplinary, or other penalties.
- Become involved in the development of this curriculum by becoming a member of the district's SHAC or attending SHAC meetings. (See the campus principal for details.)
- Use the district's grievance procedure concerning a complaint. See **Complaints and Concerns (All Grade Levels)** on page 33 and policy FNG for information on the grievance and appeals process.

[See **Consent Before Human Sexuality Instruction** on page 4; **Dating Violence** on page 41; and **Child abuse, Neglect, School Staff Misconduct, Trafficking, and Other Maltreatment of Children** on page 26]

Consent to Provide a Mental Health Care Service

The district will not provide a mental health care service to a student or conduct a medical screening of a student as part of the district's intervention procedures except as permitted by law.

The district has established procedures for recommending to a parent an intervention for a student with early warning signs of mental health concerns, substance abuse, or suicide risk. The district's mental health liaison

will notify the student's parent within a reasonable amount of time after the liaison learns that a student has displayed early warning signs and provide information about available counseling options.

Mental Health Student Support

ECISD is committed to providing mental health support services for all students. Our district has several programs and resources available to assist students with their mental health, behavioral health and substance abuse concerns. ECISD updated the Anonymous Alerts System to include mental health and emotional safety concerns. The district is also providing a virtual calming room for students and staff. The ECISD Virtual Calming room contains videos, tools, resources and activities to help individuals manage their emotions.

To help facilitate and communicate how to address student mental health needs, the ECISD Wellness Team developed a Mental Health Support Service Handbook. The handbook contains information on the student referral process, crisis response and intervention and other mental health resources. Our district continues its collaboration with outside agencies to support mental health intervention, substance abuse prevention and intervention, and suicide prevention, intervention and postvention along with other services.

ECISD counselors continue to provide social emotional classroom support to ensure student's emotional needs are met. Our district social workers and Licensed Professional Counselors (LPCs) are also available to address specific student needs. Below are the procedures to refer a student in need of mental health support.

Referral Pathways for Students

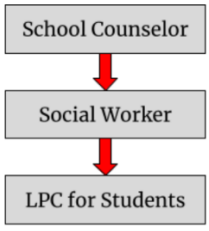
The initial student referral for mental health support services should be from the school counselor. The school counselor will meet with the student and screen for possible risk. Once the risk level is determined, the counselor can provide services or refer students to the social worker or Licensed Professional Counselor as deemed necessary.

Initial Steps for Student Mental Health Support Services:

- Identify student risk level
- Counselor provides services based on student individual needs (as deemed appropriate)
- Refer to Social Worker after 3 visits with the counselor if additional services are required (Social Worker may refer the student to an outside agency for additional services)
- If the student requires more in-depth counseling services, a referral to the district student Licensed Professional Counselor (LPC) shall be completed.

Potential student risk factors that might indicate the need for a school counselor referral:

- Dramatic change in behavior
- Changes in appetite and/or sleep patterns
- Sadness
- Fatigue
- Withdrawn
- Inattentive
- Low Self-image/Self-confidence
- Anxious
- Aggressive behavior
- Social skills struggles i.e. peer-conflict
- Decline of personal hygiene
- Lack of motivation
- Grief/Loss
- Decline in academic performance
- Substance Use
- Physical, Emotional, Sexual Abuse
- Trauma



The district has also established procedures for staff to notify the mental health liaison regarding a student who may need intervention. The mental health liaison, Sofia Hinojosa, Director of Student & Social Services can be reached at sofia.hinojosa@ecisd.us or (956) 289-2300 ext. 2024.

The mental health liaison can provide further information regarding these procedures as well as curriculum materials on identifying risk factors, accessing resources for treatment or support on and off campus, and accessing available student accommodations provided on campus.

[See **Mental Health Support** on page 61.]

Consent to Display a Student's Original Works and Personal Information

Teachers may display a student's work in classrooms or elsewhere on campus as recognition of student achievement without seeking prior parental consent. These displays may include personally identifiable student information.

Student work includes:

- Artwork
- Special projects
- Photographs
- Original videos or voice recordings
- Other original works

However, the district will seek parental consent before displaying a student's work on the district's website, a website affiliated with or sponsored by the district (such as a campus or classroom website), or in district publications, which may include printed materials, videos, or other methods of mass communication.

Consent to Receive Parenting and Paternity Awareness Instruction if a student is Under Age 14

A student under age 14 must have parental permission to participate in the district's Parenting and Paternity Awareness Program (https://www.texasattorneygeneral.gov/child-support/programs-and-initiatives/parenting-and-paternity-awareness-papa/papa-educators/papa-curriculum). This program was developed by the Office of the Texas Attorney General and the State Board of Education (SBOE) to be incorporated into health education classes.

Consent to Video or Audio Record a Student when Not Already Permitted by Law

State law permits the school to make a video or voice recording without parental permission when the recording is used for:

- School safety
- Classroom instruction or a cocurricular or extracurricular activity
- Media coverage of the school
- Promotion of student safety as provided by law for a student receiving special education services in certain settings.

In other circumstances, the district will seek written parental consent before making a video or voice recording of a student.

Please note that parents and visitors to a classroom, both virtual and in person, may not record video or audio or take photographs or other still images without permission from the teacher or other school official.

Opting Out of Advanced Mathematics in Grades 6-8

The district will automatically enroll a student in grade 6 in an advanced mathematics course if the student performed in 60th percentile or higher on the grade 5 mathematics STAAR or in the top 40 percent on a local measure that demonstrates proficiency in the student's grade 5 mathematics course work.

Enrollment in an advanced mathematics course in grade 6 will enable students to enroll in Algebra I in grade 8 and advanced mathematics in grades 9-12.

The student's parent may opt the student out of automatic enrollment in an advanced mathematics course.

Prohibiting the Use of Corporal Punishment

Corporal punishment — spanking or paddling a student — may be used as a discipline management technique in accordance with the Student Code of Conduct and district policy FO(LOCAL).

However, in accordance with law, the district may not administer corporal punishment if a student's parent submits a signed, written statement prohibiting its use.

The parent may reinstate permission to use corporal punishment at any time during the school year by submitting a signed statement to the principal.

Corporal punishment shall be limited to spanking or paddling the student and shall be administered in accordance with the following guidelines:

1. The student shall be told the reason corporal punishment is being administered.
2. Corporal punishment shall be administered only by the principal or designee.
3. Except on elementary campuses, corporal punishment shall be administered only by an employee who is the same sex as the student. On an elementary campus, corporal punishment may be administered by an employee who is not of the same sex as the student.
4. The instrument to be used in administering corporal punishment shall be approved by the principal.
5. Corporal punishment shall be administered in the presence of one other District professional employee and in a designated place out of view of other students.

A parent who does not want corporal punishment administered to his or her child must submit a written statement to the campus principal stating this decision. This signed statement must be submitted each school year. A parent may revoke this prohibition at any time during the school year by providing a signed statement to the campus principal.

Note:

- District personnel may use discipline methods other than corporal punishment if a parent requests that corporal punishment not be used.
- If the district knows that a student is in temporary or permanent custody of the state (through foster care, kinship care, or other arrangements), corporal punishment will not be administered, even when the student's caregiver or caseworker has not submitted a signed statement prohibiting its use.

Disciplinary Records

The disciplinary record reflecting the use of corporal punishment shall include any related disciplinary actions, the corporal punishment administered, the name of the person administering the punishment, the name of the witness present, and the date and time of punishment.

Limiting Electronic Communications between Students and District Employees

The district permits teachers and other approved employees to use electronic communications with students within the scope of professional responsibilities, as described by district guidelines.

For example, a teacher may create a social networking page for his or her class to relay information regarding class work, homework, and tests. A parent is welcome to access such a page.

However, text messages sent to an individual student are only allowed if a district employee with responsibility for an extracurricular activity must communicate with a student participating in that activity.

The employee is required to include the student's parent as a recipient on all text messages.

A parent who does not want his or her child to receive one-to-one electronic communications from a district employee should contact the campus principal.

Objecting to the Release of Directory Information

The Family Educational Rights and Privacy Act, or FERPA, permits the district to disclose appropriately designated "directory information" from a student's education records without written consent.

"Directory information" is information that, if released, is generally not considered harmful or an invasion of privacy. Examples include:

- A student's photograph (for publication in the school yearbook)
- A student's name and grade level (for communicating class and teacher assignments)
- The name, weight, and height of an athlete (for publication in a school athletic program)

- A list of student birthdays (for generating schoolwide or classroom recognition)
- A student's name and photograph (posted on a district-approved and-managed social media platform)
- The names and grade levels of students submitted by the district to a local newspaper or other community publication (to recognize the A/B honor roll for a specific grading period)

Directory information will be released to anyone who follows procedures for requesting it. Visit with the ECISD Public Information Office.

However, a parent or eligible student may object to the release of this information. Any objection must be made in writing to the principal within ten school days of the student's first day of instruction for this school. [See **Notice Regarding Directory Information and Parent's Response Regarding Release of Student Information**, included in the forms packet.]

The district requests that families living in a shelter for survivors of family violence or trafficking notify district personnel that the student currently resides in such a shelter. Families may want to opt out of the release of directory information so that the district does not release any information that might reveal the location of such a shelter.

The district has identified the following as directory information: student name; photograph; major field of study; degrees, honors, and awards received; dates of attendance; grade level; most recent educational institution attended; participation in officially recognized activities and sports; and weight and height of members of athletic teams. If a parent objects to the release of the student's information included on the directory information response form, this objection also applies to the use of that information for school-sponsored purposes, such as:

- Honor roll
- School newspaper
- Yearbook
- Recognition activities
- News releases
- Athletic programs

Note: Also see **Authorized Inspection and Use of Student Records** on page 11.

Objecting to the Release of Student Information to Military Recruiters and Institutions of Higher Education (Secondary Grade Levels Only)

Unless a parent has advised the district not to release his or her student's information, the Every Student Succeeds Act (ESSA) requires the district to comply with requests from military recruiters or institutions of higher education to provide the following information about students:

- Name
- Address
- Telephone listing

Military recruiters may also have access to a student's district-provided email address, unless a parent has advised the district not to release this information.

[See **Parent's Objection to the Release of Student Information to Military Recruiters and Institutions of Higher Education,** included in the forms packet.]

Participation in Third-Party Surveys

Consent Required Before Student Participation in a Federally Funded Survey

The Protection of Pupil Rights Amendment (PPRA) provides parents with certain rights regarding participation in surveys, the collection and use of information for marketing purposes, and certain physical exams.

A parent has the right to consent before a student is required to submit to a survey funded by the U.S. Department of Education that concerns any of the following protected areas:

- Political affiliations or beliefs of the student or the student's parent
- Mental or psychological problems of the student or the student's family
- Sex behavior or attitudes
- Illegal, antisocial, self-incriminating, or demeaning behavior

- Critical appraisals of individuals with whom the student has a close family relationship
- Legally recognized privileged relationships, such as with lawyers, doctors, and ministers
- Religious practices, affiliations, or beliefs of the student or parent
- Income, except when the information is required by law and will be used to determine the student's eligibility for a program

A parent may inspect the survey or other instrument and any corresponding instructional materials used in connection with such a survey. [See policy EF(LEGAL) for more information.]

"Opting Out" of Participation in Other Types of Surveys or Screenings and the Disclosure of Personal Information

The PPRA gives parents the right to receive notice and an opportunity to opt a student out of:

- Activities involving the collection, disclosure, or use of personal information gathered from the child for the purpose of marketing, selling, or otherwise disclosing that information to others.
- Any nonemergency, invasive physical examination or screening required as a condition of attendance, administered by the school or its agent, and not necessary to protect the immediate health and safety of the student.

Exceptions are hearing, vision, spinal screenings, or any physical examination or screening permitted or required under state law. [See policies EF and FFAA for more information.]

A parent may inspect:

- Protected information surveys of students and surveys created by a third party
- Instruments used to collect personal information from students for any of the above marketing, sales, or other distribution purposes
- Instructional material used as part of the educational curriculum

The ED provides extensive information about the Protection of Pupil Rights Amendment (https://studentprivacy.ed.gov/resources/protection-pupil-rights-amendment-ppra-general-guidance), including a PPRA Complaint Form (https://studentprivacy.ed.gov/file-a-complaint).

Removing a Student from Instruction or Excusing a Student from a Required Component of Instruction

See **Consent Before Human Sexuality Instruction** on page 4 and **Consent to Instruction on Prevention of Child Abuse, Family Violence, Dating Violence, and Sex Trafficking** on page 4 for information on a parent's right to remove a student from such instruction.

Reciting a Portion of the Declaration of Independence in Grades 3-12

State law designates the week of September 17 as Celebrate Freedom Week and requires all social studies classes to provide the following:

- Instruction concerning the intent, meaning, and importance of the Declaration of Independence and the U.S. Constitution
- A specific recitation from the Declaration of Independence for students in grades 3-12.

Per state law, a student may be excused from recitation of a portion of the Declaration of Independence if any of the following apply:

- A parent provides a written statement requesting that his or her child be excused.
- The district determines that the student has a conscientious objection to the recitation.
- A parent is a representative of a foreign government to whom the U.S. government extends diplomatic immunity.

[See policy EHBK(LEGAL) for more information.]

Reciting the Pledges to the U.S. and Texas Flags

A parent may request that his or her child be excused from participation in the daily recitation of the Pledge of Allegiance to the U.S. flag and the Pledge of Allegiance to the Texas flag. The request must be made in writing.

State law, however, requires that all students participate in one minute of silence following recitation of the pledges.

[See **Pledges of Allegiance and a Minute of Silence** on page 70 and policy EC(LEGAL) for more information.]

Religious or Moral Beliefs

A parent may remove his or her child temporarily from the classroom if a scheduled instructional activity conflicts with the parent's religious or moral beliefs.

The removal may not be used to avoid a test and may not extend for an entire semester. The student must also satisfy grade-level and graduation requirements as determined by the school and by state law.

Tutoring or Test Preparation

A teacher may determine that a student needs additional targeted assistance for the student to achieve mastery in state-developed essential knowledge and skills based on:

- Informal observations
- Evaluative data such as grades earned on assignments or tests
- Results from diagnostic assessments

The school will always attempt to provide tutoring and strategies for test-taking in ways that prevent removal from other instruction as much as possible.

In accordance with state law and policy EC, districts must obtain parental permission before removing a student from a regularly scheduled class for remedial tutoring or test preparation for more than ten percent of the days the class is offered.

If a district offers tutorial services to students, state law requires a student with a grade below 70 for a reporting period to attend.

[For questions about school-provided tutoring programs, contact the student's teacher and see policies EC and EHBC. See **Standardized Testing** on page 81 for information regarding required accelerated instruction after a student fails to perform satisfactorily on certain state-mandated tests.]

Right of Access to Student Records, Instructional Materials, and District Records/Policies

Parent Review of Instructional Materials and Plan

A parent has the right to review teaching materials, textbooks, and other teaching aids and instructional materials used in the curriculum, and to examine tests that have been administered, whether instruction is delivered in-person, virtually, or remotely.

The district will make instructional materials available for parent review no later than 30 days before the school year begins and for at least 30 days after the school year ends. However, tests that have not yet been administered will not be made available for parent examination.

The district will provide login credentials to each student's parent for any learning management system or online learning portal used in instruction to facilitate parent access and review.

A parent is also entitled to request that the school allow the student to take home instructional materials the student uses. The school may ask the student to return the materials at the beginning of the next school day.

A school must provide printed versions of electronic instructional materials to a student if the student does not have reliable access to technology at home.

Teachers are required to provide a copy of the teacher's instructional plan or course syllabus for each class to the parent of each student enrolled in that class before the beginning of each semester. A parent may obtain additional copies of plan or syllabus by request. Elementary instructional plans and secondary syllabi will be shared with parents during the first reporting period.

[For information about parental access to any online library catalog and library materials, including record of their child's checked out library materials, see **Library (All Grade Levels)**.]

District Review of Instructional Materials

A parent may request that the district conduct an instructional material review in a Math, English Language Arts, Science, or Social Studies class in which the parent's student is enrolled to determine alignment with state standards and the level of rigor for the grade level.

The district is not required to conduct an instructional material review for a specific subject area or grade level at a specific campus more than once per school year.

For more information about requesting an instructional material review, contact the campus principal.

Notices of Certain Student Misconduct to Noncustodial Parent

A noncustodial parent may request in writing that he or she be provided, for the remainder of the school year, a copy of any written notice usually provided to a parent related to his or her child's misconduct that may involve placement in a disciplinary alternative education program (DAEP) or expulsion. [See the **Student Code of Conduct and Policy FO(LEGAL)** for more information.]

Participation in Federally Required, State-Mandated, and District Assessments

In accordance with Every Student Succeeds Act (ESSA), a parent may request information regarding any federal, state, or district policy related to his or her child's participation in required assessments.

Student Records

Accessing Student Records

A parent may review his or her child's records, including:

- Attendance records
- Test scores
- Grades
- Disciplinary records
- Counseling records
- Psychological records
- Applications for admission
- Health and immunization information
- Other medical records
- Teacher and school counselor evaluations
- Reports of behavioral patterns
- Records relating to assistance provided for learning difficulties, including information collected regarding any intervention strategies used with the child, as the term "intervention strategy" is defined by law
- Records relating to school library materials the child obtains from a school library [See Library (All Grade Levels) for more information.]
- State assessment instruments that have been administered to the child
- Teaching materials and tests used in the child's classroom

Authorized Inspection and Use of Student Records

The Family Educational Rights and Privacy Act (FERPA) affords parents and eligible students certain rights regarding student education records.

For purposes of student records, an "eligible" student is anyone age 18 or older or who attends a postsecondary educational institution. These rights, as discussed here and at **Objecting to the Release of Directory Information** on page 7, are the right to:

- Inspect and review student records within 45 days after the day the school receives a request for access.
- Request an amendment to a student record the parent or eligible student believes is inaccurate, misleading, or otherwise in violation of FERPA.
- Provide written consent before the school discloses personally identifiable information from the student's records, except to the extent that FERPA authorizes disclosure without consent.
- File a complaint (https://studentprivacy.ed.gov/file-a-complaint) with the U.S. Department of Education concerning failures by the school to comply with FERPA requirements.

Both FERPA and state laws safeguard student records from unauthorized inspection or use and provide parents and eligible students certain rights of privacy.

Before disclosing personally identifiable information from a student's records, the district must verify the identity of the person, including a parent or the student, requesting the information.

Virtually all information pertaining to student performance — including grades, test results, and disciplinary records — is considered confidential educational records.

Inspection and release of student records is restricted to an eligible student or a student's parent unless the school receives a copy of a court order terminating parental rights or the right to access a student's education records. A parent's rights regarding access to student records are not affected by the parent's marital status.

Federal law requires that control of the records goes to the student as soon as the student meets at least one of the following criteria:

- Reaches the age of 18
- Is emancipated by a court
- Enrolls in a postsecondary educational institution.

However, the parent may continue to have access to the records if the student is a dependent for tax purposes and, under limited circumstances, when there is a threat to the health and safety of the student or other individuals.

FERPA permits the disclosure of personally identifiable information from a student's education records without written consent of the parent or eligible student when school officials have what federal law refers to as a "legitimate educational interest" in a student's records.

Legitimate educational interest may include:

- Working with the student
- Considering disciplinary or academic actions, the student's case, or an individualized education program for a student with disabilities
- Compiling statistical data
- Reviewing an educational record to fulfill the official's professional responsibility
- Investigating or evaluating programs

School officials may include:

- Board members and employees, such as the superintendent, administrators, and principals
- Teachers, school counselors, diagnosticians, and support staff (including district health or medical staff)
- A person or company with whom the district has contracted or allowed to provide a specific institutional service or function (such as an attorney, consultant, third-party vendor that offers online programs or software, auditor, medical consultant, therapist, school resource officer, or volunteer)
- A person appointed to serve on a team to support the district's safe and supportive school program
- A parent or student serving on a school committee
- A parent or student assisting a school official perform his or her duties

FERPA also permits the disclosure of personally identifiable information without written consent:

- To authorized representatives of various governmental agencies, including juvenile service providers, the U.S. Comptroller General's office, the U.S. Attorney General's office, the U.S. Secretary of Education, the Texas Education Agency, the U.S. Secretary of Agriculture's office, and Child Protective Services (CPS) caseworkers or, in certain cases, other child welfare representatives.
- To individuals or entities granted access in response to a subpoena or court order.
- To another school, district/system, or postsecondary educational institution to which a student seeks or intends to enroll or in which the student already is enrolled.
- In connection with financial aid for which a student has applied or has received.
- To accrediting organizations to carry out accrediting functions.
- To organizations conducting studies for, or on behalf of, the school to develop, validate, or administer predictive tests; administer student aid programs; or improve instruction.

- To appropriate officials in connection with a health or safety emergency.
- When the district discloses directory information-designated details. [See **Objecting to the Release of Directory Information** on page 7 to prohibit this disclosure.]

Release of personal identifiable information to any other person or agency — such as a prospective employer or for a scholarship application — will occur only with parental or student permission as appropriate.

The principal is custodian of all records for currently enrolled students at the assigned school. The superintendent is the custodian of all records for students who have withdrawn or graduated.

A parent or eligible student who wants to inspect the student's records should submit a written request to the custodian of records identifying the records he or she wants to inspect.

Records may be reviewed in person during regular school hours. The records custodian or designee will be available to explain the record and to answer questions.

A parent or eligible student who submits a written request and pays copying costs of ten cents per page may obtain copies. If circumstances prevent inspection during regular school hours and the student qualifies for free or reduced-price meals, the district will either provide a copy of the records requested or make other arrangements for the parent or student to review the records.

You may contact the custodian of records for currently enrolled students at the student's perspective campus.

You may contact the custodian of records for students who have withdrawn or graduated at the Superintendent's Office at 411 N. 8th Ave., Edinburg, TX.

A parent or eligible student may inspect the student's records and request a correction or amendment if the records are considered inaccurate, misleading, or otherwise in violation of the student's privacy rights.

A request to correct a student's record should be submitted to the appropriate custodian of records. The request must clearly identify the part of the record that should be corrected and include an explanation of how the information is inaccurate. If the district denies the request to amend the records, the parent or eligible student has the right to request a hearing. If after the hearing the records are not amended, the parent or eligible student has 30 school days to place a statement in the student's record.

Although improperly recorded grades may be challenged, contesting a student's grade in a course or on an examination is handled through the complaint process found in policy FNG(LOCAL). A grade issued by a teacher can be changed only if the board of trustees determines that the grade is arbitrary, erroneous, or inconsistent with the district's grading guidelines.

[See **Report Cards/Progress Reports and Conferences** on page 72, **Complaints and Concerns** on page 33, and Finality of Grades at policy FNG(LEGAL).]

The district's student records policy is found at policy FL(LEGAL) and (LOCAL) and is available at the principal's or superintendent's office or on the district's website at https://www.ecisd.us.

Note: The parent's or eligible student's right of access to and copies of student records does not extend to all records. Materials that are not considered educational records — such as a teacher's personal notes about a student shared only with a substitute teacher — do not have to be made available.

Teacher and Staff Professional Qualifications

A parent may request information regarding the professional qualifications of his or her child's teachers, including whether the teacher:

- Has met state qualification and licensing criteria for the grade levels and subject areas in which the teacher provides instruction;
- Has an emergency permit or other provisional status for which state requirements have been waived; and
- Is currently teaching in the field or discipline of his or her certification.

The parent also has the right to request information about the qualifications of any paraprofessional who may provide services to the child.

A Student with Exceptionalities or Special Circumstances

Children of Military Families

The Interstate Compact on Educational Opportunities for Military Children (https://www.dodea.edu/partnership/interstatecompact.cfm) entitles children of military families to flexibility regarding certain district and state requirements, including:

- Immunization requirements
- Grade level, course, or educational program placement
- Eligibility requirements for participation in extracurricular activities
- Enrollment in virtual or hybrid courses offered by the district or another district or school.
- Graduation requirements

The district will excuse absences related to a student visiting a parent, including a stepparent or legal guardian, who is:

- Called to active duty
- On leave
- Returning from a deployment of at least four months

The district will permit **no more than five** excused absences per year for this purpose. For the absence to be excused, the absence must occur no earlier than the 60th day before deployment or no later than the 30th day after the parent's return from deployment.

Additional information may be found at Military Family Resources at the Texas Education Agency (https://tea.texas.gov/about-tea/other-services/military-family-resources).

Parental Role in Certain Classroom and School Assignments

Multiple-Birth Siblings

State law permits a parent of multiple-birth siblings (for example, twins, triplets) assigned to the same grade and campus to request in writing that the children be placed in either the same classroom or separate classrooms.

Written requests must be submitted by the 14th day after the students' enrollment. [See policy FDB(LEGAL) for more information.]

Safety Transfers/Assignments

The board or its designee will honor a parent's request to transfer his or her child to another classroom or campus if the district has determined that the child has been a victim of bullying, including cyberbullying, as defined by Education Code 37.0832.

The board may transfer a student who has engaged in bullying to another classroom. The board will consult with the parent of a child who has engaged in bullying before deciding to transfer the child to another campus.

Transportation is provided for a transfer to another campus. See the principal for more information.

[See **Bullying** on page 23, and policies FDB and FFI for more information.]

The district will honor a parent's request for the transfer of his or her child to a safe public school in the district if the child attends a school identified by the Texas Education Agency as persistently dangerous or if the child has been a victim of a violent criminal offense while at school or on school grounds.

[See policy FDE for more information.]

The board will honor a parent's request for the transfer of his or her child to another district campus if the child has been the victim of sexual assault by another student assigned to the same campus, whether the assault occurred on or off campus, and that student has been convicted of or placed on deferred adjudication for the assault. In accordance with policy FDE, if the victim does not wish to transfer, the board will transfer the assailant.

Student Use of a Service/Assistance Animal

A parent of a student who uses a service/assistance animal because of the student's disability must submit a written request to the principal before bringing the service/assistance animal on campus. The district will try to accommodate a request as soon as possible but will do so within ten district business days.

A Student in the Conservatorship of the State (Foster Care)

In an effort to provide educational stability, the district will provide enrollment and registration assistance, as well as other educational services throughout the student's enrollment, to any student who is currently placed or newly placed in foster care (temporary or permanent custody of the state, sometimes referred to as substitute care).

A student in the conservatorship (custody) of the state who enrolls in the district after the beginning of the school year will be allowed credit-by-examination opportunities at any point during the year.

The district will assess the student's available records to determine transfer of credit for subjects and courses taken before the student's enrollment in the district.

The district will award partial course credit when the student only passes one half of a two-half course. [For provisions on partial course credit for students who are not in the conservatorship of the state, see EI(LOCAL).]

A student in the conservatorship of the state who is moved outside the district's or school's attendance boundaries — or who is initially placed in the conservatorship of the state and moved outside the district's or school's boundaries — is entitled to remain at the school the student was attending prior to the placement or move until the student reaches the highest grade level at that particular school.

If a student in grade 11 or 12 transfers to another district but does not meet the graduation requirements of the receiving district, the student can request a diploma from the previous district if the student meets its graduation criteria.

For a student in the conservatorship of the state who is eligible for a tuition and fee exemption under state law and likely to be in care on the day preceding the student's 18th birthday, the district will:

- Assist the student with the completion of applications for admission or financial aid.
- Arrange and accompany the student on campus visits.
- Assist in researching and applying for private or institution-sponsored scholarships.
- Identify whether the student is a candidate for appointment to a military academy.
- Assist the student in registering and preparing for college entrance examinations, including (subject to the availability of funds) arranging for the payment of examination fees by the Texas Department of Family and Protective Services (DFPS).
- Coordinate contact between the student and a liaison officer for students formerly in the conservatorship of the state.

If you have questions, please contact the district's foster care liaison: Sandra Rodriguez, Coordinator for Parental Involvement, s.a.rodriguez@ecisd.us, (956)289-2300 ext. 3080.

[See **Credit by Examination for Advancement/Acceleration** on page 40 and **Course Credit** on page 40.]

A Student Who Is Homeless

A parent is encouraged to inform the district if his or her child is experiencing homelessness. District staff can share resources that may be able to assist families.

For more information on services for students who are homeless, contact the district's homeless education liaison, Sandra Rodriguez, Coordinator for Parental Involvement, s.a.rodriguez@ecisd.us, at (956) 289-2300 ext. 3080.

A student who is homeless will be provided flexibility regarding certain district provisions, including:

- Proof of residency requirements
- Immunization requirements
- Educational program placement (if the student is unable to provide previous academic records or misses an application deadline during a period of homelessness)

- Credit-by-examination opportunities at any point during the year (if the student enrolled in the district after the beginning of the school year), per State Board of Education (SBOE) rules
- Assessment of the student's available records to determine transfer of credit for subjects and courses taken before the student's enrollment in the district
- Awarding partial credit when a student passes only one half of a two-half course
- Eligibility requirements for participation in extracurricular activities
- Graduation requirements

Federal law allows a student who is homeless to remain enrolled in the "school of origin" or to enroll in a new school in the attendance area where the student is currently residing.

If a student who is homeless in grade 11 or 12 transfers to another district but does not meet the graduation requirements of the receiving district, state law allows the student to request a diploma from the previous district if the student meets the criteria to graduate from the previous district.

A student or parent who is dissatisfied by the district's eligibility, school selection, or enrollment decision may appeal through policy FNG(LOCAL). The district will expedite local timelines, when possible, for prompt dispute resolution.

For more information on services for students who are homeless, contact the district's homeless education liaison, Sandra Rodriguez, Coordinator for Parental Involvement, s.a.rodriguez@ecisd.us, (956)289-2300 ext.3081.

[See **Credit by Examination for Advancement/Acceleration** on page 40 and **Course Credit** on page 40.]

A Student Who Has Learning Difficulties or Who Needs Special Education or Section 504 Services

For those students who are having difficulty in the regular classroom, all school districts must consider tutorial, compensatory, and other academic or behavior support services that are available to all students through the district's multi-tiered system of academic and behavioral support (MTSS). The provision of these intervention and support services, which might include (RTI) process, can have an impact on the availability of district to meet the needs of all students.

If a student is experiencing learning difficulties, his or her parent may contact the individuals listed below to learn about the school's overall general education referral or screening system for support services.

This system links students to a variety of support options, including making a referral for a special education evaluation or for a Section 504 evaluation to determine whether the student needs specific aids, accommodations, or services. A parent may request an evaluation for special education or Section 504 services at any time.

Special Education Referrals

If a parent makes a written request for an initial evaluation for special education services to the director of special education services or to a district administrative employee of the school district, the district must respond no later than 15 school days after receiving the request. At that time, the district must give the parent prior written notice of whether it agrees or refuses to evaluate the student, along with a copy of the *Notice of Procedural Safeguards* (https://fw.escapps.net/Display_Portal/publications). If the district agrees to evaluate the student, it must also give the parent the opportunity to give written consent for the evaluation.

Note: A request for a special education evaluation may be made verbally; it does not need to be made in writing. Districts must still comply with all federal prior-written notices and procedural safeguard requirements as well as the requirements for identifying, locating, and evaluating children who are suspected of having a disability and in need of special education. However, a verbal request does not require the district to respond within the 15 school-day timeline.

If the district decides to evaluate the student, it must complete the student's initial evaluation and evaluation report no later than 45 school days from the day it receives a parent's written consent. However, if the student is absent from school during the evaluation period for three or more school days, the evaluation period will be extended by the number of school days equal to the number of school days that the student is absent.

There is an exception to the 45-school-day timeline. If the district receives a parent's consent for the initial evaluation at least 35 but less than 45 school days before the last instructional day of the school year, it must

complete the written report and provide a copy of the report to the parent by June 30 of that year. However, if the student is absent from school for three or more days during the evaluation period, the June 30 due date no longer applies. Instead, the general timeline of 45 school days plus extensions for absences of three or more days will apply.

Upon completing the evaluation, the district must give the parent a copy of the evaluation report at no cost.

Additional information regarding special education is available from the school district in a companion document titled *Parent's Guide to the Admission, Review, and Dismissal Process* (https://fw.escapps.net/Display_Portal/publications).

Contact Person for Special Education Referrals

The designated contact person regarding options for a student experiencing learning difficulties or regarding a referral for evaluation for special education services is Ms. Alida Suarez, Director of Special Education Services, by email a.suarez@ecisd.us, by phone at (956) 289-2300 ext. 2053 or by mail at 411 N. 8th Ave., Edinburg, Texas, 78541.

For questions regarding post-secondary transitions, including the transition from education to employment, for students receiving special education services, contact the district's transition and employment designee: Ms. Alida Suarez, Director of Special Education Services, by email a.suarez@ecisd.us, by phone at (956) 289-2300 ext. 2053 or by mail at 411 N. 8th Ave., Edinburg, Texas, 78541.

Section 504 Referrals

Each school district must have standards and procedures in place for the evaluation and placement of students in the district's Section 504 program. Districts must also implement a system of procedural safeguards that includes:

- Notice
- An opportunity for a parent or guardian to examine relevant records
- An impartial hearing with an opportunity for participation by the parent or guardian and representation by counsel
- A review procedure

Contact Person for Section 504 Referrals

The designated person to contact regarding options for a student experiencing learning difficulties or regarding a referral for evaluation for Section 504 services is: Sofia Hinojosa, Director of Student and Social Services, by email sofia.hinojosa@ecisd.us, by phone at (956) 289-2300, ext. 2024 or by mail at 411 N. 8th Ave., Edinburg Texas, 78541.

[See **A Student with Physical or Mental Impairments Protected under Section 504** on page 18.]

Visit these websites for information regarding students with disabilities and the family:

- Legal Framework for the Child-Centered Special Education Process (https://fw.escapps.net/Display_Portal?destination=/)
- Partner Resource Network (http://prntexas.org/)
- SPEDTEX: Special Education Information Center (https://www.spedtex.org/)
- Texas First Project (http://www.texasprojectfirst.org/)
- TEA Special Education Parent and Family Resources (https://tea.texas.gov/academics/special-student-populations/special-education/sped-family-resources-0)

§504 Child Find Notice

Pursuant to Section 504 of the Rehabilitation Act of 1973, the District has a duty to identify, refer, evaluate and if eligible, provide a free, appropriate public education to disabled students. For additional information about the rights of parents of eligible children, or for answers to any questions you might have about identification, evaluation and placement into Section 504 program, please contact the campus Section 504 Coordinator or the District's Section 504 Director, Sofia Hinojosa, Director of Student & Social Services, by email

sofia.hinojosa@ecisd.us, by phone at (956) 289-2300, ext. 2024 or by mail at 411 N. 8th Ave., Edinburg Texas, 78541.

Notification to Parents of Intervention Strategies for Learning Difficulties Provided to Students in General Education

In accordance with state law, the district will annually notify parents if their child receives assistance for learning difficulties. Details of such assistance can include intervention strategies. This notice is not intended for those students already enrolled in a special education program.

Texas Driving with Disability Program

In accordance with state law, the district will provide notification of the Texas Driving with Disabilities Program to students who have a health condition or disability that may impede effective communication with a peace officer and receive special education or are covered by Section 504 of the Rehabilitation Act of 1973. This notification will be provided annually to an eligible student aged 16 years or older until the student's graduation or 21st birthday and to the student's parents.

The Texas Driving with Disability Program focuses on improving the interaction between law enforcement and drivers with disabilities that have unique communication needs.

A Student Who Receives Special Education Services with Other School-Aged Children in the Home

If a student is receiving special education services at a campus outside his or her attendance zone, state law permits the parent or guardian to request that other students residing in the household be transferred to the same campus — if the grade level for the transferring student is offered on that campus.

The student receiving special education services would be entitled to transportation; however, the district is not required to provide transportation to other children in the household.

The parent or guardian should contact the school principal regarding transportation needs prior to requesting a transfer for other children in the home. [See policy FDB(LOCAL) for more information.]

A Student Who Speaks a Primary Language Other than English

A student may be eligible to receive specialized support if his or her primary language is not English, and the student has difficulty performing ordinary class work in English.

If the student qualifies for these services, the Language Proficiency Assessment Committee (LPAC) will determine the types of services the student needs, including accommodations or modifications related to classroom instruction, local assessments, and state-mandated assessments.

[See **Emergent Bilingual Students** on page 48 and **Special Programs** on page 81.]

A Student with Physical or Mental Impairments Protected under Section 504

A student with a physical or mental impairment that substantially limits a major life activity, as defined by law — and who does not otherwise qualify for special education services — may qualify for protections under Section 504 of the Rehabilitation Act.

Section 504 is a federal law designed to prohibit discrimination against individuals with disabilities.

When an evaluation is requested, a committee will be formed to determine whether the student needs services and support under Section 504 in order to receive a free appropriate public education (FAPE), as defined in federal law.

[See **A Student Who Has Learning Difficulties or Who Needs Special Education or Section 504 Services** on page 16 and policy FB for more information.]

Section Two: Other Important Information for Parents and Students

This section contains important information on academics, school activities, and school operations and requirements.

It is organized alphabetically to serve as a quick-reference guide. Where applicable, the topics are further organized by grade level.

Parents and children should take a moment together to become familiar with the issues addressed in this section. For guidance on a particular topic, please contact the campus principal.

Absences/Attendance

Regular school attendance is essential. Absences from class may result in serious disruption of a student's education. The student and parents should avoid unnecessary absences.

Two important state laws are discussed below — one dealing with compulsory attendance and the other with how attendance affects the award of a student's final grade or course credit.

Compulsory Attendance

Prekindergarten and Kindergarten

Students enrolled in prekindergarten 3, prekindergarten 4 and kindergarten are required to attend school and are subject to the compulsory attendance requirements as long as they remain enrolled.

Ages 6-18

State law requires that a student who is at least six years of age, or who is younger than six years of age and has previously been enrolled in first grade, and who has not yet reached their 19th birthday, shall attend school, as well as any applicable accelerated instruction program, extended-year program, or tutorial session, unless the student is otherwise excused from attendance or legally exempt.

A student will be required to attend any assigned accelerated instruction program before or after school or during the summer if the student does not meet the passing standards on an applicable subject area state assessment.

Age 19 and Older

A student who voluntarily attends or enrolls after his or her 19th birthday is required to attend each school day until the end of the school year. If the student incurs more than five unexcused absences in a semester, the district may revoke the student's enrollment. The student's presence on school property thereafter would be unauthorized and may be considered trespassing. [See policy FEA for more information.]

Compulsory Attendance — Exemptions

All Grade Levels

State law allows exemptions to the compulsory attendance requirements, as long as the student makes up all the work, for the following activities and events:

- Religious holy days
- Required court appearances
- Appearing at a governmental office to obtain U.S. citizenship
- Taking part in a US naturalization oath ceremony
- Serving as an election clerk
- Health-care appointments for the student or a child of the student, including absences related to autism services and mental health appointments if the student returns to school on the same day of the appointment and brings a note from the health-care provider
- Absences resulting from a serious or life-threatening illness or related treatment that makes a student's attendance infeasible, with certification by a physician on the district's form
- Absences for attendance in a released time course in religious instruction
- For students in the conservatorship of the state:

- An activity required under a court-ordered service plan; or
- Any other court-ordered activity, provided it is not practicable to schedule the student's participation in the activity outside of school hours.

For children of military families, absences of up to five days will be excused for a student to visit a parent, stepparent, or legal guardian going to, on leave from, or returning from certain deployments. [See **Children of Military Families** on page 14.]

Note that documented health-care appointments may include telehealth appointments. Students who are physically on campus will not be allowed to participate in telehealth or other online appointments without specific authorization from an appropriate administrator. Students should not use district-issued technology, including Wi-Fi or internet, for telehealth appointments because use of district-owned equipment and its network systems is not private and may be monitored by the district. For more information, see **Telecommunication and Other Electronic Devices** on page 81 .

Secondary Grade Levels

The district will allow a student who is 15 years of age or older to be absent for one day to obtain a learner license and one day to obtain a driver's license, provided that the board has authorized such excused absences under policy FEA(LOCAL). The student will be required to provide documentation of his or her visit to the driver's license office for each absence and must make up any work missed.

[See **Driver License Attendance Verification** on page 22.]

The district will allow junior and senior students to be absent for up to two days per year to visit a college or university if the following conditions are met:

- The board has authorized such excused absences under policy FEA(LOCAL).
- The principal has approved the student's absence.
- The student follows campus procedures to verify the visit and makes up any work missed.

The district will allow a student 17 years old or older to be absent for up to four days during the period the student is enrolled in high school to pursue enlistment in the U.S. armed services or Texas National Guard, provided the student verifies these activities to the district.

The district will allow a student to be absent for up to two days during the student's junior year and two days during the student's senior year for a career investigation day to visit a professional at that individual's workplace to determine the student's interest in pursuing a career in the professional's field, provided the student verifies these activities to the district.

The district will allow a student to be absent for up to two days per school year to serve as:

- An early voting clerk, provided the district's board has authorized this in policy FEA(LOCAL), the student notifies his or her teachers, and the student receives approval from the principal prior to the absences; or
- An election clerk if the student makes up any work missed.

The district will allow a student in grades 6-12 to be absent for the purpose of sounding "Taps" at a military honors funeral for a deceased veteran.

Compulsory Attendance — Failure to Comply

All Grade Levels

School employees must investigate and report violations of the compulsory attendance law.

A student who is absent without permission from school, any class, any required special program, or any required tutorial will be considered in violation of the compulsory attendance law and subject to disciplinary action.

Students with Disabilities

If a student with a disability is experiencing attendance issues, the student's ARD or Section 504 committee will determine whether the attendance issues warrant an evaluation, a reevaluation, and/or modifications to the student's individualized education program or Section 504 plan, as appropriate.

Ages 6-18

When a student age 6-18 incurs three or more unexcused absences within a four-week period, the law requires the school to send notice to the parent.

The notice will:

- Remind the parent of his or her duty to monitor the student's attendance and require the student to attend school.
- Request a conference between school administrators and the parents.
- Inform the parents that the district will initiate truancy prevention measures, including a behavior improvement plan, school-based community service, referrals to counseling or other social services, or other appropriate measures.

The truancy prevention facilitator for the district is Dr. Anthony Garza, Assistant Superintendent for Support Services.

For any questions about student absences, parents should contact the facilitator or any other campus administrator.

A court of law may impose penalties against the parent if a school-aged student is deliberately not attending school. The district may file a complaint against the parent if the student incurs ten or more unexcused absences within a six-month period in the same school year.

If a student age 12-18 incurs ten or more unexcused absences within a six-month period in the same school year, the district, in most circumstances, will refer the student to truancy court.

[See policies FEA(LEGAL) and FED(LEGAL) for more information.]

Age 19 and Older

After a student age 19 or older incurs a third unexcused absence, the district is required by law to send the student a letter explaining that the district may revoke the student's enrollment for the remainder of the school year if the student has more than five unexcused absences in a semester. As an alternative to revoking a student's enrollment, the district may implement a behavior improvement plan.

Attendance for Credit or Final Grade (All Grade Levels)

To receive credit or a final grade in a class, a student must attend the class at least 90 percent of the days it is offered. A student who attends at least 75 percent but fewer than 90 percent of the days may receive credit or a final grade if he or she completes a plan, approved by the principal, that allows the student to fulfill the class's instructional requirements. If a student is involved in a criminal or juvenile court proceeding, the judge presiding over the case must also approve the plan before the student receives credit or a final grade.

If a student attends fewer than 75 percent of the class days or does not complete the principal-approved plan, then the attendance review committee will determine whether there are extenuating circumstances for the absences and how the student can regain credit or a final grade. [See policy FEC for more information.]

Except for absences due to serious or life-threatening illness or related treatment, all absences, excused or unexcused, may be held against a student's attendance requirement. To determine whether there were extenuating circumstances for any absences, the attendance committee will consider:

- Whether the student has mastered the essential knowledge and skills and maintained passing grades in the course or subject.
- Whether the student has completed makeup work satisfactorily. If the student completes makeup work, absences listed under **Compulsory Attendance — Exemptions** on page 19 and absences for extracurricular activities will be considered extenuating circumstances.
- Whether the student or the student's parents had any control over the absences.
- Any information presented by the student or parent to the committee about the absences.

The student or parent may appeal the committee's decision to the board by following policy FNG(LOCAL).

Official Attendance-Taking Time (All Grade Levels)
The district will take official attendance every day at 10:00 a.m. for Elementary and Middle Schools and 10:45 a.m. for High Schools.

A student absent for any portion of the day should follow the procedures below to provide documentation of the absence.

Documentation after an Absence (All Grade Levels)
A parent must provide an explanation for any absence upon the student's arrival or return to school. The student must submit a note signed by the parent. The campus may accept a phone call from the parent but reserves the right to require a written note.

A note signed by the student will not be accepted unless the student is age 18 or older or is an emancipated minor under state law.

The campus will document in its attendance records whether the absence is excused or unexcused.

Note: The district is not required to excuse any absence, even if the parent provides a note explaining the absence, unless the absence is an exemption under compulsory attendance laws.

Doctor's Note after an Absence for Illness (All Grade Levels)
Within 3 days of returning to school, a student who is absent for more than 3 consecutive days because of a personal illness must bring a statement from a doctor or health clinic verifying the illness or condition that caused the absence. Otherwise, the absence may be considered unexcused and in violation of compulsory attendance laws.

Should the student develop a questionable pattern of absences, the principal or attendance committee may require a statement from a doctor or health clinic verifying the illness or condition that caused the absence to determine whether an absence will be excused or unexcused.

Certification of Absence Due to Severe Illness or Treatment
If a student is absent because of a serious or life-threatening illness or related treatment that makes a student's attendance infeasible, a parent must provide certification from a physician licensed to practice in Texas specifying the student's illness and the anticipated period of absence related to the illness or treatment on the district's form. A parent may access the required form from the campus' attendance office and return it once it has been signed by both the parent and the certifying physician.

Driver License Attendance Verification (Secondary Grade Levels Only)
A currently enrolled student seeking a driver's license shall submit the Texas Department of Public Safety Verification of Enrollment and Attendance Form (VOE), signed by the parent, to the campus central office at least 10 days before it is needed. The district will issue a VOE only if the student meets class credit or attendance requirements. The VOE form (https://www.tdlr.texas.gov/driver/forms/VOE.pdf) is available online.

Further information may be found on the Texas Department of Public Safety website (https://www.dps.texas.gov/section/driver-license/how-apply-texas-driver-license-teen).

See **Compulsory Attendance — Exemptions for Secondary Grade Levels** on page 21 for information on excused absences for obtaining a learner license or driver's license.

Accountability under State and Federal Law (All Grade Levels)
Edinburg Consolidated Independent School District and each of its campuses are held to certain standards of accountability under state and federal law. A key component of accountability is the dissemination and publication of certain reports and information, including:

- The Texas Academic Performance Report (TAPR) for the district, compiled by the Texas Education Agency (TEA), based on academic factors and ratings
- A School Report Card (SRC) for each campus in the district, compiled by TEA
- The district's financial management report, which includes the financial accountability rating assigned to the district by TEA
- Information compiled by TEA for the submission of a federal report card that is required by federal law

Accountability information can be found on the district's website at https://www.ecisd.us. Hard copies of any reports are available upon request to the district's administration office.

TEA maintains additional accountability and accreditation information at TEA Performance Reporting Division (https://tea.texas.gov/texas-schools/accountability/academic-accountability/performance-reporting).

Armed Services Vocational Aptitude Battery Test (Grades 10-12)

A student in grades 10-12 will be offered an opportunity to take the Armed Services Vocational Aptitude Battery test and consult with a military recruiter.

The test shall be offered in the Fall and Spring Semesters on a designated day determined by the school principal.

Contact the principal for information about this opportunity.

Awards and Honors (Secondary Grade Levels Only)

"E" Awards

High School "E" awards shall be awarded in the areas of English, Science, Math, and Social Studies. Requirements for eligibility are as follows:

1. Completion of at least three semesters in a subject area at Edinburg High School, Edinburg North High School, Johnny Economedes High School, Robert Vela High School and UTRGV – ECISD Collegiate High School. This does not require consecutive semesters of work.
2. The student must be enrolled in a course in the areas at the time of eligibility or have completed the fourth semester during the current school year.
3. A grade average of at least ninety in all courses (related to subject area) while at Edinburg High School, Edinburg North High School, Johnny Economedes High School, Robert Vela High School and UTRGV – ECISD Collegiate High School. The grade average must be maintained during the current school year.
4. No summer school grades or courses shall be accepted in meeting the above-mentioned requirements.

Honor Roll Criteria for Middle and High School

"A" Honor Roll	90 average or above with no individual grade lower than a 90.
"A" and "B" Honor Roll	Students must have at least one 90 or above and the rest 80's in all subject areas.
"B" Honor Roll	80 average or above with no individual grade lower than an 80.

Backpacks

The use of backpacks by elementary and secondary students will be permitted.

However, secondary (middle & high school) students may only use clear backpacks. These must be clear plastic or vinyl. They should be completely transparent. School issued athletics and fine arts bags are allowed but must be secured in the locker-room or fine arts classroom upon arrival at school. Mesh backpacks are not allowed. A small non-transparent pouch or clutch bag (up to 6"x9") is permitted for personal hygiene or medical items. All other bags not meeting these specifications will not be permitted and will be confiscated. For more information contact your child's designated campus.

Bullying (All Grade Levels)

The district strives to prevent bullying, in accordance with the district's policies, by promoting a positive school culture; building healthy relationships between students and staff; encouraging reporting of bullying incidents, including anonymous reporting; and investigating and addressing reported bullying incidents.

Bullying is defined in state law as a single significant act or a pattern of acts by one or more students directed at another student that exploits an imbalance of power and involves engaging in written or verbal expression, expression through electronic means, or physical conduct that:

- Has the effect or will have the effect of physically harming a student, damaging a student's property, or placing a student in reasonable fear of harm to the student's person or of damage to the student's property

- Is sufficiently severe, persistent, or pervasive enough that the action or threat creates an intimidating, threatening, or abusive educational environment for a student
- Materially and substantially disrupts the educational process or the orderly operation of a classroom or school
- Infringes on the rights of the victim at school

Bullying includes cyberbullying. Cyberbullying is defined in state law as bullying that is done using any electronic communication device, including:

- A cellular or other type of telephone
- A computer
- A camera
- Electronic mail
- Instant messaging
- Text messaging
- A social media application
- An internet website
- Any other internet-based communication tool

Bullying is prohibited by the district and could include:

- Hazing
- Threats
- Taunting
- Teasing
- Confinement
- Assault
- Demands for money
- Destruction of property
- Theft of valued possessions
- Name-calling
- Rumor-spreading
- Ostracism

The district will integrate into instruction research-based content designed to reduce bullying that is appropriate for students' age groups.

Students in elementary grades will participate in:

- Instruction designed so that students can recognize bullying behaviors and how to report them
- Age-appropriate discussions that encourage peers to intervene when they observe bullying occur
- Instruction that characterizes bullying as a behavior that results from the student's need to acquire more mature social or coping skills, not an unchangeable trait

Students in secondary grades will participate in:

- Instruction on the brain's ability to change and grow so the student recognizes bullying behavior can come from a developmental need to acquire more social skills, can change when the brain matures and learns better ways of coping, and is not an unchangeable trait
- Discussions that portray bullying as undesirable behavior and a means for attaining or maintaining social status at school, and that discourage students from using bullying as a tool for social status
- Instruction designed so that students recognize the role that reporting bullying behaviors plays in promoting a safe school community

The district will use an age-appropriate survey regarding school culture that includes relevant questions on bullying to identify and address student concerns.

Each campus has a committee that addresses bullying by focusing on prevention efforts and health and wellness initiatives. The committee will include parents and secondary students. For more information on this committee,

including interest in serving on the committee, contact Sofia Hinojosa, Director of Student and Social Services, sofia.hinojosa@ecisd.us, (956) 289-2300 ext. 2024.

If a student believes that he or she has experienced bullying or witnesses the bullying of another student, the student or parent should notify a teacher, school counselor, principal, or another district employee as soon as possible. Any district employee aware of a report of a bullying incident will relay the report to an appropriate administrator. Procedures for reporting allegations of bullying may be found on the district's website.

A student may anonymously report an alleged incident of bullying by using the ECISD or campus website and clicking on the Anonymous Alerts to report the incident.

The administration will investigate any allegations of bullying and related misconduct. The district will also provide notice to the parents of the alleged victim and the parent of the student alleged to have engaged in bullying.

If an investigation determines that bullying occurred, the administration will take appropriate disciplinary action and may, in certain circumstances, notify law enforcement. Disciplinary or other action may be taken even if the conduct did not meet the definition of bullying.

The district will provide research-based interventions, which may include counseling options, for students who engage in bullying behaviors, students who are targeted by bullying behaviors, and any student who witnessed bullying behaviors.

Any action taken in response to bullying will comply with state and federal law regarding students with disabilities.

Available counseling options will be provided to the affected individuals including any student who witnessed the bullying.

Any retaliation against a student who reports an incident of bullying is prohibited.

Upon recommendation of the administration, the superintendent or superintendent's designee may transfer a student found to have engaged in bullying to another classroom at the campus. In consultation with the student's parents, the superintendent may transfer the student to another campus in the district.

The parent of a student who has been determined to be a victim of bullying may request that the student be transferred to another classroom or campus within the district. [See **Safety Transfers/Assignments** on page 14.]

A copy of the district's bullying policy is available in the principal's office, superintendent's office, and on the district's website, and is included at the end of this handbook as an appendix. Procedures related to reporting allegations of bullying may also be found on the district's website.

A student or parent who is dissatisfied with the outcome of an investigation may appeal through policy FNG(LOCAL).

[See **Safety Transfers/Assignments** on page 14, **Dating Violence, Discrimination, Harassment, and Retaliation** on page 41, **Hazing** on page 57, policy FFI, the district's Student Code of Conduct, and the district improvement plan, a copy of which can be viewed in the campus office or District Website.]

NOTE: Policy FFI addresses bullying of District students. For provisions regarding discrimination and harassment involving District students, see FFH.

Note that FFI shall be used in conjunction with FFH for certain prohibited conduct. For reporting requirements related to child abuse and neglect, see FFG.

Career and Technical Education (CTE) and Other Work-Based Programs (Secondary Grade Levels Only)

The Edinburg Consolidated Independent School District offers career and technical education programs in the following areas:

Agriculture, Food, and Natural Resources; Architecture and Construction, Arts, AV Technology and Communications, Business Management and Administration, Education and Training, Finance, Government and Public Administration, Health Science, Hospitality and Tourism, Human Services, Information Technology, Law, Public Safety, Corrections, and Security, Manufacturing, Marketing, Science, Technology, Engineering and Mathematics, and Transportation, Distribution, and Logistics.

Admission to these programs may be based on age and grade level as required by the Texas Education Agency.

District policy prohibits discrimination on the basis of race, color, national origin, sex, or handicap in its vocational programs, services, or activities, and provides equal access to the Boy Scouts and other designated youth groups as required by Title VI of the Civil Rights Act of 1964, as amended; Title IX of the Education Amendments of 1972; and Section 504 of the Rehabilitation Act of 1973, as amended.

The district will take steps to assure that lack of English language skills will not be a barrier to admission or participation in all educational and vocational programs.

For information about your rights or grievance procedures, contact the Title IX coordinator and the ADA/Section 504 coordinator.

[See **Nondiscrimination Statement** on page 68 for the name and contact information for the Title IX coordinator and ADA/Section 504 director.]

Celebrations (All Grade Levels)
Parents are not allowed to deliver food to a child, unless there is documented medical accommodation.

Although a parent or grandparent may provide food to share for a school-designated function or for a student's birthday, please be aware that children in the school may have severe allergies to certain food products. Discuss any classroom allergies with the teacher before bringing food to share.

Occasionally, the school or a class may host functions or celebrations tied to the curriculum that involve food. The school or teacher will notify students and parents of any known food allergies when soliciting potential volunteers to provide food.

[See **Food Allergies** on page 63.]

Change of Address and Telephone Number
It is important that the school maintains an up-to-date correct address/telephone record for your child in Skyward Account in case of an emergency or other administrative reasons. When changing address or telephone number occurs, parents shall notify school personnel immediately.

Child Abuse, Neglect, School Staff Misconduct, Trafficking, and Other Maltreatment of Children (All Grade Levels)
The district has established a plan for addressing child sexual abuse, neglect, school staff misconduct, trafficking, and other maltreatment of children, which may be initiated by contacting the Department of Family and Protective Services (DFPS) /Child Protective Services(CPS). The plan is available at **https://4.files.edl.io/db28/11/30/21/151936-f734a0e3-8295-4f83-816d-d3859e976d1e.pdf.** Abuse includes physical abuse, including sexual abuse, and mental and emotional abuse. Trafficking includes both sex and labor trafficking.

Duty to Report
Anyone who suspects that a child has been or may be abused or neglected has a legal responsibility, under state law, to report the suspected abuse or neglect to law enforcement or to Child Protective Services (CPS). See below for information about how to report and respond to allegations of child abuse or neglect.

Possible Warning Signs of Child Abuse, Neglect, School Staff Misconduct, Trafficking, and Other Maltreatment of Children

Physical Abuse
Possible warning signs of physical abuse include:

- Frequent injuries such as bruises, cuts, black eyes, or burns without adequate explanations
- Frequent complaints of pain without apparent injury
- Burns or bruises in unusual patterns that may indicate the use of an instrument or human bite; cigarette burns on any part of the body
- Lack of reaction to pain
- Extreme fear of going home or seeing parents

- Injuries that appear after a child has not been seen for several days
- Unseasonable clothing that may hide injuries to arms or legs

Sexual Abuse

Possible warning signs of sexual abuse include:

- Physical signs of sexually transmitted diseases
- Evidence of injury to the genital area
- Pregnancy in a young girl
- Difficulty in sitting or walking
- Extreme fear of being alone with adults of a certain sex
- Sexual comments, behaviors, or play beyond what is considered age-appropriate behavior
- Knowledge of sexual relations beyond what is expected for a child's age
- Sexual victimization of other children

Children and adolescents who have experienced dating violence may show similar physical, behavioral, and emotional warning signs. [See Dating Violence, Discrimination, Harassment, and Retaliation (All Grade Levels) and Consent to Instruction on Prevention of Child Abuse, Family Violence, Dating Violence, and Sex Trafficking]

Emotional Abuse

Possible warning signs of emotional abuse include:

- Over-compliance or low self-esteem caused by scapegoating or verbal abuse by caregivers
- Severe depression, anxiety, or aggression
- Lag in physical, emotional, and intellectual development
- Indicators of a caregiver who belittles the child, withholds love, and seems unconcerned about the child's problems
- Significant changes to behavior, such as withdrawal or over-aggression
- Significant changes to weight, such as substantial weight gain or weight loss

Neglect

Possible warning signs of neglect include:

- Obvious malnourishment
- Consistent lack of personal hygiene that poses a health risk
- Stealing or begging for food
- Child unattended for long periods of time
- Unaddressed need for dental care or other medical attention

School Staff Misconduct

Possible warning signs of school staff misconduct include:

- Inappropriate boundaries or communications with a student, including inappropriate relationships
- Violating school or district communication policies, such as improper use of messaging apps or social media
- Showing favoritism toward certain students in a way that compromises fairness or student well being
- Creating, using or sharing inappropriate AI-generated images involving students or staff
- Neglecting, abusing, or physically harming a student
- Providing alcohol or drugs to a student
- Being under the influence of alcohol or drugs while on school property or during school activities
- Possessing a weapon on school property or during school activities
- Committing a felony
- Engaging in fraudulent or deceptive practices involving the school system or State Board of Education Certification (SBEC)

Description and Warning Signs of Trafficking

Child trafficking of any sort is prohibited by the Penal Code. Sex trafficking involves forcing a person, including a child, into sexual abuse, assault, indecency, prostitution, or pornography. Labor trafficking involves forcing a person, including a child, to engage in forced labor or services.

Traffickers are often trusted members of a child's community, such as friends, romantic partners, family members, mentors, and coaches. Some traffickers contact victims online.

Possible warning signs of sexual trafficking in children include:

- Changes in school attendance, habits, friend groups, vocabulary, demeanor, and attitude
- Sudden appearance of expensive items (for example, manicures, designer clothes, purses, technology)
- Tattoos or branding
- Refillable gift cards
- Frequent runaway episodes
- Multiple phones or social media accounts
- Provocative pictures posted online or stored on the phone
- Unexplained injuries
- Isolation from family, friends, and community
- Older romantic partners

Additional warning signs of labor trafficking in children include:

- Being unpaid, paid very little, or paid only through tips
- Being employed but not having a school-authorized work permit
- Being employed and having a work permit but clearly working outside the permitted hours for students
- Owing a large debt and being unable to pay it off
- Not being allowed breaks at work or being subjected to excessively long work hours
- Being overly concerned with pleasing an employer and/or deferring personal or educational decisions to a boss
- Not being in control of his or her own money
- Living with an employer or having an employer listed as a student's caregiver
- A desire to quit a job but not being allowed to do so

[See **Consent to Instruction on Prevention of Child Abuse, Family Violence, Dating Violence, and Sex Trafficking** on page 4.]

Reporting and Responding to Child Abuse, Neglect, Trafficking, and Other Maltreatment of Children

A child who has experienced any type of abuse or neglect should be encouraged to seek out a parent or trusted adult. Children may be reluctant to disclose abuse and may only disclose sexual abuse indirectly. As a parent or trusted adult, it is important to be calm and comforting if your child or another child confides in you. Reassure the child that he or she did the right thing by telling you.

If your child is a victim of abuse, neglect, trafficking, or other maltreatment, the school counselor or principal will provide information on counseling options for you and your child available in your area. DFPS also manages early intervention counseling programs.

To find out what services may be available in your county, see Texas Department of Family and Protective Services, Programs Available in Your County (http://www.dfps.state.tx.us/Prevention_and_Early_Intervention/Programs_Available_In_Your_County/default.asp)

Reports of abuse, trafficking, or neglect may be made to the CPS division of the DFPS at 1-800-252-5400 or on the web at Texas Abuse Hotline Website (www.txabusehotline.org).

Further Resources on Sexual Abuse, Trafficking, and Other Maltreatment of Children

The following websites include resources to help increase awareness of child abuse and neglect, sexual abuse, trafficking, and other maltreatment of children:

- Child Welfare Information Gateway (https://www.childwelfare.gov/pubPDFs/*whatiscan*.pdf)
- KidsHealth, For Parents, Child Abuse (https://kidshealth.org/en/parents/child-abuse.html)
- Office of the Texas Governor's Child Sex Trafficking Team (https://gov.texas.gov/organization/cjd/childsextrafficking)

- Human Trafficking of School-aged Children (https://tea.texas.gov/about-tea/other-services/human-trafficking-of-school-aged-children)
- Child Sexual Abuse: A Parental Guide from the Texas Association Against Sexual Assault (https://taasa.org/product/child-sexual-abuse-parental-guide/)
- National Center of Safe Supportive Learning Environments: Human Trafficking in America's Schools (https://safesupportivelearning.ed.gov/human-trafficking-americas-schools)

Class Rank/Highest-Ranking Student (Secondary Grade Levels Only)

The following procedure for class rank calculation must be adhered to as outlined in our district policy EIC(LOCAL), under the Texas Education Code §74.12 Subchapter B, Graduation Requirements as aligned with TEA updates.

As per EIC(LOCAL) policy: The district shall include in the calculation of class rank semester grades earned in high school credit courses taken in grades 9-12 in the following subject areas only:

English, LOTE (Languages other than English), mathematics, science and social studies as outlined by the Texas Education Code §74.12.

For classes included in the ranking, a student's grade shall be weighted before averaging according to the scale adopted for each level of course designation. Classes shall be categorized and weighted eligible courses as Advanced Placement (AP), Dual Enrollment, Pre-AP, Advanced, Honors, and Regular.

Only approved ECISD designated courses shall receive the points for ranking purposes.

Weighted Numerical Grade Point Average

For grade point average (GPA) purposes for the graduating classes of 2022, 2023, 2024, 2025, the District shall assign weights to semester grades earned in eligible courses and shall calculate a weighted numerical GPA in accordance with the following:

Category	Weight
AP courses	plus 10
Dual enrollment courses	plus 10
Pre-AP courses	plus 6
Honors courses	plus 6
Advanced courses	plus 3
Regular courses	plus 0

The District shall record unweighted numerical grades on student transcripts.

For grade point average (GPA) purposes beginning with the graduating class of 2026, the District shall assign weights to semester grades earned in eligible courses and shall calculate a weighted numerical GPA in accordance with the following:

Category	Weight
AP courses	plus 12
Dual enrollment courses	plus 10

Pre-AP courses	plus 6
Honors courses	plus 6
Advanced courses	plus 3
Regular courses	plus 0

The District shall record unweighted numerical grades on student transcripts.

Transferred Grades

When a student transfers semester grades for courses that would be eligible under the regular category and the District has accepted the credit, the District shall include the grades in the calculation of class rank.

When a student transfers semester grades for courses that would be eligible to receive additional weight under the District's weighted grade system, the District shall assign additional weight to the grades based on the categories and grade weight system used by the District.

The calculation of class rank shall exclude grades earned in:

1. Summer school courses
2. Correspondence courses
3. High school credit earned before the ninth grade
4. Any course taken through a credit recovery program
5. Independent studies courses
6. Any distance learning course
7. A dual credit course taken anywhere other than the district high school
8. Any course taken through credit by examination, with or without prior instruction
9. Duplicated course(s) where student has previously received HS credit

   Example: U.S. History taken in the 10th grade
   U.S. History DE taken in the 11th grade
   Student may earn college credit but will not earn the weighted points (10 pts for a dual enrollment course) on their class rank

Honor Graduates

To determine the top ten percent graduates, the District shall calculate class rank in accordance with the policy and administrative regulations by using grades available at end of the seventh semester. [For more information see policy EIC(LOCAL)]

Class Schedules (Secondary Grade Levels Only)

All students are expected to attend school for the entire school day and maintain a full class schedule. Exceptions may be made occasionally by the campus principal for students in grades 9-12 who meet specific criteria and receive parental consent to enroll in less than a full-day schedule.

[See **Schedule Changes** on page 76 for information related to student requests to revise their course schedule.]

Class Changes (Secondary Grade Levels Only)

The principal is authorized to change/transfer a student from one class to another.

College and University Admissions and Financial Aid (All Grade Levels)

For two school years following graduation, a district student who graduates as valedictorian or in the top ten percent of his or her class is eligible for automatic admission into four-year public universities and colleges in Texas if the student meets one of the following requirements:

- Completes the distinguished level of achievement under the foundation graduation program [see **Foundation Graduation Program** on page 53]; or
- Satisfies the ACT College Readiness Benchmarks or earns at least 1500 out of 2400 on the SAT.

- Beginning in the fall of 2028, achieves a score set by the Texas Higher Education Coordinating Board on a college entrance examination designed by coordinating board rules

The student is ultimately responsible for meeting the admission requirements of the university or college, including timely submission of a completed application.

If a college or university adopts an admissions policy that automatically accepts the top 25 percent of a graduating class, the provisions above will also apply to a student ranked in the top 25 percent of his or her class.

The University of Texas at Austin may limit the number of automatically admitted students to 75 percent of the University's enrollment capacity for incoming resident freshmen. From the summer/fall 2026 term through the spring 2027 term, the University will admit the top five percent of a high school's graduating class who meet the above requirements. Additional applicants will be considered by the University through a holistic review process.

As required by law, the district will provide written notice concerning the following:

- Automatic college admission
- Curriculum requirements for financial aid college
- Benefits of completing the requirements for automatic admission and financial aid
- The Texas First Early High School Completion Program, which requires a student to provide an official copy of assessment results and transcripts, as applicable, to receive credit for the assessments and credits required for early graduation under the program
- The Texas First Scholarship Program
- The Future Texas Teachers Scholarship Program

Parents and students will be asked to sign an acknowledgment that they received this information.

Students and parents should contact the school counselor, financial aid officer or the campus principal for further information about automatic admissions, the application process, and deadlines.

[See **Class Rank/Highest-Ranking Student** on page 29 for information specifically related to how the district calculates a student's rank in class, and requirements for **Graduation** on page 52 for information associated with the foundation graduation program.]

[See **Students in the Conservatorship of the State (Foster Care)** on page 15 for information on assistance in transitioning to higher education for students in foster care.]

College Credit Courses (Secondary Grade Levels Only)

Students in grades 9-12 may earn college credit through the following opportunities:

- Certain courses taught at the high school campus, which may include courses termed dual credit, Advanced Placement (AP), International Baccalaureate (IB), or college preparatory
- Enrollment in courses taught in conjunction and in partnership with STC and/or UTRGV*,* which may be offered on or off campus
- Enrollment in courses taught at other colleges or universities

Enrollment in these programs is based on student eligibility requirements.

Under the Financial Aid for Swift Transfer (FAST) program, a student may be eligible to enroll at no cost to the student in dual credit courses at a participating institution of higher education. The FAST program allows students who are or have been educationally disadvantaged at any time during the four years preceding the student's enrollment in a dual credit course to enroll at no cost to the student. The district will determine eligibility upon the student's enrollment in the dual credit course. See the financial aid officer for more information.

A student may be eligible for subsidies based on financial need for AP or IB exam fees. See **Fees (All Grade Levels)** on page 49 for more information.

A student may also earn college credit for certain Career and Technical Education (CTE) courses. See **Career and Technical Education (CTE) and Other Work-Based Programs (Secondary Grade Levels Only)** on page 25 for information on CTE and other work-based programs.

For dual credit purposes, all these methods have eligibility requirements and must be approved prior to enrollment in the course. Please see the school counselor for more information. Depending on the student's grade level and the course, a state-mandated end-of-course assessment may be required for graduation.

Not all colleges and universities accept credit earned in all dual credit or AP courses taken in high school for college credit. Students and parents should check with the prospective college or university to determine if a particular course will count toward the student's desired degree plan.

Communications (All Grade Levels)

Parent Contact Information

A parent is legally required to provide in writing the parent's contact information, including address, phone number, and email address.

A parent must provide the contact information to the district upon enrollment and again within two weeks after the beginning of each following school year while the student is enrolled in the district.

If the parent's contact information changes during the school year, the parent must update the information in writing no more than two weeks after the date the information changes.

A parent may update contact information in Skyward and/or by contacting the school's attendance office.

Automated Emergency Communications

The district will rely on contact information on file with the district to communicate with parents in an emergency situation, which may include real-time or automated messages. An emergency situation may include early dismissal, delayed opening, or restricted access to the campus due to severe weather, another emergency, or a security threat. It is crucial to notify your child's school when a phone number changes.

[See **Safety** on page 75 for information regarding contact with parents during an emergency situation.]

Automated Nonemergency Communications

Your child's school periodically sends information by automated or pre-recorded messages, text messages, or real-time phone or email communications that are closely related to the school's mission and specific to your child, your child's school, or the district so prompt notification of any change in contact Information will be crucial.

Standard messaging rates of your wireless phone carrier may apply.

If you do not wish to receive such communications, please contact your child's principal. [See **Safety** on page 75 for information regarding contact with parents during an emergency.]

Communication between Home and School (Elementary Grade Levels Only)

The instructional day (**classes)** for the students begins promptly at **8:00 a.m.** and ends at **3:15 p.m.** It is very important that we abide by these hours.

If you drive your child to school, ensure that he/she is in the classroom by **7:45 a.m.** Breakfast will be served from **7:45 a.m.** to **8:00 a.m.** Instruction starts at **8:00 a.m.**

Good communication between home and school is essential for the student to make the most of the educational opportunities provided to him/her.

School communication includes newsletters, electronic correspondence, and district parent link, information documents, progress reports, report cards, letters, homework assignments, telephone calls and parent/ teacher/student conferences.

Any parent who wishes to schedule a conference may do so by calling the school's office for an appointment.

Please note:

- Transportation arrangement shall be made prior to 8:00 A.M. between parent and student and communicated to front office secretary/teacher.
- Mode of transportation cannot be changed after 2:00 P.M.

Complaints and Concerns (All Grade Levels)

Usually, student or parent complaints or concerns can be addressed informally by a phone call or a conference with the teacher or principal.

For those complaints and concerns that cannot be resolved informally, the board has adopted a Student and Parent Complaints/Grievances policy at FNG(LOCAL) in accordance with Education Code Chapter 26A. This policy describing the grievance process in detail is available in the district's online policy manual, available online at https://www.ecisd.us and is attached to this handbook as an appendix. A parent may file a grievance by submitting the district grievance form to the campus principal. The district's grievance forms are available on the district's website at https://www.ecisd.us and at the principal's or superintendent's office. A parent may also submit a grievance electronically by completing and emailing the district grievance forms to the campus principal.

In general, the written grievance form should be completed and submitted to the campus principal in a timely manner.

[If the district's policy includes a conference with an administrator in the central office before a conference with the superintendent, include that here.]

If the concern is not resolved, a parent or student may appeal to the superintendent or superintendent's designee.

If the concern is still unresolved, the district provides a process for parents and students to appeal to the board of trustees.

Hearings at each level will be conducted in accordance with the timeless established by law described in the district's policy at FN (LOCAL).

Conduct (All Grade Levels)

Applicability of School Rules

The board has adopted a Student Code of Conduct that defines standards of acceptable behavior — on and off campus, during remote and in-person instruction, and on district vehicles — and outlines consequences for violation of these standards. The district has disciplinary authority over a student in accordance with the Student Code of Conduct. Students and parents should be familiar with the standards set out in the Student Code of Conduct, as well as campus and classroom rules.

During summer instruction, the Student Handbook and Student Code of Conduct in place for the school year immediately preceding the summer period shall apply, unless the district amends either or both documents for the purposes of summer instruction.

EXHIBIT A
Infractions and Consequences
For ECISD Students
(All Grade Levels)

Purpose: To have fair and consistent consequences for infractions of schools rules and policies.

Procedures: Every teacher and administrator will be required to post and follow the infraction and consequence list.

In addition to the level of infraction, the students' prior conduct and behavior will be weighted by the administration in administering the consequences.

Consequences for Level I infractions is administered by campus personnel as specified.

Consequences for Level II-V infractions can only be administered by the Principal or Assistant Principal.

Campus police may become involved in infractions which are indicated by an asterisk (*).

LEVEL I INFRACTIONS	**CONSEQUENCE**
Excessive talking Off-task behavior Littering Disturbing class Dress Code Violations (if correctable immediately) Eating/Drinking in class	***Any Campus Personnel*** Verbal and/or Documented warning
Horse playing No books/Materials Sleeping in class Spitting on school and personal property 3rd tardy to a particular class	***Classroom Teacher/Administrator*** Student/teacher conference Calling parent/guardian Refer to counselor Documented parent/teacher conference After school detention by Teacher Repeated Level I Infractions will be upgraded to Level II. Requires the Administrator to make parent contact.

LEVEL II INFRACTION	**CONSEQUENCE**
Cheating/Plagiarizing Displays of intimate behavior **Excessive tardies** Insubordination Leaving campus without permission **Leaving the classroom without permission** Possessing matches/ lighters Repeated dress code violations *Bus referral *Posting or distributing unauthorized written materials *Possessing tobacco/paraphernalia *Truancy/skipping *Selling or soliciting for sale any merchandise on school campus without the authorization of the building principal * Possession of prohibited personal communication/ electronic device	Repeated Level I offenses: 1 day ISS First Offense: 1 day ISS Second Offense: 2 days ISS * Parent contact/ conference required for action taken * Students with disabilities must reference TEC 37.004 * Students who are McKinney-Vento must reference TEC 37.005(d)

LEVEL III INFRACTION	CONSEQUENCE
* Bullying * Damaging property * Dating violence * Discrimination * Gambling or possessing gambling paraphernalia * Disruptive behavior in class (including remote conferencing learning) * Interrupting/disturbing another teacher/campus during virtual class without permission * Making obscene or indecent gestures towards others * Pushing, shoving, or hitting (not considered a fight) * Retaliation * Using vulgar and/or profane language * Possession of a pocketknife (not illegal) * Falsifying or changing permanent student records or documents ** Verbal confrontation ** Instigating a fight	First Offense: 1 day ISS (max) Second or Repeated Offenses: 2 days ISS (max) **Discretionary Placement:** repeated Level III infractions may result in DAEP placement. ** Parent conference required for action taken ** Discretionary suspension * Students with disabilities must reference TEC 37.004 * Students who are McKinney-Vento must reference TEC 37.005(d)

LEVEL IV INFRACTION	CONSEQUENCE
Copying, sending, posting or **re-posting** messages that are inappropriate on or off school property *Disruptive behavior in ISS *Any Level III (2nd offense) *Fighting *Gang related violence *Gang related violence *Inappropriate touching *Inappropriate use of the internet (such as pornography) *Inflicting physical abuse *Possession of drug paraphernalia *Possession of published or electronic material that is designed to promote or encourage illegal behavior or could threaten school safety (unauthorized photography/video) on or off school property *Showing defiance, disrespect, disobedience and non-compliance with school administration *Starting a food fight *Stealing *Threatening blackmail or extortion *Using the Internet to threaten employees, or cause disruption, to the educational program	1 day suspension 2-day suspension (max) **Discretionary Placement:** repeated Level IV infractions may result in DAEP placement. * Parent contact/conference required for action taken * Students with disabilities must reference TEC 37.004 * Students who are Mc-Kinney-Vento must reference TEC 37.005(d)

LEVEL V INFRACTION	CONSEQUENCE
*Behavior requiring mandatory removal to AEP as specified by Chapter 37 and as outlined in the Student Code of Conduct *Graffiti *Inciting violence/riot *Inflicting property damage (malicious destruction, mutilation or defacement of school or personal property) *Making bomb threats *Making terroristic threats *Possessing, selling or using fireworks or explosives *Possessing or using alcohol *Possessing, using or selling narcotics, inhalants or controlled substance *Setting a fire *Setting off fire extinguishers *Sounding false fire alarms * Assault (Penal Code 22.01 (a) (1) (see glossary))	Suspension- Maximum 3 day and mandatory DAEP placement. *Administrator- Conference required for the suspension and/or DAEP action taken.
***Committing sex violations** ***Firearms** ***Location-restricted knife** (as described by the penal code) ***Possessing, concealing and/or using any instrument that inflicts serious bodily injury or death**	Offenses in **bold** print require mandatory expulsions to JJAEP
VAPING RELATED INFRACTIONS	
Vapes: **Possessed, Sold, Gave, Used, or Delivered** a vape with Marihuana or Tetrahydrocannabinol -- does not include nicotine, compound mixture, oil, seeds etc	Suspension-Maximum 3 days and mandatory 30 instructional days at DAEP placement *Parent contact conference required for action taken
Vapes: **Under the influence** by using a vaping device with Marihuana or Tetrahydrocannabinol (THC) or of any other controlled substance	Suspension-Maximum 3 days and mandatory 20 instructional days at DAEP placement *Parent contact conference required for action taken
Vapes: **Possessed, Sold, Gave, Used, or Delivered** a vape with any other substances like compound mixture, oil, seeds etc (Not Marihuana or Tetrahydrocannabinol (THC)	Suspension-Maximum 3 days and mandatory 30 instructional days at DAEP placement *Parent contact conference required for action taken
Vapes: **Possession or use of an e-cigarette/vape with nicotine** (not THC, not marihuana, not any other controlled substance)	1st Offense – 10 Days of ISS 2nd Offense – 15 Days of ISS 3rd Offense – 20 Days of ISS 4th Offense – +5 Days of ISS to the last Placement **** A student *may* be placed in DAEP (discretionary) if the student possesses or uses an e-cigarette****

MANDATORY DAEP PLACEMENTS AS A RESULT OF:

- Any student **under the influence** of any prohibited substance (alcohol, vape with controlled substance, marihuana, etc) will result in a minimum placement at DAEP for **20 instructional school days.**
- Any student who **possesses, sells, gives, or delivers to another person any substance** (includes marihuana, alcohol, electronic vaping devices with controlled substances) will result in a minimum placement at DAEP for **30 instructional school days.**
- Possession of any controlled substance (felony charge) will result in a minimum placement at DAEP/JJAEP for **45 instructional school days.**
- Second or subsequent possession of marijuana/vape with controlled substance/alcohol charges will result in placement to DAEP for a minimum of **45 instructional school days.**
- Conduct that meets the element(s) of an assault (as described in the Penal Code 22.01 (a) (1) (see glossary) will result in a placement at the DAEP for **30 to 60 instructional school days.**

DISCRETIONARY DAEP PLACEMENTS AS A RESULT OF:

- Reasonable ***belief** conduct away from school that would be a non-Title V felony and is to be considered a threat to safety or a detriment to the educational setting/process, may result in removal to the DAEP.
- Principal has final decision on the number of days for discretionary removals to the DAEP.

*In forming the reasonable belief, superintendent or designee may consider all available information, including notice from police.

NOTE:

- The final decision for the number of days for discretionary or mandatory placement is to be set by the principal or designee.
- Students placed in the DAEP are excluded from participating in extra-curricular activities time/days assigned to the alternative school.

DRESS CODE VIOLATIONS	CONSEQUENCE
Violation of dress code (not immediately correctable)	1st Offense – Documented warning (referral) 2nd Offense – sent home to change or ISS 3rd Offense or more – Level II Offense
PROHIBITED ITEMS VIOLATIONS	**CONSEQUENCE**
21ST Century Technology Devices, electronic devices not being used for instructional purposes, personal electronic entertainment devices, cell phones (text messaging), will not be allowed during the instructional day. Cameras, Camera cell phones, CD Players, Radios, Tape Recorders, MP3's, PSP's, Gameboys, Video Games, earbuds, headphones and any other type of electronic video games, Bluetooth speakers	1st Offense – confiscated electronic devices will be returned to student after an administrative fee of $15.00 has been paid as per FNCE (local 2nd Offense- will be returned to parent/guardian after an administrative fee of $15.00 has been paid as per FNCE (local) 3rd Offense – further disciplinary action as set forth by the student code of conduct

Use of Personal Communication Devices

Use of personal communication devices/cell phones for non-instructional purposes will only be allowed for use after the end of the instructional day. (**HB 1481**)

NOTES

*Criminal charges will be filed by school staff as appropriate and mandated by law.
*Parent conferences phone or in person are mandatory for all suspensions. Students may not be allowed back to school without parent/administrators conference for level 4 and level 5 infractions.

ADDITIONAL NOTE

*Principals may use other options as individual cases warrant such as:

1. restitution of damages
2. written apology
3. written essay
4. administrative contract

- The campus and or school district will not be responsible for the investigation, or cost of lost, damaged, or stolen media devices.

Final Note:
Students will not be allowed to leave a classroom to go to another classroom. Teachers may not give permission to a student to go to another classroom to complete assignments or activities, only campus administration may grant permission for a student to go to another classroom during a regularly scheduled class.

Campus Behavior Coordinator

Each campus has a campus behavior coordinator to apply discipline management techniques and administer consequences for certain student misconduct, as well as provide a point of contact for student misconduct. The contact information for each campus behavior coordinator is available on the district's website at https://www.ecisd.us. (Note: The Principal of a campus has the final authority regarding discipline matters.)

Deliveries

Except in emergencies, delivery of messages or packages to students will not be allowed during instructional time. A parent may leave a message or a package, such as a forgotten lunch, for the student to pick up from the front office during a passing period or lunch.

Disruption of School Operations

Disruption of school operations is not tolerated and may constitute a misdemeanor offense. As identified by state law, disruptions include the following:

- Interference with the movement of people at an exit, entrance, or hallway of a district building without authorization from an administrator.
- Interference with an authorized activity by seizing control of all or part of a building.
- Use of force, violence, or threats in an attempt to prevent participation in an authorized assembly.
- Use of force, violence, or threats to cause disruption during an assembly.
- Interference with the movement of people at an exit or an entrance to district property.
- Use of force, violence, or threats in an attempt to prevent people from entering or leaving district property without authorization from an administrator.

Disruption of classes or other school activities while on or within 500 feet of district property includes:

- Making loud noises
- Trying to entice a student away from, or to prevent a student from attending, a required class or activity
- Entering a classroom without authorization and disrupting the activity with loud or profane language or any misconduct

Interference with the transportation of students in vehicles owned or operated by the district is also considered a disruption.

Social Events

School rules apply to all school social events. Guests attending these events are expected to observe the same rules as students, and a student inviting a guest will share responsibility for the conduct of his or her guest.

A student attending a social event will be asked to sign out when leaving before the end of the event and will not be readmitted.

A parent interested in serving as a chaperone for any school social events should contact the campus principal.

Counseling

The district has a comprehensive school counseling program that includes:

- A guidance curriculum to help students develop their full educational potential, including the student's interests and career objectives
- A responsive services component to intervene on behalf of any student whose immediate personal concerns or problems put the student's continued educational, career, personal, or social development at risk
- An individual planning system to guide a student as the student plans, monitors, and manages the student's own educational, career, personal, and social development
- Systems to support the efforts of teachers, staff, parents, and other members of the community in promoting the educational, career, personal, and social development of students

The district will make a preview of the program, including all materials and curriculum, available to parents to review during school hours.

Academic Counseling

Elementary and Middle/Junior High School Grade Levels

The school counselor will provide information to students and parents about college and university admissions and the importance of planning for post-secondary education, including appropriate coursework and financial aid availability and requirements.

In either grade 7 or 8, each student will receive instruction on how best to prepare for high school, college, and a career.

High School Grade Levels

High school students and their parents are encouraged to talk with a school counselor, teacher, or principal to learn more about course offerings, graduation requirements, and early graduation procedures.

Each year, high school students will be provided with information on anticipated course offerings for the next school year, how to make the most of academic and career and technical education (CTE) opportunities, and the importance of postsecondary education.

The school counselor and financial aid officer will also provide information each year a student is enrolled in high school regarding:

- The importance of postsecondary education
- The advantages of earning an endorsement and completing the foundation program with the distinguished level of achievement
- The disadvantages of pursuing a high school equivalency exam (GED) as opposed to earning a high school diploma
- Financial aid eligibility and how to apply for financial aid
- Automatic admission to state-funded Texas colleges and universities
- Eligibility requirements for the TEXAS Grant
- Availability of district programs that allow students to earn college credit
- Availability of tuition and fee assistance for postsecondary education for students in foster care
- Availability of college credit awarded by institutions of higher education to veterans and military service members for military experience, education, and training

Additionally, the school counselor may provide information about workforce opportunities after graduation or technical and trade school opportunities, including opportunities to earn industry-recognized certificates and licenses.

[See **Scholarships and Grants** on page 56 for more information.]

Personal Counseling (All Grade Levels)
The school counselor and social worker are available to assist students with a wide range of personal, social, and family matters, including emotional and/or mental health issues and substance abuse. A student who wishes to meet with the school counselor should report to the Counseling and Guidance Office. As a parent, if you are concerned about your child's mental and/or emotional health, please speak with the school counselor for a list of resources that may be of assistance.

If your child has experienced trauma, contact the school counselor for more information.

[See **Mental Health Support** on page 61, and **Child Abuse, Neglect, School Staff Misconduct, Trafficking, and Other Maltreatment of Children** on page 26 and **Dating Violence** on page 41.]

A Licensed Professional Counselor is available within the school district to provide services for our youth. Parents and/or students wishing to learn more about the varied services offered by this office should contact the school principal and/or the school counselor. In addition, the school district offers the services of social workers. These staff members work with individual students and families to provide them with necessary resources.

All high school students have access to the services and information provided by the campus Financial Aid Officer. The Financial Aid Officer assists students and families in obtaining information about colleges, admissions, and financial aid for post-secondary education.

Course Credit (Secondary Grade Levels Only)
A student at any grade level enrolled in a high school course will earn credit for the course only if the final grade is 70 or above. For a two-part (two-semester, 1-credit course), the student's grades from both halves (semesters) will be averaged and credit will be awarded if the combined average is 70 or above. If the student's combined average is less than 70, the student will be awarded credit only for the half (semester) with the passing grade.

Credit by Examination — If a Student Has Taken the Course/Subject (Grades 6-12)
A student who has previously taken a course or subject but did not receive credit or a final grade for it, may in circumstances determined by the principal or attendance committee, be permitted to earn credit or a final grade by passing an examination approved by the district's board of trustees on the essential knowledge and skills defined for that course or subject.

Examples of prior instruction include incomplete coursework due to a failed course or excessive absences, homeschooling, or coursework by a student transferring from a nonaccredited school. The opportunity to earn credit after the student has had prior instruction is sometimes referred to as "credit recovery."

The attendance review committee may also offer a student with excessive absences an opportunity to earn credit for a course by passing an examination.

If a student is granted approval to take an examination for credit, the student must score at least 70 on the examination to receive credit for the course or subject.

[See the school counselor and policy EHDB(LOCAL) for more information.]

Credit by Examination for Advancement/Acceleration — If a Student Has Not Taken the Course/Subject
A student will be permitted to earn credit by examination for an academic course or subject area for which the student had no prior instruction for advancement or to accelerate to the next grade level.

The examinations offered by the district are approved by the district's board of trustees. Testing windows for these examinations will be published in district publications through the Assessment & Evaluation Department and on the district's website. A student may take a specific examination only once per testing window.

The only exceptions to the published testing windows will be for examinations administered by another entity or to accommodate a student experiencing homelessness or a student involved in the foster care system.

When another entity administers an examination, the student and the district must comply with the testing schedule of the other entity.

If a student plans to take an examination, the student or parent must register with the school counselor no later than 30 days prior to the scheduled testing date. [See policy EHDC for more information.]

Kindergarten Acceleration

The requirements for kindergarten acceleration are as follows:

- A score of 80 percent or above on readiness tests or achievement tests as provided by the district in the areas of language arts, mathematics, science, and social studies.
- A district representative recommends that the student be accelerated; and
- The student's parent or guardian gives written approval for the acceleration.

Students in Grades 1-5

A student in elementary school is eligible to accelerate to the next grade level if the student meets all of the following requirements:

- The student scores at least an 80 on each examination in the subject areas of language arts, mathematics, science, and social studies;
- A district administrator recommends that the student be accelerated; and
- The student's parents give written approval of the grade advancement.

Students in Grades 6-12

A student in grade 6 or above is eligible to earn course credit if the student meets one of the following requirements:

- A passing score of at least 80 on an examination approved by the board; or
- A scaled score of 50 or higher on an examination administered through the College Level Examination Program (CLEP); or
- A score of 3 or higher on an AP examination, as applicable.

A student may take an examination to earn high school course credits no more than twice. If a student fails to achieve the designated score on the applicable exam before the beginning of the school year in which the student would need to enroll in the course according to the school's high school course sequence, the student must complete the course.

Dating Violence, Discrimination, Harassment, and Retaliation (All Grade Levels)

Students learn best, and their welfare is best served, in a school environment that is free from dating violence, discrimination, harassment, and retaliation.

Students are expected to treat peers and district employees with courtesy and respect, avoid offensive behaviors, and stop those behaviors as directed. District employees are likewise expected to treat students with courtesy and respect.

The board has established policies and procedures to prohibit and promptly address inappropriate and offensive behaviors that are based on a person's race, color, religion, sex, gender, national origin, age, disability, or any other basis prohibited by law. A copy of the district's policy is available in the principal's office and in the superintendent's office or on the district's website https://www.ecisd.us. [See policy FFH for more information.]

Dating Violence

Dating violence will not be tolerated at school. To report dating violence, see **Reporting Procedures**, on page 43.

Dating violence occurs when a person in a current or past dating relationship uses physical, sexual, verbal, or emotional abuse to harm, threaten, intimidate, or control the other person in the relationship or any of the person's past or subsequent partners. This type of conduct is considered harassment if it is so severe, persistent, or pervasive that it affects a student's ability to participate in or benefit from an educational program or activity; creates an intimidating, threatening, hostile, or offensive educational environment; or substantially interferes with the student's academic performance.

Examples of dating violence against a student may include, but are not limited to:

- Physical or sexual assaults
- Name-calling
- Put-downs
- Threats to hurt the student, the student's family members, or members of the student's household
- Destroying property belonging to the student

- Threats to die by suicide or homicide if the student ends the relationship
- Threats to harm a student's past or current dating partner
- Attempts to isolate the student from friends and family
- Stalking
- Encouraging others to engage in these behaviors

In accordance with law, when the district receives a report of dating violence, a district official will immediately notify the parent of the alleged victim and alleged perpetrator.

The counselor's office has information about the dangers of dating violence and resources for seeking help.

For more information on dating violence, see:

- Texas Attorney General's office recognizing and responding to dating violence flier (https://www.texasattorneygeneral.gov/sites/default/files/files/child-support/papa/session%2010/recognizing-relationship-violence-en.pdf)
- The CDC's Preventing Teen Dating Violence (https://www.cdc.gov/violenceprevention/intimatepartnerviolence/teendatingviolence/fastfact.html)

[See **Consent to Instruction on Prevention of Child Abuse, Family Violence, Dating Violence, and Sex Trafficking** on page 4.]

Discrimination

Discrimination is defined as any conduct directed at a student on the basis of race, color, religion, sex, gender, national origin, age, disability, or any other basis prohibited by law that negatively affects the student.

Harassment

Harassment, in general terms, is conduct so severe, persistent, or pervasive that it affects a student's ability to participate in or benefit from an educational program or activity; creates an intimidating, threatening, hostile, or offensive educational environment; or substantially interferes with the student's academic performance.

Examples of harassment may include, but are not limited to:

- Offensive or derogatory language directed at a person's religious beliefs or practices, accent, skin color, or need for accommodation
- Threatening, intimidating, or humiliating conduct
- Offensive jokes, name-calling, slurs, or rumors
- Physical aggression or assault
- Graffiti or printed material promoting racial, ethnic, or other negative stereotypes
- Other kinds of aggressive conduct such as theft or damage to property

Sexual Harassment and Sex-Based Harassment

Sexual harassment and sex-based harassment of a student by an employee, volunteer, or another student are prohibited.

Examples of sexual harassment may include, but are not limited to:

- Touching private body parts or coercing physical contact that is sexual in nature
- Sexual advances
- Jokes or conversations of a sexual nature
- Other sexually motivated conduct, communications, or contact

Sexual harassment of a student by an employee or volunteer does not include necessary or permissible physical contact that a reasonable person would not construe as sexual in nature, such as comforting a child with a hug or taking the child's hand. However, romantic, sexual, and other inappropriate social relationships between students and district employees are prohibited, even if consensual.

Pregnancy or Related Conditions

The district does not discriminate on the basis of pregnancy or a related condition. Please contact Mrs. Norma Santa Maria, Director of Federal Programs, by email n.ramos@ecisd.us, by phone at (956) 289-2300 ext. 2097 or by mail at 411 N. 8th Ave., Edinburg, Texas, 78541 for pregnancy-related accommodations.

Retaliation

Retaliation against a person who makes a report or participates in an investigation of discrimination, harassment, or dating violence is prohibited.

Reporting Procedures

Any student who believes that he or she has experienced dating violence, discrimination, harassment, or retaliation should immediately report the problem to a teacher, school counselor, principal, or other district employee. The report may be made by the student's parents. [See policy FFH and FFH (EXHIBIT) for other appropriate district officials to whom to make a report.]

Upon receiving a report, the district will determine whether the allegations, if proven, constitute prohibited conduct as defined by policy FFH. If not, the district will refer to policy FFI to determine whether the allegations, if proven, constitute bullying, as defined by law and policy FFI. If the alleged prohibited conduct also meets the statutory and policy definitions for bullying, an investigation of bullying will also be conducted. [See **Bullying** on page 23]

The district will promptly notify the parent of any student alleged to have experienced prohibited conduct involving an adult associated with the district. In the event alleged prohibited conduct involves another student, the district will notify the parent of the student alleged to have experienced the prohibited conduct when the allegations, if proven, would constitute a violation as defined by policy FFH.

Investigation of Report

Allegations of prohibited conduct, which includes dating violence, discrimination, harassment, and retaliation, will be promptly investigated.

To the extent possible, the district will respect the privacy of the student. However, limited disclosures may be necessary to conduct a thorough investigation and comply with law.

If a law enforcement or other regulatory agency notifies the district that it is investigating the matter and requests that the district delay its investigation, the district will resume its investigation at the conclusion of the agency's investigation.

During an investigation and when appropriate, the district will take interim action to address the alleged prohibited conduct.

If the district's investigation indicates that prohibited conduct occurred, appropriate disciplinary action and, in some cases, corrective action will be taken to address the conduct. The district may take disciplinary and corrective action even if the conduct was not unlawful.

All involved parties will be notified of the outcome of the district investigation within the parameters and limits allowed under the Family Educational Rights and Privacy Act (FERPA).

A student or parent who is dissatisfied with the outcome of the investigation may appeal in accordance with policy FNG(LOCAL).

Discrimination

[See **Dating Violence, Discrimination, Harassment, and Retaliation** on page 41.]

Distribution of Literature, Published Materials, or Other Documents (All Grade Levels)

School Materials

Publications prepared by and for the school may be posted or distributed, with the prior approval of the principal, sponsor, or teacher. Such items may include school posters, newspapers, yearbooks, brochures, flyers, and the like.

All school publications are under the supervision of a teacher, sponsor, and the principal.

Non-school Materials

From Students

Students must obtain prior approval from the principal before selling, posting, circulating, or distributing more than ten copies of written or printed materials, handbills, photographs, pictures, films, tapes, or other visual or

auditory materials that were not developed under the oversight of the school. To be considered, any non-school material must include the name of the sponsoring person or organization. Approval will be granted or denied within two school days.

The principal has designated a bulletin board as the location for approved non-school materials to be placed for voluntary viewing or collection by students. [See policy FNAA for more information.]

A student may appeal a decision in accordance with policy FNG(LOCAL). Any student who sells, posts, circulates, or distributes non-school material without prior approval will be subject to disciplinary action in accordance with the Student Code of Conduct. Materials displayed without approval will be removed.

[See policy FNG(LOCAL) for student complaint procedures.]

From Others

No person or group will sell, circulate, distribute, or post on any district premises written or printed materials, handbills, photographs, pictures, films, tapes, or other visual or auditory materials that is not sponsored by the district or by a district-affiliated school-support organization, except as permitted by policy GKDA.

To be considered for distribution, any non-school material must meet the limitations on content established in the policy, include the name of the sponsoring person or organization, and be submitted to principal for prior review. The principal will approve or reject the materials within two school days of the time the materials are received. The requestor may appeal a rejection in accordance with the appropriate district complaint policy. [See policies DGBA or GF for more information.]

The principal has designated *a* bulletin board as the location for approved non-school materials to be placed for voluntary viewing or collection.

Prior review will not be required for:

- Distribution of materials by an attendee to other attendees of a school-sponsored meeting intended for adults and held after school hours.
- Distribution of materials by an attendee to other attendees of a community group meeting held after school hours in accordance with policy GKD(LOCAL) or a non-curriculum-related student group meeting held in accordance with policy FNAB(LOCAL).
- Distribution for electioneering purposes during the time a school facility is being used as a polling place, in accordance with state law.

All non-school materials distributed under these circumstances must be removed from district property immediately following the event at which the materials are distributed.

Dress and Grooming (All Grade Levels)

The district's dress code teaches grooming and hygiene, prevents disruption, minimizes safety hazards and maintains a positive learning climate. Students and parents may determine a student's personal dress and grooming standards, provided that they comply with the following:

The elementary school dress code for students is as follows:

1. Shirts and blouses may be worn unbuttoned no lower than one button below the collar.
2. See-through shirts or blouses, sleeveless shirts, sleeveless blouses, vests without a proper undershirt, sleeveless undershirts without a proper shirt, cut off T-shirts, and crop tops may not be worn.
3. Low-cut, shoulder less, or string-tie/halter-type dresses, blouses, or shirts may not be worn. Length of dresses and skirts must be appropriate for school.
4. Clothes printed or stamped with obscene, vulgar, or suggestive language or scenes are prohibited.
5. Apparel such as shirts with drug, alcohol, or tobacco logos, symbols, or illustrations are also prohibited.
6. Hair must be clean and neatly combed. Style, cut, and color must not be extreme to the point of creating a distraction.
7. Students may wear earrings on ears only.
8. Overcoats will be worn during cold weather only.

9. Personal items such as athletic equipment and electronic /communication devices (for example: footballs, basketballs, radios, portable video games, electronic toys, and the like) shall not be allowed on school grounds.
10. Clothing more than two sizes too large shall not be permitted.
11. The wearing or display of gang-related colors or gang-related paraphernalia shall not be permitted.
12. Pants or trousers must be worn at the waist.
13. Clothing and jewelry must be worn as they are designed to be worn (for example: straps on overalls must be worn on the shoulder).
14. Jeans may be worn on Fridays or special designated days. Jeans that are shredded, torn or ripped will not be allowed.

The secondary school dress code for the students is as follows:

1. Shirts and blouses may be worn unbuttoned no lower than two buttons below the collar.
2. Walking shorts may be worn by secondary students (grades 6-12), no more than 4 inches above the crease on the back of the knee.
3. See-through shirts or blouses, sleeveless shirts and blouses without proper undershirts, vests without a proper, undershirt, sleeveless undershirts without a proper shirt, and crop tops may not be worn. Sleeveless dresses, blouses, and shirts may be worn provided that undergarments are not exposed.
4. Low-cut, shoulder less, or string-tie/halter-type dresses, blouses, or shirts may not be worn. Length of dresses and skirts must be appropriate for school and not distracting to others. No shorter than 4 inches above the crease on the back of the knee.
5. Caps, hats, helmets, or headgear shall not be worn unless they are required for an approved school activity. Bandanas are not allowed.
6. Clothes and personal items printed or stamped with obscene, vulgar, or suggestive language or scenes such as skulls, blood, and the like are prohibited. Apparel such as shirts with drug, alcohol, or tobacco logos, symbols, or illustrations, or logos, symbols, or illustrations of any other substance prohibited under FNCF(LEGAL) are also prohibited.
7. Hair must be clean and neatly combed. Style, cut, and color must not be extreme to the point of creating a distraction.
8. Sideburns must not extend beyond the bottom of the ear lobe. Mustaches must be neatly trimmed. Beards and goatees are not permitted.
9. Students may wear earrings on ears only. No other body-piercing device may be worn.
10. Grooming, combing hair, and applying make-up or nail polish is not allowed in the classroom or cafeteria.
11. Steel-toe shoes (footwear) are not permitted except in shop areas as required by instructors. Shoes with metal taps or noise-making devices on the soles are not allowed.
12. Students are not allowed to wear baggy clothing, including clothes tailored to look oversized and long belts.
13. Overcoats will be worn only during cold weather.
14. Clothing style and cut must not be excessive in nature as to create a distraction or safety hazard.
15. The wearing or display of gang-related colors or gang-related paraphernalia will not be permitted.
16. Pants or trousers must be worn at the waist.
17. Clothing and jewelry must be worn as they are designed to be worn (for example: straps on overalls must be worn on the shoulder). No chains are to be worn with clothing or wallets.
18. Jeans that are shredded, torn or ripped will not be allowed.

Uniform Policy

The Edinburg school district has adopted a mandatory standard uniform policy for some campuses. Campuses will have the uniform policy available on their website. For a printed copy or more information, please contact the campus principal.

Excusing a Student from Mandatory Dress Code

As a parent or guardian, you may request that your child be excused from the mandatory dress code.
See policy [FNCA(LOCAL)], pg. 4 and 5, Compliance Measures.

If the principal determines that a student's grooming or clothing violates the school's dress code, the student will be given an opportunity to correct the problem at school and return to the classroom.

If the problem cannot be corrected at school, the principal will work with the student and parents to obtain an acceptable change of clothing for the student in a way that minimizes loss of instructional time.

Repeated or severe offenses may result in more serious disciplinary action in accordance with the Student Code of Conduct.

Dual Credit Courses/College Coursework
To be eligible to concurrently enroll and be awarded credit toward state graduation requirements, a student shall have the approval of the high school principal and academic counselor.

The course(s) for which credit is awarded shall provide advanced academic instruction beyond or in greater depth than the essential knowledge and skills. The course must be provided only by an institution of higher education that is accredited by the Southern Association of Colleges and Schools.

Electronic Devices and Technology Resources (All Grade Levels)

Safe Use of Technology
The district is committed to ensuring that students use technology safely and will follow all federal and state requirements to protect students from excessive data collection or materials that are considered harmful to minors. The district considers parents as partners in cybersecurity and online safety.
In accordance with state and federal law, the district will:

- Install a filter that blocks and prohibits pornographic or obscene materials or applications, including from unsolicited pop-ups, installations, and downloads, before transferring an electronic device to a student to be used for an educational purpose
- Block or filter students' internet access to pictures that are obscene, contain child pornography, or have been determined to be harmful to minors in accordance with the Children's Internet Protection Act (CIPA)
- Require direct and informed parental consent for a student's use of software, other than software excluded from the consent requirement by law [See Required State Testing and Standardized Testing.]
- Require direct and informed parental consent for a student's use of software that conducts mental health assessments or other assessments unrelated to education curricula that are intended to collect information about students [See Consent to Conduct a Psychological Evaluation.]

If you want to know more about partnering with the district regarding cybersecurity and online safety, or if you have complaints or concern about student use of electronic devices, please contact Mr. Dale Ramos, Director of Technology, by email da.ramos@ecisd.us, by phone at (956) 289-2300 ext. 3035 or by mail at 411 N. 8th Ave.; Edinburg, Texas 78541.

[See **Textbooks, Electronic Textbooks, Technological Equipment, and Other Instructional Materials (All Grade Levels)**.]

Possession and Use of Personal Communication Devices, Including Cell Phones, and Other Electronic Devices
In accordance with state law, the district prohibits the use of a personal communication device (such as cell phones, tablets, and smartwatches) while on school property during the school day. For more information about permitted use in policy FNCE (LOCAL).

The use of cell phones or any device capable of capturing images is strictly prohibited in locker rooms or restroom areas while at school or at a school-related or school-sponsored event.

If a student uses a personal communication device without authorization during the school day, the student will be disciplined in accordance with the Student Code of Conduct.

Confiscated communication devices that are not retrieved by the student or the student's parent will be stored in accordance with administrative regulations. [See policy FNCE for more information.]

In limited circumstances and in accordance with law, a student's personal communication device may be searched by authorized personnel. [See **Searches and Investigations** on page 80 and policy FNF for more information.]

The district is not responsible for damaged, lost, or stolen communication devices.

Instructional Use of Personal Electronic Devices

Students must obtain prior approval to use personal electronic devices allowed by law for instructional purposes while on campus. The district may not permit use of a prohibited personal communication device except as required by law. See [**Possession and Use of Personal Communications Devices, Including Cell Phones and Other Electronic Devices**] Students must also sign a user agreement that contains applicable rules for use (separate from this handbook).

All personal devices must be turned off during the instructional day when not in use for approved instructional purposes. Violations of the user agreement may result in withdrawal of privileges and other disciplinary action.

Acceptable Use of District Technology Resources

District-owned technology resources may be issued to individual students for instructional purposes. Use of the district's network systems and equipment is restricted to approved purposes only. Students and parents will be asked to sign a user agreement (separate from this handbook) regarding the use of these district resources. Violations of the user agreement may result in withdrawal of privileges and other disciplinary action.

Students and parents should be aware that e-mail and other electronic communications using district computers is not private and may be monitored by district staff. A copy of the Edinburg CISD Technology Acceptable Use Policy may be read or downloaded from ECISD Board Policy Online.

Edinburg CISD Technology Acceptable Use Policy Online: CQ(EXHIBIT), CQ(REGULATION), CQ(LEGAL) CQ(LOCAL)

[For additional information, see policies at CQ.]

Unacceptable and Inappropriate Use of Technology Resources

Students are prohibited from possessing, sending, forwarding, posting, accessing, or displaying electronic messages that are abusive, obscene, sexually oriented, threatening, harassing, damaging to another's reputation, or illegal. This prohibition also applies to conduct off school property, whether on district-owned or personally owned equipment, if it results in a substantial disruption to the educational environment.

Any person taking, disseminating, transferring, possessing, or sharing obscene, sexually oriented, lewd, or otherwise illegal images or other content — commonly referred to as "sexting" — will be disciplined in accordance with the Student Code of Conduct, may be required to complete an educational program related to the dangers of this type of behavior, and, in certain circumstances, may be reported to law enforcement.

This type of behavior may constitute bullying or harassment, as well as impede future endeavors of a student. We encourage parents to review with their child the "Before You Text" Sexting Prevention Course (https://txssc.txstate.edu/tools/courses/before-you-text/), a state-developed program that addresses the consequences of sexting.

In accordance with state law, the district prohibits the installation or use of TikTok or any successor application or service on a district device, along with any other social media application or service determined by the governor.

Any student who engages in conduct that results in a breach of the district's computer security will be disciplined in accordance with the Student Code of Conduct. In some cases, the consequence may be expulsion.

Technology Lending Program

Requirement and Reminders for Student and Parents

Reminders:

1. Student/Parent will be responsible for the mobile device assigned to him/her.
2. Additional software without the District approval may not be loaded on the device.
3. Do not add/remove any internal hardware including memory, hard drive, etc.
4. Do not use or allow anyone to use the mobile device to view inappropriate materials, nor to engage in illegal activities. (User must abide by the District's Acceptable Use Policy).
5. Do not use this device for personal financial gain.
6. Devices may be randomly checked for inappropriate use.
7. The device will be returned on the designated return date.
8. Any REPAIRS must be handled on-site by authorized District personnel only.

9. Replacement cost for lost, stolen, or damaged devices:
    a. Chromebook $300
    b. iChromebook charger $30
    c. Chromebook case $30
    d. Laptop $1,000
    e. Laptop charger $50
    f. iPad $300
    g. iPad case $25
    h. iPad charger USB cord $15
    i. Hot spots $75
    j. Hot spot charger $15
    k. Repairs $125
    l. Calculators $140

End-of-Course (EOC) Assessments
[See **Graduation** on page 51 and **Standardized Testing** on page 81.]

Emergent Bilingual Students (All Grade Levels)
A student who is an emergent bilingual student is entitled to receive specialized services from the district. A Language Proficiency Assessment Committee (LPAC), consisting of both district personnel and at least one parent representative, will determine whether the student qualifies for services. The student's parents must consent to any services recommended by the LPAC. However, pending the receipt of parental consent or denial of services, an eligible student will receive the services to which the student is entitled and eligible.

To determine a student's level of proficiency in English, the LPAC will use information from a variety of assessments. If the student qualifies for services, and once a level of proficiency has been established, the LPAC will designate instructional accommodations or additional special programs that the student will require to eventually become proficient at grade level work in English. Ongoing assessments will be conducted to determine a student's continued eligibility for the program.

The LPAC will also determine whether certain accommodations are necessary for any state-mandated assessments. The STAAR Spanish, as mentioned at **Standardized Testing** on page 81, may be administered to an emergent bilingual student up to grade 5. In limited circumstances, a student's LPAC may exempt the student from an otherwise required state-mandated assessment or may waive certain graduation requirements related to the English I end-of-course (EOC) assessment. The Texas English Language Proficiency Assessment System (TELPAS) will also be administered to emergent bilingual students who qualify for services.

If a student is considered an emergent bilingual student and receives special education services because of a qualifying disability, the student's ARD committee will make instructional and assessment decisions in conjunction with the LPAC.

Extracurricular Activities, Clubs, and Organizations (All Grade Levels)
Participation in school-sponsored activities is an excellent way for a student to develop talents, receive individual recognition, and build strong friendships.

State law requires the district to obtain written parental consent before a student may participate in a student club that is authorized or sponsored by the district. A parent may obtain consent forms for student clubs [describe website and/or campus location where club consent forms are available]

Some extracurricular activities may include off-campus events. Students are required to use transportation provided by the district to and from the events. Exceptions may only be made with the approval of the activity's coach or sponsor. [See **Transportation** on page 83.]

Eligibility for many of these activities is governed by state law and the rules of the University Interscholastic League (UIL), a statewide association overseeing interdistrict competition. If a student is involved in an academic, athletic, or music activity governed by UIL, the student and parent are expected to know and follow all rules of the UIL organization. Students and parents can access the UIL Parent Information Manual (https://www.uiltexas.org/athletics/manuals) online. A hard copy can be provided by the coach or sponsor of the activity on request.

To report alleged noncompliance with required safety training or an alleged violation of safety rules required by law and the UIL, please contact the curriculum division of TEA at (512) 463-9581 or curriculum@tea.texas.gov.

[See UIL Texas (https://www.uiltexas.org/) for additional information on all UIL-governed activities.]

Student safety in extracurricular activities is a priority of the district. Parents are entitled to review the district's records regarding the age of each football helmet used by the campus, including when a helmet has been reconditioned.

Generally, a student who receives a grade below 70 at the end of a grading period in any academic class may not participate in extracurricular activities for at least three school weeks.

If a student receives a grade below 70 at the end of a grading period in an Advanced Placement (AP) or International Baccalaureate (IB), honors, Pre-AP, or dual credit course in English language arts, mathematics, science, social studies, economics, or languages other than English, the student may visit with the high school counselor to learn about the criteria for the "No Pass, No Play Waiver." If eligible, the student may remain eligible for participation in extracurricular activities.

If a student is enrolled in a state-approved course that requires demonstration of the mastery of an essential knowledge and skills in public performance and the student receives a grade below 70 in any course at the end of the grading period, the student may participate in a performance so long as the general public is invited.

If a student is enrolled in a state-approved music course that participates in UIL Concert and Sight-reading Evaluation, and the student receives a grade below 70 in any course at the end of a grading period, the student may perform with the ensemble during the UIL Concert and Sight-reading evaluation performance but is ineligible for other extracurricular activities for at least three weeks.

In addition, the following applies to all extracurricular activities:

- A student who receives special education services and who fails to meet the standards in the individualized education program (IEP) may not participate for at least three school weeks.
- An ineligible student may practice or rehearse but may not participate in any competitive activity.
- A student is allowed in a school year up to ten absences not related to post-district competition, a maximum of five absences for post-district competition prior to state, and a maximum of two absences for state competition. All extracurricular activities and public performances, whether UIL activities or other activities approved by the board, are subject to these restrictions.
- An absence for participation in an activity that has not been approved will be considered an unexcused absence.

Standards of Behavior

Sponsors of student clubs and performing groups such as the band, choir, and drill and athletic teams may establish standards of behavior — including consequences for misbehavior — that are stricter than those for students in general. If a violation is also a violation of school rules, the consequences specified by the Student Code of Conduct or by board policy will apply in addition to any consequences specified by the organization's standards of behavior.

Offices and Elections

Certain clubs, organizations, and performing groups will hold elections for student officers. Each respective campus has its own organizations with bylaws that outline officer student elections.

Fees (All Grade Levels)

Basic educational program materials are provided at no charge to a student. However, a student is expected to provide his or her own supplies, such as pencils, paper, erasers, and notebooks. A student may also be required to pay other costs, fees, and/or deposits, including:

- Materials for a class project that the student will keep.
- Membership dues in voluntary clubs or student organizations.
- Admission fees to extracurricular activities.
- Security deposits.
- Personal physical education and athletic equipment and apparel.

- Voluntarily purchased pictures, publications, class rings, yearbooks, graduation announcements, and the like.
- Voluntarily purchased student health and accident insurance.
- Musical instrument rental and uniform maintenance when uniforms are provided by the district.
- Personal apparel used in extracurricular activities becomes the property of the student.
- Parking fees and student identification cards.
- Fees for lost, damaged, or overdue library books.
- Fees for driver training courses.
- Fees for optional courses offered for credit that require use of facilities not available on district premises.
- Summer school for courses that are offered tuition-free during the regular school year.
- A reasonable fee for providing transportation to a student who lives within two miles of the school. [See **Buses and Other School Vehicles** on page 83.]
- A maximum fee of $50 for an educational program outside of regular school hours for a student who has lost credit or has not been awarded a final grade because of absences and whose parent chooses the program for the student to meet the 90 percent attendance requirements. The fee will be charged only if the parent or guardian signs a district-provided request form.
- In some cases, a fee for a virtual or hybrid course.

Any required fee or deposit may be waived if the student and parent are unable to pay. Application for such a waiver may be made to the campus principal. [See policy FP for more information.]

Fundraising (All Grade Levels)

As per a directive from our Superintendent, there will be **NO** fund-raising activities which involve our students. Student groups or classes and/or parent groups may be permitted to conduct fundraising drives for approved school purposes in accordance with administrative regulations. [See policies FJ and GE for more information.]

A fundraiser request form must be made to the campus principal at least 30 days before the event in accordance with administrative regulations.

The principal will secure the fundraiser request form from the Assistant Superintendent of Finance and Operations for the event.

Gang-Free Zones (All Grade Levels)

Certain criminal offenses, including gang-related crimes, will be enhanced to the next-highest category of offense if they are in a gang-free zone. Gang-free zones include a school bus and any location in, on, or within 1,000 feet of any district-owned or leased property or campus playground.

Grade-Level Classification (Grades 9-12 Only)

After grade 9, students are classified according to the number of credits earned toward graduation.

Credits Earned	Classification
0.0 - 5.5	Grade 9 (Freshman)
6 – 11.5	Grade 10 (Sophomore)
12 – 18.5	Grade 11 (Junior)
19 Credits or more	Grade 12 (Senior)

Grading Guidelines (All Grade Levels)

Approved grading guidelines for each grade level or course will be communicated to students and their parents by the classroom teacher. These guidelines establish:

- The minimum number of assignments, projects, and examinations required for each grading period.
- The use of letter grades, numerical averages and /or checklist of required skills.
- Circumstances under which a student will be allowed to redo an assignment or retake an examination the student originally failed, as per District grading procedures.

- A student shall be permitted one day for every day absent an opportunity to redo an assignment or retake a test for which the student received a failing grade or a suspension.
- Procedures for a student to follow after an absence, as per District grading procedures.
- Grading consequences for academic dishonesty, including cheating or copying the work of another student, plagiarism (including the unauthorized use of artificial intelligence (AI) such as ChatGPT), and unauthorized communication between students during an examination.

[See **Report Cards/Progress Reports and Conferences** on page 72 for additional information on grading guidelines.]

Elementary Grading Procedures

1. An electronic grade book will be used as the official campus grade book. It is a software program that will be used by the teacher to input, modify, and monitor student's current progress in real-time at work or from home.
2. Teachers will record at least two grades weekly. A retest is required when an examination grade is below a 70. Exam grades may not exceed 25% of the reporting period grade. Benchmark and reporting period assessments may be counted as one regular assignment grade. Major projects shall be weighted appropriately according to campus standards with principal approval. Projects will count as one grade. Teachers may assign a late penalty to any project turned in after the due date in accordance with previously established guidelines approved by the principal and disseminated to students.
3. The actual grade will be recorded in an electronic grade book.
4. Students must be given one opportunity to re-test for an examination, and/or redo an assignment for which the student received a failing grade. The highest grade given for a retest or redone assignment will be a grade of 70. The original grade on the test or assignment will not be counted.
5. Students will be allowed to make up work missed due to any excused absence. The time allotted will be equal to a day for a day of absence. For example, a student absent for five (5) days will be allotted five (5) days to complete the missed assignment. The teacher is encouraged to use his/her discretion in allotting additional time as dictated by the individual case.
6. Students shall be expected to make up assignments and tests after absences. Students shall receive a zero for any assignment or test not made up within the allotted time.
7. Students shall be permitted to take tests in any class missed because of an absence. The teacher may assign the student make-up work based on the instructional objectives for the subject or course.
8. The district shall not impose a grade penalty for make-up work after an absence because of suspension. A student shall be permitted one opportunity to redo an assignment or retake a test after a suspension.
9. Plagiarism or cheating on any assignment or examination will constitute a grade of 0.

Secondary Grading Procedures (Grades 6-12)

1. An electronic grade book will be used as the official campus grade book. It is a software program that will be used by the teacher to input, modify, and monitor student's current progress in real-time at work or from home.
2. All daily work and tests are to be recorded and dated. All recorded grades need an appropriate description.
3. Teachers are required to record at least one grade weekly with a minimum of eight (8) grades per discipline per reporting period. At the middle school level, a minimum of 12 grades for RLA. The grades should be separate assignments. Students must be given one opportunity to re-test for an examination, and/or redo any assignment for which the student received a failing grade below 70. The highest grade given for a retest or redone assignment will be a grade of 70. The original grade on the test or assignment will not be counted. Exam grades may not exceed 25% of the reporting period grade/average.
4. Homework and classwork assignments will have the same weight. Reporting Period Exams may be counted as one regular assignment grade. Major projects shall be weighted appropriately according to written campus/department standards with principal approval.
5. Non-mastery will be determined by all grades below 70.
6. Students will be allowed to make up work missed due to any excused absence. The time allotted will be equal to a day for a day of absence. For example, a student absent for five (5) days will be allotted five (5) days to complete the missed assignment. The teacher is encouraged to use his/her discretion in allotting additional time as dictated by the individual case.
7. Teachers shall determine late assignment guidelines, distribute to students, and communicate to parents. All teachers' guidelines must be in compliance with Local Board Policy and campus/department standards with principal approval.

8. Students placed in AISS/ISS will receive full credit for work completed.
9. At the middle and high school level, the yearly average is determined by adding each semester's numerical grade and dividing the total by two. High School courses taken in Middle School are not included in the HS GPA.
10. A student is required to take a final exam at the end of each semester. In the event, a student is absent for the final exam, the student and/or parents must provide a doctor's excuse or other appropriate documentation of extenuating circumstances—major illnesses/catastrophic situations/death in the family, etc.—which must be verified by the campus principal before the student is permitted to take the final exam. Failure to provide the appropriate documentation will result in a grade of 0 for the final exam.
11. Plagiarism or cheating on any assignment or examination will constitute a grade of 0.

Final Exam Exemptions (High School Courses)

- All students taking a high school course have an opportunity to earn no more than three final exam exemptions per semester.

  Consideration for exemptions shall be based on the average numerical grade earned, the number of accumulated absences, and the disciplinary status of the student during the semester he or she is applying for the exemption(s). Students are to make exemption selections according to their individual choice(s).

  Students with semester averages of 90 and above at the time of application shall have no more than three excused absences [See EIAA(LOCAL)] and must have no documented Level II disciplinary referrals in the class of the exemption or a Level II referral from a campus administrator or for an off-campus incident.

  Students with semester averages that calculate between 85 and 89 shall have no more than two excused absences [See EIAA(LEGAL) and EIAA(LOCAL)] and must have no documented Level II disciplinary referrals in the class of the exemption or a Level II referral from a campus administrator or for an off-campus incident.

- Absences that are not to be counted against the amount to be exceeded are as follows:

1. Absences due to school-sponsored trips; or
2. Absences initiated by an administrator or counselor

- Students who qualify for exemptions are required to be in attendance on the day of the examinations. Failure to be in attendance will result in the student receiving an incomplete.

The student will be required to take the final exam to remove the incomplete grade.

Addendum - Under no circumstance, when a student invokes the exemption policy, shall they take an exam for the class(es) listed on the exemption form.

Graduation (Secondary Grade Levels Only)

Requirements for a Diploma

A student must meet the following requirements to receive a high school diploma from the district:

- Achieve passing scores on certain end-of-course (EOC) assessments or approved substitute assessments, unless specifically waived as permitted by state law
- Complete the required number of credits established by the state and any additional credits required by the district
- Complete any locally required courses in addition to the courses mandated by the state
- Demonstrate proficiency, as determined by the district, in the specific communication skills required by the State Board of Education (SBOE)
- Complete and submit a free application for federal student aid (FAFSA) or a Texas application for state financial aid (TASFA)

Testing Requirements for Graduation

Students are required, with limited exceptions and regardless of graduation program, to perform satisfactorily on the following EOC assessments:

- English I

- English II
- Algebra I
- Biology
- U.S. History

A student who does not achieve a sufficient score will have opportunities to retake an assessment.

State law allows a student to meet EOC requirements by substituting satisfactory performance on approved national standardized assessments or on the state-developed assessment used for entrance into Texas public universities. [See the school counselor for more information on the state testing requirements for graduation.]

If a student fails to perform satisfactorily on an EOC assessment, the district will provide remediation in the applicable content area. This may require the student's participation outside normal school operating times.

In limited circumstances, a student who fails to demonstrate proficiency on up to two of the required assessments may still be eligible to graduate if an individual graduation committee, formed in accordance with state law, unanimously determines that the student is eligible to graduate.

[See **Standardized Testing** on page 81.]

Foundation Graduation Program

Every Texas public school student will graduate under the foundation graduation program. The foundation graduation program features endorsements, which are paths of interest that include:

- Science, Technology, Engineering, and Mathematics (STEM)
- Business and Industry
- Public Service
- Arts and Humanities
- Multidisciplinary Studies

Endorsements earned by a student will be noted on the student's transcript.

A student can complete the foundation graduation program with a "distinguished level of achievement," which reflects the completion of at least one endorsement and Algebra II as one of the required advanced mathematics credits.

A **Personal Graduation Plan** will be completed for each high school student, as described on page 55.

State law generally prohibits a student from graduating solely under the foundation graduation program without an endorsement. However, after the student's sophomore year, the student and student's parent may request that the student graduate without an endorsement. The district will advise the student and the student's parent of the specific benefits of graduating with an endorsement. The student and the student's parent must then submit written permission to the school counselor for the student to graduate without an endorsement.

A student who wishes to attend a four-year university or college after graduation must carefully consider whether graduation under the foundation program without an endorsement will satisfy the admission requirements of the student's desired college or university.

A student graduating under the foundation graduation program can also earn performance acknowledgments on his or her transcript. Performance acknowledgments are available for outstanding performance in bilingualism and biliteracy, in a dual credit course, on an AP or IB examination, on certain national college preparatory and readiness or college entrance examinations, or for earning a license or certificate recognized at the state, national, or international level. The school counselor can provide more information about these acknowledgments.

A student is not required to complete an Algebra II course to graduate under the foundation graduation program, and the district will annually notify a student's parent of this fact. However, not taking Algebra II will make a student ineligible for automatic admission to four-year public universities and colleges in Texas and for certain financial aid and grants while attending those institutions.

A school district will permit a student to satisfy the curriculum requirements for graduation under the foundation program with the distinguished level of achievement, including an endorsement, by successfully completing

courses in the core curriculum of a public Texas institution of higher education. Please see your counselor for more information.

Credits Required

The foundation graduation program requires completion of the following credits:

Course Area	Number of Credits: Foundation Graduation Program	Number of Credits: Foundation Graduation Program with an Endorsement
English/Language Arts	4	4
Mathematics	3	4
Science	3	4
Social Studies	3	3
Physical Education	1	1
Languages other than English	2	2
Fine Arts	1	1
Electives	5	7
Total	**22 credits**	**26 credits**

Additional considerations apply in some course areas, including:

- **Mathematics:** To obtain the distinguished level of achievement under the foundation graduation program, a student must complete an endorsement and take Algebra II as one of the 4 mathematics credits. A student's completion of the distinguished level of achievement is a requirement to be considered for automatic admission to a Texas four-year college or university and will be included on a student's transcript.
- **Physical education:** A student who is unable to participate in physical activity due to a disability or illness may be able to substitute a course in English language arts, mathematics, science, social studies, or another locally determined credit-bearing course for the required credit of physical education. This determination will be made by the student's ARD committee, Section 504 committee, or other campus committee, as applicable.
- **Languages other than English:** Students are required to earn 2 credits in the same language other than English to graduate. Any student may substitute computer programming languages for these credits.
    - A student may satisfy one of the 2 required credits by successfully completing in elementary school a dual language immersion program or a course in American Sign Language.
    - In limited circumstances, a student may be able to substitute this requirement with other courses, as determined by a district committee authorized by law to make these decisions for the student.

Available Endorsements

A student must specify upon entering grade 9 which endorsement he or she wishes to pursue.

Financial Aid Application Requirement

Before graduating from high school, each student must complete and submit an application for financial aid for post-secondary education. Students must complete and submit either a free application for federal student aid (FAFSA) or a Texas application for state financial aid (TASFA).

Financial Aid officers provide a list of available resources to students and parents.

A student is not required to complete and submit a FAFSA or TASFA if:

- The student's parent submits a form provided by the district indicating that the parent authorizes the student to opt out;
- A student who is 18 years of age or older or a legally independent minor submits a form provided by the district indicating that the student opts out; or
- A school counselor authorizes the student to opt out for good cause.

Please contact the school counselor for more information.

To confirm that a student has completed and submitted a TASFA, the student must submit one of the following:

- A screenshot that includes the processed date field of the FAFSA ApplyTexas Counselor Suite
- Notification, such as a copy of an email, from the United States Department of Education verifying completion of the FAFSA
- A copy or screenshot of the FAFSA acknowledgment page
- A screenshot of the TASFA submission acknowledgment page (from those institutions that offer an electronic form)
- An acknowledgment receipt from an institution of higher education (IHE)
- A copy of a financial aid award letter from an IHE

[See policy EIF (LEGAL), EIF (LOCAL) for more information.]

Personal Graduation Plans

A personal graduation plan will be developed for each high school student.

The district encourages all students to pursue a personal graduation plan that includes the completion of at least one endorsement and to graduate with a distinguished level of achievement. Attainment of the distinguished level of achievement is a requirement for a student to be considered for automatic admission to a public four-year college or university in Texas, depending on his or her rank in class.

The school will review personal graduation plan options with each student entering grade 9 and his or her parent. Before the end of grade 9, a student and his or her parent will be required to sign off on a personal graduation plan that promotes college and workforce readiness, promotes career placement and advancement, and facilitates the transition from secondary to postsecondary education.

The student's personal graduation plan will outline an appropriate course sequence based on the student's choice of endorsement.

Please review TEA's Graduation Toolkit (https://tea.texas.gov/about-tea/news-and-multimedia/brochures/tea-brochures).

A student may amend his or her personal graduation plan after this initial confirmation. The school will send written notice of any such amendment to the student's parents.

Available Course Options for All Graduation Programs

Each spring, the district will update students on the courses required and/or offered in each content area for students to enroll in the upcoming school year.

Note: The district may require the completion of certain courses for graduation even if these courses are not required by the state for graduation.

Not all courses are offered at every secondary campus in the district. A student who wants to take a course not offered at his or her regular campus should contact the school counselor about a transfer or other alternatives. If the parents of at least 22 students request a transfer for a course in the required curriculum other than fine arts or career and technical education (CTE), the district will offer the course the following year either by teleconference or at the school from which the transfers were requested.

Certificates of Coursework Completion

A certificate of coursework completion will not be issued to a student who has successfully completed state and local credit requirements for graduation but has not yet demonstrated satisfactory performance on the state-mandated tests required for graduation.

Students with Disabilities

Admission, review, and dismissal (ARD) committees will make instructional and assessment decisions for students with disabilities who receive special education services in accordance with state law.

Upon the recommendation of the ARD committee, a student with a disability who receives special education services may be permitted to graduate under the provisions of his or her individualized education program (IEP) and in accordance with state rules.

A student who receives special education services may earn the distinguished level of achievement or an endorsement under the foundation program. If the student's curriculum requirements for the endorsement were modified, the student's ARD committee will determine whether the modified curriculum is sufficiently rigorous to meet the distinguished level of achievement or to earn the endorsement. The ARD committee must also determine whether the student must perform satisfactorily on any end-of-course assessment to earn an endorsement.

A student who receives special education services and has completed four years of high school but has not met the requirements of his or her IEP may participate in graduation ceremonies and receive a certificate of attendance. A student may only participate in one graduation ceremony for the purpose of receiving a certificate of attendance. The student may then remain enrolled to complete the IEP and earn his or her high school diploma.

[See policy FMH(LEGAL) for more information.]

Graduation Activities

Graduation activities will include:

- Senior Field Day and/or project celebration
- Commencement Exercise

Students who are eligible to graduate but are assigned to a disciplinary alternative education program at the end of the school year may be allowed to participate in the graduation ceremony and related graduation activities with principal approval contingent upon the offense/infraction.

Graduation Speakers

Certain graduating students will be given an opportunity to speak at graduation ceremonies.

A student must meet local eligibility criteria, which may include requirements related to student conduct, to have a speaking role. Students eligible for speaking roles will be notified by the principal and given an opportunity to volunteer.

[See the Student Code of Conduct and policy FNA(LOCAL) for more information.]

[See **Student Speakers** on page 82 for student speakers at other school events.]

Graduation Expenses

Because students and parents will incur expenses to participate in the traditions of graduation — such as the purchase of invitations, senior ring, cap and gown, and senior picture — both the student and parent should monitor progress toward completion of all requirements for graduation. The expenses often are incurred in the junior year or first semester of the senior year. [See **Fees** on page 49.]

Scholarships and Grants

Students who have a financial need according to federal criteria and who complete the foundation graduation program may be eligible under the TEXAS Grant Program, Teach for Texas Grant Program, and Future Texas Teachers Scholarship Program for scholarships and grants toward tuition and fees to Texas public universities, community colleges, and technical schools, as well as to private institutions. Certain students who graduate early may also be eligible for the Texas First Scholarship Program.

See **College and University Admissions and Financial Aid (All Grade Levels)** on page 30 for more information.

Contact the school counselor for information about other scholarships and grants available to students.

Harassment

[See **Dating Violence, Discrimination, Harassment, and Retaliation** on page 41.]

Hazing (All Grade Levels)

Hazing is defined as an intentional, knowing, or reckless act, on or off campus, by one person alone or acting with others, directed against a student for the purpose of pledging, initiation into, affiliation with, holding office in, or maintaining membership in a student organization if the act meets the elements in Education Code 37.151, including:

- Any type of physical brutality
- An activity that subjects the student to an unreasonable risk of harm or that adversely affects the student's mental or physical health, such as sleep deprivation, exposure to the elements, confinement to small spaces, calisthenics, or consumption of food, liquids, drugs, or other substances
- An activity that induces, causes, or requires the student to perform a duty or task that violates the Penal Code
- Coercing a student to consume a drug or alcoholic beverage in an amount that would lead a reasonable person to believe the student is intoxicated

The district will not tolerate hazing. Disciplinary consequences for hazing will be in accordance with the Student Code of Conduct. It is a criminal offense if a person engages in hazing; solicits, encourages, directs, aids, or attempts to aid another in hazing; or has firsthand knowledge of an incident of hazing being planned or having occurred and fails to report this to the principal, superintendent, or law enforcement official.

[See **Bullying** on page 23 and policies FFI and FNCC for more information.]

Health — Physical and Mental

Health-Related Services

The district is required to provide notice of each health-related service offered at a student's campus. A parent may withhold consent for or decline a health-related service.

Illness (All Grade Levels)

When your child is ill, please contact the school to let us know he or she will not be attending that day.

State rules require schools to exclude students with certain illnesses from school for certain periods of time. For example, if a child has a fever over 100 degrees, he or she must stay out of school until fever-free for 24 hours without use of fever-reducing medications. Students with diarrheal illnesses must stay home until they are diarrhea-free without use of diarrhea-suppressing medications for 24 hours.

A parent should contact the school nurse is a student has been diagnosed with COVID-19 or any communicable disease.

A full list of conditions for which the school must exclude children can be obtained from the school nurse or https://dshs.texas.gov/idps-home/school-communicable-disease-chart.

The district is required to report certain contagious (communicable) diseases or illnesses to the Department of State Health Services (DSHS) or our local/regional health authority. The school nurse can provide information from DSHS on these notifiable conditions.

If a student becomes ill during the school day and the school nurse determines that the child should go home, the nurse will contact the parent.

The school nurse is available to answer any questions for parents who are concerned about whether or not their child should stay home.

Immunization (All Grade Levels)

A student must be fully immunized against certain diseases or must present a certificate or statement that, for medical reasons or reasons of conscience, including a religious belief, the student will not be immunized.

For exemptions based on reasons of conscience, only official forms issued by the Texas Department of State Health Services (DSHS), Immunization Branch, can be honored by the district. You may access the DSHS exemption form (https://www.dshs.texas.gov/immunization-unit/texas-school-child-care-facility-immunization/texas-immunization-exemptions) online or by writing to this address:

Texas Department of State Health Services
Immunization Section, Mail Code 1946
P.O. Box 149347
Austin, Texas 78714-9347

The form must be notarized and submitted to the principal or school nurse within 90 days of notarization. If the parent is seeking an exemption for more than one student in the family, a separate form must be provided for each student.

The immunizations required are:

- Diphtheria, tetanus, and pertussis
- Polio
- Measles, mumps, and rubella
- Hepatitis B
- Varicella (chicken pox)
- Meningococcal
- Hepatitis A

The school nurse can provide information on immunization requirements. Proof of immunization may be established by personal records from a licensed physician or public health clinic with a signature or rubber-stamp validation.

If a student should not be immunized for medical reasons, the student or parent must present a certificate signed by a U.S. registered and licensed physician stating that, in the doctor's opinion, the immunization required is medically contraindicated or poses a significant risk to the health and well-being of the student or a member of the student's family or household. This certificate must be renewed yearly unless the physician specifies a lifelong condition.

For information on immunization against bacterial meningitis and college enrollment and attendance, see **Bacterial Meningitis** on page 63 .

[See the DSHS's Texas School & Child Care Facility Immunization Requirements (https://www.dshs.texas.gov/immunization-unit/texas-school-child-care-facility-immunization) and policy FFAB(LEGAL) for more information.]

Lice (All Grade Levels)

Head lice is very common among children. Although not an illness or a disease, head lice spread through head-to-head contact during play, sports, nap time, and when children share things like brushes, combs, hats, and headphones.

The district does not require or recommend that students be removed from school because of lice or nits.

If careful observation indicates that a student has head lice, the school nurse will contact the student's parent to discuss a treatment plan using an FDA-approved medicated shampoo or cream rinse that may be purchased from any drug or grocery store. After the student undergoes one treatment, the parent should contact the school nurse to discuss the treatment used. The nurse can also offer additional recommendations, including subsequent treatments, how best to get rid of lice, and how to prevent lice from returning.

The district will provide notice to parents of elementary school students in an affected classroom without identifying the student with lice.

More information on head lice can be obtained from the DSHS website Managing Head Lice in School Settings and at Home (https://www.dshs.texas.gov/texas-school-health/skilled-procedures-texas-school-health/managing-head-lice-school) and from the Centers for Disease Control and Prevention's website Head Lice Information for Parents (https://www.cdc.gov/parasites/lice/head/parents.html).

[See policy FFAA for more information.]

Medicine at School (All Grade Levels)

If a student must take medication during school hours, the student's parent must provide the medication. All medication, whether prescription or nonprescription, must be kept in the nurse's office and be administered by the nurse or another authorized district employee. A student may be authorized to possess his or her own medication because of asthma or a severe allergy as described below or as otherwise allowed by law.

The district will not purchase nonprescription medication to give to a student.

In accordance with policy FFAC, authorized employees may administer:

- Prescription medication in the original, properly labeled container, provided by the parent along with a written request and a physician's order.
- Prescription medication from a properly labeled unit dosage container filled by a registered nurse or another qualified district employee from the original, properly labeled container provided by the parent along with a written request and physician's order.
- Nonprescription medication in the original, properly labeled container, provided by the parent along with a physician's order.
- Herbal or dietary supplements provided by the parent only if required by the student's individualized education program (IEP) or Section 504 plan for a student with disabilities.

An elementary or secondary student may possess and self-apply sunscreen to avoid overexposure to the sun. An elementary student's teacher or other district personnel will apply sunscreen to the student's exposed skin if the student brings the sunscreen to school and asks for help applying it. If a secondary student needs assistance with sunscreen application, please address the need with the school nurse.

Whether a student is at the elementary or secondary level, if sunscreen needs to be administered to treat any type of medical condition, this should be handled through communication with the school nurse so that the district is made aware of any safety and medical issues.

Asthma and Severe Allergic Reactions

A student with asthma or severe allergic reaction (anaphylaxis) may possess and use prescribed asthma or anaphylaxis medication at school or school-related events only if he or she has written authorization from his or her parent and a physician or other licensed health-care provider. The student must also demonstrate to his or her health-care provider and the school nurse the ability to use the prescribed medication, including any device required to administer the medication.

If the student has been prescribed asthma or anaphylaxis medication for use during the school day, the student and parents should discuss this with the school nurse or principal.

See also **Food Allergies** on page 63.

Unassigned Epinephrine Delivery Systems

In accordance with Chapter 38, Subchapter E of the Education Code, the board has adopted a policy to allow authorized school personnel who have been adequately trained to administer an unassigned epinephrine delivery system to a person who is reasonably believed to be experiencing severe allergic reaction (anaphylaxis).

An "unassigned epinephrine delivery system" is an epinephrine delivery system, including an auto-injector or nasal spray prescribed by an authorized health-care provider in the name of the school issued with a non-patient-specific standing delegation order for the administration of an epinephrine delivery system.

Epinephrine delivery systems include brand-name devices such as EpiPens® .

Authorized and trained individuals may administer an epinephrine delivery system at any time to a person experiencing anaphylaxis on a school campus.

The district will ensure that at each campus a sufficient number of school personnel are trained to administer epinephrine so that at least one trained individual is present on campus during regular school hours and whenever school personnel are physically on site for school-sponsored activities.

Authorized and trained individuals may administer an unassigned epinephrine delivery system to a person experiencing anaphylaxis at an off-campus school event or while in transit to or from a school event when an unassigned epinephrine delivery system is available.

For additional information, see FFAC(LOCAL).

Unassigned Medication for Respiratory Distress

In accordance with Chapter 38, Subchapter E of the Education Code, the board has adopted a policy to allow authorized and trained [align with policy at FFAC: school personnel and/or school volunteers] to administer a medication for respiratory distress on a school campus or at a school-related activity to a person reasonably believed to be experiencing symptoms of respiratory distress.

The district will provide at each campus [align with policy at FFAC: school personnel and/or school volunteers] who are trained to administer prescription medication for respiratory distress during regular school hours.

“Unassigned medication for respiratory distress” means albuterol, levalbuterol, or another medication designated by the executive commission of the Health and Human Services Commission for treatment of respiratory distress, prescribed by an authorized health-care provider in the name of the district with a non-patient-specific standing delegation order for the administration of a medication for respiratory distress, and issued by an authorized health-care provider.

For additional information, see FFAC (LOCAL)

Maintenance and Administration of Medication for Respiratory Distress

School personnel and school volunteers who are authorized and trained may administer medication for respiratory distress to a person reasonably believed to be experiencing respiratory distress on a school campus, or at a school-sponsored or school-related activity on or off school property. *Education Code 38.208(b-1).*

Definitions

“Medication for respiratory distress” means albuterol, levalbuterol, or another medication designated by the executive commissioner of the Health and Human Services Commission for treatment of respiratory distress. *Education Code 38.208(c).*

Regular School Hours

Each campus will have one or more school personnel or school volunteers authorized and trained to administer medication for respiratory distress present during regular school hours. *Education Code 38.208(d-1).*

Referral Required

If medication for respiratory distress is administered to a student whose parent or guardian has not provided notification to the school that the student has been diagnosed with asthma, the school must refer the student to the student’s primary care provider on the day the medication for respiratory distress is administered and inform the student’s parent or guardian regarding the referral. The referral must include:

1. The symptoms of respiratory distress observed;
2. The name of the medication for respiratory distress administered to the student; and
3. Any parent care instruction given to the student.

If a student who has received medication for respiratory distress does not have a primary care provider or the parent or guardian of the student has not engaged a primary care provider for the student, the student’s parent or guardian must receive information to assist the parent or guardian in selecting a primary care provider for the student.

Education Code 38.208(b-2)-(b-3)

Unassigned Opioid Antagonists (**All Grade Levels**)
In accordance with Chapter 38, Subchapter E of the Education Code, the board has adopted a policy to allow authorized and trained school personnel at each campus to administer an opioid antagonist, such as Narcan or Naloxone, to an individual who is reasonably believed to be experiencing an opioid-related drug overdose.

One or more authorized and trained individuals will be present on each campus subject to this policy during regular school hours.

Steroids (Secondary Grade Levels Only)
State law prohibits students from possessing, dispensing, delivering, or administering an anabolic steroid. Anabolic steroids are for physician-prescribed medical use only.

Body building, muscle enhancement, or the increase of muscle bulk or strength through the use of an anabolic steroid or human growth hormone by a healthy student is not a valid medical use and is a criminal offense.

Mental Health Support (All Grade Levels)
The district has implemented programs to address the following mental health, behavioral health, and substance abuse concerns:

- Mental health promotion and early intervention
- Building skills to manage emotions, establish and maintain positive relationships, and engage in responsible decision-making
- Substance abuse prevention and intervention
- Suicide prevention, intervention, and postvention (interventions after a suicide in a community)
- Grief, trauma, and trauma-informed care
- Positive behavior interventions and supports
- Positive youth development
- Safe, supportive, and positive school climates

ECISD is committed to providing mental health support services for all students. Our district has several programs and resources available to assist students with their mental health, behavioral health and substance abuse concerns. ECISD recently updated the Anonymous Alerts System to include mental health and emotional safety concerns.

The district is also providing a virtual calming room for students and staff. The ECISD Virtual Calming room contains videos, tools, resources and activities to help individuals manage their emotions.

To help facilitate and communicate how to address student mental health needs, the ECISD Wellness Team developed a Mental Health Support Service Handbook. For more information, please contact your campus administrator. The handbook contains information on the student referral process, crisis response and intervention and other mental health intervention, substance abuse prevention and intervention, and suicide prevention, intervention and postvention along with other services.

ECISD counselors continue to provide social emotional classroom support to ensure student's emotional needs are met.

Our district social worker and Licensed Professional Counselors (LPCs) are also available to address specific student needs.

If a student has been hospitalized or placed in residential treatment for a mental health condition or substance abuse, the district has procedures to support the student's return to school. Please contact the district's mental health liaison for further information.

Teachers and other district employees may discuss a student's academic progress or behavior with the student's parents or another employee as appropriate; however, they are not permitted to recommend use of psychotropic drugs. A psychotropic drug is a substance used in the diagnosis, treatment, or prevention of a disease or as a component of a medication that is intended to alter perception, emotion, mood, or behavior.

A district employee who is a registered nurse, an advanced nurse practitioner, a physician, or a certified or credentialed mental health professional can recommend that a student be evaluated by an appropriate medical practitioner, if appropriate. [See policy FFEB for more information.]

For related information, see:

- **Consent to Conduct a Psychological Evaluation** on page 4 and **Consent to Provide a Mental Health Care Service** on page 4 for the district's procedures for recommending a mental health intervention and the mental health liaison's contact information;
- **Counseling** on page 39 for the district's comprehensive school counseling program;
- **Physical and Mental Health Resources** on page 64 for campus and community mental and physical health resources; and
- **Policies and Procedures that Promote Student Physical and Mental Health** on page 64 for board-adopted policies and administrative procedures that promote student health.

Physical Activity Requirements

Elementary School

The district will ensure that students in full-day prekindergarten-grade 5 engage in moderate or vigorous physical activity for at least 30 minutes per day or 135 minutes per week, in accordance with policies at EHAB, EHAC, EHBG, and FFA.

For additional information on the district's elementary school student physical activity programs and requirements, please see the principal.

Middle School

The district will ensure that students in middle school will engage in 30 minutes of moderate or vigorous physical activity per day for at least four semesters ***OR*** at least 225 minutes of moderate or vigorous physical activity within each two-week period for at least four semesters out of six semesters, in accordance with policies at EHAB, EHAC, EHBG, and FFA.

For additional information on the district's junior high and middle school student physical activity programs and requirements, please see the principal.

Temporary Restriction from Participation in Physical Education

Students who are temporarily restricted from participation in physical education will not actively participate in skill demonstration but will remain in class to learn the concepts of the lessons.

Physical Fitness Assessment (Grades 3-12)

Annually, the district will conduct a physical fitness assessment of students in grades 3-12 who are enrolled in a physical education course or a course for which physical education credit is awarded. At the end of the school year, a parent may submit a written request to obtain the results of his or her child's physical fitness assessment conducted during the school year by contacting the campus principal.

Physical Health Screenings/Examinations

Athletics Participation (Secondary Grade Levels Only)

For certain extracurricular activities, a student must submit certification from an authorized health-care provider. The certification must state that the student has been examined and is physically able to participate in the relevant program, including:

- A district athletics program
- District marching band
- Any district extracurricular program identified by the superintendent

This examination is required to be submitted annually to the district.

Students should be aware of the rare possibility of sudden cardiac arrest, which in athletes is usually caused by a previously unsuspected heart disease or disorder. A student may request an electrocardiogram (ECG or EKG) to screen for such disorders, in addition to his or her required physical examination.

See the UIL's explanation of sudden cardiac arrest (https://www.uiltexas.org/health/info/sudden-cardiac-death) for more information.

Spinal Screening Program
School-based spinal screening helps identify adolescents with abnormal spinal curvature at an early stage when the curve is mild and may go unnoticed. Early detection is key to controlling spinal deformities. Spinal screening is non-invasive and conducted in accordance with the most recent nationally accepted and peer-reviewed standards.

All students who meet the Texas Department of State Health Services criteria will be screened for abnormal spinal curvature before the end of the school year. As appropriate, students will be referred for follow-up with their physician.

For information on spinal screening by an outside professional or exemption from spinal screening based on religious beliefs, contact the superintendent or see policy FFAA(LEGAL).

Other Examinations and Screenings (All Grade Levels)
Students are required to undergo a risk assessment for Type 2 diabetes at the same time the district screens students for hearing and vision issues or for abnormal spinal curvatures.

[See policy FFAA for more information.]

Special Health Concerns (All Grade Levels)

Bacterial Meningitis (All Grade Levels)
Please see the district's website at https://www.ecisd.us for information regarding meningitis.

Note: Entering college students must show, with limited exception, evidence of receiving a bacterial meningitis vaccination within the five-year period prior to enrolling in and taking courses at an institution of higher education. Please see the school nurse for more information, as this may affect a student who wishes to enroll in a dual credit course taken off campus.

[See **Immunization** on page 58.]

Diabetes
In accordance with a student's individual health plan for management of diabetes, a student with diabetes will be permitted to possess and use monitoring and treatment supplies and equipment while at school or at a school-related activity. See the school nurse or principal for information. [See policy FFAF(LEGAL) for more information.]

Food Allergies (All Grade Levels)
Parents should notify the district when a student has been diagnosed with a food allergy, especially an allergy that could result in dangerous or life-threatening reactions either by breathing, eating, or touching the particular food. It is important to disclose the food to which the student is allergic as well as the nature of the allergic reaction. Please contact the school nurse or campus principal if your child has a known food allergy or as soon as possible after any diagnosis of a food allergy.

The district has developed and annually reviews a food allergy management plan, based on the Texas Department of State Health Services' (DSHS) *Guidelines for the Care of Students with Food Allergies at Risk for Anaphylaxis* found on the DSHS Allergies and Anaphylaxis website (https://www.dshs.texas.gov/texas-school-health/resource-library/asthma-allergies-and-anaphylaxis

When the district receives information that a student has a food allergy that puts the student at risk for anaphylaxis, an individual care plan will be developed to assist the student in safely accessing the school environment. The district's food allergy management plan can be accessed at https://www.ecisd.us.

[See **Celebrations** on page 26 and policy FFAF for more information.]

Seizures (All Grade Levels)
Seizure Management and Treatment Plan
The parent or guardian of a student with a seizure disorder may seek care for the student's seizures while the student is at school or participating in a school activity by submitting to the district at which the student is enrolled a copy of a seizure management and treatment plan developed by the student's parent or guardian and the physician responsible for the student's seizure treatment. The plan must be on a form adopted by the Texas Education Agency (TEA) and submitted to and reviewed by the district:

1. Before or at the beginning of the school year;
2. On enrollment of the student, if the student enrolls in the district after the beginning of the school year; or
3. As soon as practicable following a diagnosis of a seizure disorder for the student.

Education Code 38.032(a)

Edinburg CISD
FFAF (LEGAL)-P
Update 122
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To address the care of a student with a seizure disorder while at school or participating in a school activity, a parent may submit a seizure management and treatment plan to the district before the beginning of the school year, upon enrollment of the student, or as soon as practicable following diagnosis of a seizure disorder. A parent who submits a plan must use the Seizure Management and Treatment Plan Form (https://tea.texas.gov/academics/tea-seizure-management-form.pdf) developed by the Texas Education Agency.

[See **A Student with Physical or Mental Impairments Protected under Section 504** on page 18 and contact the school nurse for more information.]

Tobacco, E-Cigarettes, and Nicotine Prohibited (All Grade Levels)

Students are prohibited from possessing or using any type of tobacco product, electronic cigarette (e-cigarette), or any other electronic vaporizing device while on school property or while attending an off-campus school-related activity. With limited exceptions for medication, [see Error! Reference source not found.] students are also prohibited from possessing or using any type of nicotine product, including nicotine pouches, regardless of whether the product contains tobacco, while on school property or while attending an off-campus school-related activity.

The district and its staff strictly enforce prohibitions against the use of all tobacco products, e-cigarettes, or any other electronic vaporizing device by students and all others on school property and at school-sponsored and school-related activities. [See the Student Code of Conduct and policies FNCD and GKA for more information.]

Health-Related Resources, Policies, and Procedures

Physical and Mental Health Resources (All Grade Levels)

Parents and students in need of assistance with physical and mental health concerns may contact the following campus and community resources:

- The district or campus full-time nurse.
- The district or campus full-time school counselor.
- The local public health authority, Dr. Ivan Melendez, which may be contacted at 956-383-6221, 1304 S. 25th Ave, Edinburg, Texas 78542.
- The local mental health authority, Tropical Texas Behavior Health, may be contacted at 956-289-7000, 1901 S. 24th Ave., Edinburg, Texas 78539.

Policies and Procedures that Promote Student Physical and Mental Health (All Grade Levels)

The district has adopted board policies that promote student physical and mental health. Local policies on the topics below can be found in the district's policy manual, available at the central administration office and online at https://www.ecisd.us.

- Food and Nutrition Management: CO, COA, COB
- Wellness and Health Services: FFA
- Physical Examinations: FFAA
- Immunizations: FFAB
- Medical Treatment: FFAC
- Communicable Diseases: FFAD
- School-Based Health Centers: FFAE
- Care Plans: FFAF

- Crisis Intervention: FFB
- Trauma-informed Care: FFBA
- Student Support Services: FFC
- Student Safety: FFF
- Child Abuse and Neglect: FFG
- Freedom from Discrimination, Harassment, and Retaliation: the FFH series of policies
- Freedom from Bullying: FFI

In addition, the District Improvement Plan details the district's strategies to improve student performance through evidence-based practices that address physical and mental health.

The district has developed administrative procedures as necessary to implement the above policies and plans.

For further information regarding these procedures and access to the District Improvement Plan, please contact Norma Santa Maria, Director of Federal Programs at (956) 289-2300, n.ramos@ecisd.us for further information regarding these procedures and access to the District Improvement Plan.

School Health Advisory Council (SHAC) (All Grade Levels)

During the preceding school year, the district's School Health Advisory Council (SHAC) held 4 meetings. Additional information regarding the district's SHAC is available from the school principal.

Notification of upcoming SHAC meetings will be posted at each campus administrative office at least 72 hours before the meeting. Notification of upcoming SHAC meetings, meeting minutes, and a recording of each meeting will be posted on the district website at https://www.ecisd.us.

[See **Consent to Instruction on Prevention of Child Abuse, Family Violence, Dating Violence, and Sex Trafficking** on page 4, and policies BDF and EHAA. For more information.]

Student Wellness Policy/Wellness Plan (All Grade Levels)

To encourage healthy habits in our students, the district has developed a board-adopted wellness policy at FFA(LOCAL) and corresponding plans and procedures to implement it. For questions about the content or implementation of the district's wellness policy and plan, please contact Diana M. Davila, R.N., Director of Health Services, (956)289-2300.

Homework (All Grade Levels)

Edinburg CISD has a goal to improve student academic achievement. The district-wide policy is to regularly assign homework and to carefully monitor students' work.

This home/school cooperative system will help each child reach their academic potential as well as develop student responsibility and self-discipline.

Homework assignments are intended to help students:

1. Develop independent habits.
2. Reinforce classroom learning.
3. Enrich their lives through independent projects.

Homework will only be assigned on Mondays, Tuesdays, Thursdays, and/or Fridays with the exception of special projects which may require additional preparation time.

Credit for homework will be awarded at the time that it is turned in as per compliance with approved campus/department and teacher policies.

Internet/Video-Conferencing Etiquette (If is applicable)

Students and staff must conduct themselves appropriately in an online environment.

- When you are typing or submitting a response, do not use all capital letters (caps). Caps is Equal to SHOUTING YOUR MESSAGE.
- Computer cameras should be on so students and teachers are visible throughout the lesson. This will allow teachers to have a better understanding whether students are grasping the content.
- Mute your microphone. Unmute when you have something to share/ask.
- Be mindful of background images in your meeting space.

- Participate in the virtual lesson (refrain from multi-tasking, answering calls, texting, etc.).
- Students must follow ECISD dress code policy. Proper school attire is required.
- Be respectful to others in attendance; no name-calling or vulgar language.
- ECISD student code of conduct rules apply in video-conferencing virtual classrooms.

Law Enforcement Agencies (All Grade Levels)

Questioning of Students

When law enforcement officers or other lawful authorities wish to question or interview a student at school, the principal will cooperate fully regarding the conditions of the interview, including without parental consent, if necessary, if it is part of a child abuse investigation. In other circumstances, the principal will:

- Verify and record the identity of the officer or other authority and ask for an explanation of the need to question the student at school.
- Ordinarily make reasonable efforts to notify the parents, unless the interviewer raises what the principal considers to be a valid objection.
- Ordinarily be present for the questioning or interview, unless the interviewer raises what the principal considers to be a valid objection.

Students Taken into Custody

State law requires the district to permit a student to be taken into legal custody:

- To comply with an order of the juvenile court.
- To comply with the laws of arrest.
- By a law enforcement officer if there is probable cause to believe the student has engaged in delinquent conduct or conduct in need of supervision.
- By a law enforcement officer to obtain fingerprints or photographs for comparison in an investigation.
- By a law enforcement officer to obtain fingerprints or photographs to establish a student's identity where the child may have engaged in conduct indicating a need for supervision, such as running away.
- By a probation officer if there is probable cause to believe the student has violated a condition of probation imposed by the juvenile court.
- By an authorized representative of Child Protective Services (CPS), Texas Department of Family and Protective Services (DFPS), a law enforcement officer, or a juvenile probation officer, without a court order, under the conditions set out in the Family Code relating to the student's physical health or safety.
- To comply with a properly issued directive from a juvenile court to take a student into custody.

Before a student is released to a legally authorized person, the principal will verify the person's identity and, to the best of his or her ability, will verify the person's authority to take custody of the student.

The principal will immediately notify the superintendent and will attempt to notify the parents, unless the legally authorized person raises what the principal considers to be a valid objection to notifying the parents. Because the principal does not have the authority to prevent or delay a student's release to a legally authorized person, any notification will most likely be after the fact.

Notification of Law Violations

The district is required by state law to notify:

- All instructional and support personnel who have responsibility for supervising a student who has been taken into custody, arrested, or referred to the juvenile court for any felony offense or for certain misdemeanors.
- All instructional and support personnel who have regular contact with a student who has been convicted, received deferred prosecution, received deferred adjudication, or was adjudicated for delinquent conduct for any felony offense or certain misdemeanors that occur in school, on school property, or at a school-sponsored or school-related activity on or off school property. These personnel will also be notified if the principal has reasonable grounds to believe the student has engaged in certain conduct.
- All appropriate district personnel regarding a student who is required to register as a sex offender.

[See policy GRAA(LEGAL) for more information.]

Leaving Campus (All Grade Levels)

Remember that student attendance is crucial. Appointments should be scheduled outside of school hours if possible. Except for extenuating circumstances, students will not regularly be released before the end of the school day.

Parental consent is required before any student leaves campus for any part of the school day.

For students in elementary and middle school, a parent or authorized adult must come to the office and show identification to sign the student out. A campus representative will ask the student to report to the office. For safety purposes and stability of the learning environment, we cannot allow any unescorted adult to go to the classroom or other area to pick up the student. If the student returns to campus the same day, the parent or authorized adult must sign the student back in through the main office upon the student's return. Documentation regarding the reason for the absence will also be required.

The same process applies to students in high school if a parent picks the student up from campus. If the student's parent authorizes the student to leave campus unaccompanied, the parent must submit a note to the main office at least two hours before the student needs to leave campus. A phone call from the parent may be accepted, but the school may ultimately require a note for documentation purposes. The student must sign out through the main office and sign in upon his or her return if the student returns the same day. The campus administration may contact parent via a phone call to confirm parents' permission/consent to leave campus unaccompanied.

If a student becomes ill during the school day and the school nurse or other district personnel determines that the student should go home, the nurse will contact the student's parent and document the parent's wishes regarding release from school.

Unless the parent directs district personnel to release the student unaccompanied, the parent or other authorized adult must follow the sign-out procedures listed above. If a student is permitted by his or her parent to leave campus unaccompanied, the nurse will document the time of day the student was released. Under no circumstances will a student in elementary or middle school be released unaccompanied.

If a student is 18 years of age or is an emancipated minor, the student may sign him- or herself out of school. Documentation regarding the reason for the absence will be required.

At Any Other Time during the School Day

Students are not authorized to leave campus during regular school hours for any other reason, except with the permission of the principal.

Students who leave campus in violation of these rules will be subject to disciplinary action in accordance with the Student Code of Conduct.

Early Dismissal

Early dismissal will only be allowed as absolutely necessary and/or if deemed ill by the nurse with proper parental/guardian identification.
No early student dismissal after 2:15 P.M. for Elementary School students will be allowed.

No early student dismissal after 3:00 P.M. for Middle School students will be allowed.

No early student dismissal after 3:30 P.M. for High School students will be allowed.

No student will be allowed early dismissal without an acceptable parental or guardian picture I.D.

Proper identification includes any one of the following:

- Texas Driver's License
- Texas Picture I.D.
- Immigration/Visa with picture I.D.
- Passport with picture I.D.
- Other form of picture I.D. deemed acceptable to school administrator after personal review.

Lost and Found (All Grade Levels)

A lost and found collection box is located in the campus office. A student who loses an item should check the lost and found box. The district discourages bringing personal items of high monetary value to school, as the

district is not responsible for lost or stolen items. The campus will dispose of lost and found items at the end of each semester.

Makeup Work

Makeup Work Because of Absence (All Grade Levels)

Students shall be permitted to take tests administered in any class missed because of absence.

A teacher may assign makeup work to a student who misses class based on instructional objectives and the needs of the student in mastering the essential knowledge and skills or meeting subject or course requirements.

The student will be responsible for obtaining and completing the makeup work within the time specified by the teacher. A student who does not make up assigned work within the time allotted by the teacher will receive a grade of zero for the assignment.

The student is encouraged to speak with his or her teacher if the student knows of an absence ahead of time so that the teacher and student may plan any makeup work. Please remember the importance of student attendance at school. With limited exceptions, all absences count for the 90 percent threshold set in state law regarding attendance for credit or final grade. [See **Attendance for Credit or Final Grade** on page 21.]

A student involved in an extracurricular activity must notify his or her teachers ahead of time about any absences.

A student will be permitted to make up tests and turn in projects due in any class missed because of absence. Teachers may assign a late penalty to any long-term project in accordance with timelines approved by the principal and previously communicated to students.

Students who are sent home by health services due to COVID-19 will be permitted to turn in tests, projects, assignments missed in any class because of absence without penalty.

The grade for make-up work after an unexcused absence shall be no higher than 60.

The District shall not impose a grade penalty for make-up work after an absence because of suspension.

DAEP Makeup Work

Grades 9-12

If a high school student is enrolled in a foundation curriculum course at the time of removal to a disciplinary alternative education program (DAEP), he or she will have an opportunity to complete the course before the beginning of the next school year. The district may provide the opportunity to complete the course through an alternative method, including a correspondence course, another distance learning option, or summer school. The district will not charge the student for any method of completion provided by the district. [See policy FOCA(LEGAL) for more information.]

In-School Suspension (ISS) and Out-of-School Suspension (OSS) Makeup Work (All Grade Levels)

Alternative Means to Receive Coursework

While a student is in ISS or OSS, the district will provide the student with all course work for the student's foundation curriculum classes that the student misses as a result of the suspension.

Opportunity to Complete Courses

A student removed from the regular classroom to ISS or another setting, other than a DAEP, will have an opportunity to complete before the beginning of the next school year each course the student was enrolled in at the time of removal from the regular classroom. The district may provide the opportunity by any method available, including a correspondence course, another distance learning option, or summer school. The district will not charge the student for any method of completion provided by the district. [See policy FO(LEGAL) for more information.]

Nondiscrimination Statement (All Grade Levels)

In its efforts to promote nondiscrimination and as required by law, the district does not discriminate on the basis of race, religion, color, national origin, gender, sex, age, disability, or any other basis prohibited by law in providing education services, activities, and programs, including Career and Technical Education (CTE) programs. The district provides equal access to the Boy Scouts and other designated youth groups.

In accordance with Title IX, the district does not and is required not to discriminate on the basis of sex and prohibits sex discrimination in its educational programs or activities. The requirement not to discriminate extends to employment. Inquiries about the application of Title IX may be referred to the district's Title IX Coordinator (see below), to the U.S. Department of Education's Office for Civil Rights, or both.

Other federal laws that prohibit discrimination include Title VI, Section 504, the Age Discrimination Act, the Boy Scouts Act, and Title II.

The district's nondiscrimination policy and grievance procedures are in policy FFH in the district's policy manual, available at https://www.ecisd.us.

The district has designated and authorized the following employee as the Title IX Coordinator to address concerns or inquiries regarding discrimination on the basis of sex, including sexual harassment, sexual assault, dating violence, domestic violence, stalking, or sex-based harassment: Mark S. Micallef, Director of Personnel/Legal Issues, **m.micallef@ecisd.us** by phone at (956) 289-2300, ext. 2728 or by mail at 411 N. 8th Ave., Edinburg Texas, 78541.

Reports can be made at any time and by any person, including during non-business hours, by mail, phone, or email. During district business hours, reports may also be made in person. Upon the district receiving notice or an allegation of sex-based harassment, the Title IX Coordinator will promptly respond in accordance with the process described in the FFH series of policies.

The following district representatives have been designated to address concerns or inquiries about other kinds of discrimination:

- For concerns regarding discrimination on the basis of disability, see the ADA/Section 504 Coordinator, for concerns regarding discrimination on the basis of disability; Sofia Hinojosa, Director of Student & Social Services, sofia.hinojosa@ecisd.us by phone at (956) 289-2300, ext. 2024 or by mail at 411 N. 8th Ave., Edinburg Texas, 78541.
- For all other concerns regarding discrimination see the Superintendent of Schools, by phone at (956) 289-2300 or at 411 N. 8th Ave., Edinburg, Texas 78541.

[See policies FB, FFH, and GKD for more information.]

Nontraditional Academic Programs (All Grade Levels)

The district offers a nontraditional academic program for students who meet criteria. For more information, students/parents may contact the high school counselor.

Parent and Family Engagement (All Grade Levels)

Parental Rights and Options

State law provides that a parent has the right to direct the moral and religious training of the parent' s child, make decisions concerning the child's education, and consent to medical, psychiatric, and psychological treatment of the child without obstruction of interference from a government entity of Texas, including a school district.

In addition to referring to the rights of parents, including the right to withhold consent for or exempt the parent's child from certain activities and instruction specified throughout this handbook, parents may access additional information regarding parental rights at the district's website at: www.ecisd.us.

Working Together

Experience and research tell us that a child succeeds in education with good communication and a strong partnership between home and school. A parent's involvement and engagement in this partnership may include:

- Encouraging your child to put a high priority on education and working with your child every day to make the most of the educational opportunities the school provides.
- Ensuring that your child completes all homework assignments and special projects and comes to school each day prepared, rested, and ready to learn.
- Becoming familiar with all your child's school activities and with the academic programs, including special programs, offered in the district.
- Discussing with the school counselor or principal any questions you may have about the options and opportunities available to your child.

- Reviewing the requirements and options for graduation with your child in middle school and again while your child is enrolled in high school.
- Monitoring your child's academic progress and contacting teachers as needed. [See **Academic Counseling** on page 39.]
- Attending scheduled conferences and requesting additional conferences as needed. The district will provide at least two opportunities for in-person conferences during each school year for each parent of a child enrolled in the district with the child's teachers. To schedule a telephone or in-person conference with a teacher, school counselor, or principal, please call the school office for an appointment. The teacher will usually return your call or meet with you during his or her conference period or before or after school. [See **Report Cards/Progress Reports and Conferences** on page 72.]
- Becoming a school volunteer. [See **Volunteers** on page 85 and policy GKG for more information.]
- Participating in campus parent organizations. Parent organizations include PTA, PTO, and booster clubs.
- Serving as a parent representative on the district-level or campus-level planning committees that develop educational goals and plans to improve student achievement. For more information, see policies BQA and BQB and contact the office of the Assistant Superintendent for Support Services at (956) 289-2300.
- Serving on the School Health Advisory Council (SHAC) and assisting the district in aligning local community values with health education instruction, human sexuality instruction, instruction on prevention of child abuse, family violence, dating violence, and sex trafficking, and other wellness issues. [See **School Health Advisory Council (SHAC)** on page 634 and policies BDF, EHAA, FFA for more information.]
- Being aware of the school's ongoing bullying and harassment prevention efforts.
- Contact school officials if you are concerned with your child's emotional or mental well-being.
- Attending board meetings to learn more about district operations. Regular board meetings are held on the second and fourth Tuesdays of each month at 6:00 p.m. at 411 North 8th Avenue at the ECISD Central Office Board Room. An agenda for a regular or special meeting is posted no later than 3 business days before each meeting at 411 North 8th Avenue, Edinburg, Texas and online at https://www.ecisd.us [See policies at BE and BED for more information.]

When determined necessary and for the convenience of Board members, the Board President may change the date, time, or location of a regular meeting with proper notice.

Parking and Parking Permits (Secondary Grade Levels Only)

A student must present a valid driver's license and proof of insurance to be eligible for a parking permit.

Students must request a parking permit to park in a school parking lot. So long as space is available, parking permits may be issued throughout the year and pay the applicable fee.

Students will not be permitted to:

- Speed
- Double-park
- Park across a white or yellow line
- Park in a fire lane
- Sit in parked cars during school hours

Students may be subject to disciplinary action for violation of these rules. The district may tow cars that are parked in violation of these rules.

Pledges of Allegiance and a Minute of Silence (All Grade Levels)

Each school day, students will recite the Pledge of Allegiance to the U.S. flag and the Pledge of Allegiance to the Texas flag. Parents may submit a written request to the principal to excuse their child from reciting a pledge. [See **Reciting the Pledges to the U.S. and Texas Flags** on page 9.]

State law requires that one minute of silence follow recitation of the pledges. Each student may choose to reflect, pray, meditate, or engage in any other silent activity during that minute so long as the silent activity does not interfere with or distract others.

In addition, state law requires that each campus provide for the observance of one minute of silence in remembrance of those who lost their lives on September 11, 2001, at the beginning of the first-class period when September 11 falls on a regular school day.

[See policy EC for more information.]

Prayer (All Grade Levels)
Each student has a right to pray individually, voluntarily, and silently or to meditate in school in a manner that does not disrupt school activities. The school will not require or coerce a student to engage in or refrain from such prayer or meditation during any school activity.

Private Spaces
In accordance with law, the district shall designate each multiple-occupancy private space in a building the district owns, operates, or controls for use only by individuals of one sex.

Multiple-occupancy private space means a facility designed or designated for simultaneous use by more than one individual and in which an individual may be in a state of undress in the presence of another individual, regardless of whether the facility provides curtains or partial walls for privacy. The term includes a restroom, locker room, changing room, or shower room.

Pre-Kindergarten Programs

Pre-Kindergarten 3 Program
ECISD will provide full day Pre-Kindergarten 3 classes for all students who are three (3) years old on or before September 1st for the school year.

Eligibility Requirements
In ord**er to be eligible for enrollment in the Pre-Kindergarten 3 Program, a child must be:**

- Three (3) years old on or before September 1st

Documentation Required

- Child's birth-certificate
- Child's up-to date immunization records
- Child's social security card
- Proof of residency (utility bill)
- Identification of person registering the child
- Proof of household income (current pay stub)

Pre-Kindergarten 4 Program
ECISD will provide full day Pre-Kindergarten 4 classes for all students who are four (4) years old on or before September 1st for the school year.

Eligibility Requirements
In order to be eligible for enrollment in the Pre-Kindergarten Program, a child must be:

- Four (4) years old on or before September 1st

Documentation Required

- Child's birth-certificate
- Child's up-to date immunization records
- Child's social security card
- Proof of residency (utility bill)
- Identification of person registering the child
- Proof of household income (current pay stub)

Promotion and Retention
A student will be promoted only on the basis of academic achievement or proficiency. In making promotion decisions, the district will consider the following:

- Teacher recommendation

- Grades
- Scores on criterion-referenced or state-mandated assessments
- Any other necessary academic information as determined by the district

Pre-Kindergarten through Grade 3
A parent may request in writing that a student repeat Pre-kindergarten, kindergarten, or grade 1, 2, or 3. Before granting the request, the district may convene a retention committee to meet and discuss the request and will invite the parent to participate.

In grades K-5, promotion is based on an overall average of 70 on a scale of 100 based on course-level, grade-level standards, Texas Essential Knowledge and Skills (TEKS) for all subject areas and a grade of 70 or above in three of the following areas: language arts, mathematics, science, and social studies.

*Students will not be promoted any time after the 1st or 5th six weeks. *

All recommendations must be reviewed by the Campus Promotion Retention Committee, Curriculum & Instruction Assistant Superintendent, and the perspective Area Directors.

[See **State Assessment** on page 69]

Middle School Grade Levels
In grades 6-8, promotion is based on an overall average of 70 on a scale of 100 based on course-level, grade-level standards (essential knowledge and skills) for all subject areas and a grade of 70 or above in three of the following areas: language arts, mathematics, science, and social studies.

Repeating Prekindergarten *OR* Kindergarten — Grade-8 at Parent Request
A parent may request in writing that a student repeat prekindergarten, kindergarten, or any grade in grade 1-8. Before granting the request, the district may convene a retention committee to meet and discuss the request and will invite the parent to participate.

High School Grade Levels
To earn credit in a course, a student must receive a grade of at least 70 based on course-level standards.

A student in grades 9-12 will be advanced a grade level based on the number of course credits earned. [See **Grade-Level Classification** on page 50.]

Students will also have multiple opportunities to retake End of Course (EOC) assessments. [See **Graduation** on page 52 and **Standardized Testing** on page 81.]

Repeating a High-School Credit Course
A parent may request in writing that a student repeat a high-school credit course in which the student was enrolled during the previous school year unless the district determines that the student has met all requirements for graduation.

Before granting the request, the district may convene a retention committee to meet and discuss the request and will invite the parent to participate.

Only the student's first passing grade will be included in the calculation of class ranking.

Release of Students from School
[See **Leaving Campus** on page 67.]

Remote Instruction
The district may offer remote instruction in accordance with TEA guidelines.

All district policies, procedures, guidelines, rules, and other expectations of student behavior will be enforced as applicable in a remote or virtual learning environment.

Report Cards/Progress Reports and Conferences (All Grade Levels)
Report cards with each student's performance and absences in each class or subject are issued at least once every 3 weeks.

At the end of the first three weeks of a grading period, parents will receive a progress report of their child's performance in all courses/subjects areas. If a student receives a grade lower than 70 in any class or subject at the end of a grading period, the parent will be asked to schedule a conference with the teacher. [See **Working Together** on page 69 for how to schedule a conference.]

Teachers follow grading guidelines that have been approved by the superintendent or designee pursuant to the board-adopted policy. Grading guidelines are designed to reflect each student's relative mastery of each assignment. State law provides that a test or course grade issued by a teacher cannot be changed unless the board determines that the grade was arbitrary or contains an error, or that the teacher did not follow the district's grading policy. [See **Grading Guidelines** on page 50 and policy EIA(LOCAL) for more information.]

Questions about grade calculation should first be discussed with the teacher. If the question is not resolved, the student or parent may request a conference with the principal in accordance with FNG(LOCAL).

The report card or unsatisfactory progress report will state whether tutorials are required for a student who receives a grade lower than 70.

The district may communicate academic information about a student electronically, including for progress reporting purposes. An electronic signature will be accepted by the district, but parents are entitled to request a handwritten signature of acknowledgment instead.

Retaliation

[See **Dating Violence, Discrimination, Harassment, and Retaliation** on page 41.]

Required State Assessments

STAAR (State of Texas Assessments of Academic Readiness) for Grades 3-8

In addition to routine tests and other measures of achievement, students at certain grade levels are required to take the state assessment, called STAAR, in the following subjects:

- Mathematics, annually in grades 3-8
- Reading, annually in grades 3-8
- Science in grades 5 and 8
- Social Studies in grade 8

Standardized Testing for a Student Enrolled Above Grade Level

If a student in grades 3-8 is enrolled in a class or course intended for students above his or her current grade level in which the student will be administered a state-mandated assessment, the student will be required to take an applicable state-mandated assessment only for the course in which he or she is enrolled, unless otherwise required to do so by federal law.

A student in grades 3-8 shall be assessed at least once in high school with the ACT or the SAT if the student completes the high school end-of-course assessments in mathematics, reading/language arts, or science prior to high school.

High School Courses End-of-Course (EOC) Assessments

STAAR end-of-course (EOC) assessments are administered for the following courses:

- Algebra I
- English I and English II
- Biology
- U.S. History

Satisfactory performance on the applicable assessments is required for graduation, unless waived or substituted as allowed by state law and rules.

There are three testing windows during the year in which a student may take an EOC assessment. The windows occur in the fall, spring, and summer months. If a student does not meet satisfactory performance, the student will have opportunities to retake the assessment.

Requesting Administration of STAAR/EOC in Paper Format (All Grade Levels)

STAAR and EOC assessments are administered electronically.

A parent or teacher may request that a STAAR or EOC be administered to a student in paper format. The district may grant this request for any single administration for up to three percent of the number of students enrolled in the district. Requests will be granted in the order in which they are received.

Requests for paper format for a fall administration of a STAAR or EOC must be submitted no later than September 15 each school year.

Requests for paper format for a spring administration of a STAAR or EOC must be submitted no later than December 1 each school year.

Standardized Testing for a Student in Special Programs

Certain students — some with disabilities and some classified as emergent bilingual students — may be eligible for exemptions, accommodations, or deferred testing. For more information, contact the principal, school counselor, or special education director.

STAAR Alternate 2 is available for eligible students receiving special education services who meet specific criteria established by the state as determined by the student's ARD committee.

An admission, review, and dismissal (ARD) committee for a student receiving special education services will determine whether successful performance on the EOC assessments will be required for graduation within the parameters identified in state rules and the student's personal graduation plan (PGP). [See **Graduation** on page 52.]

STAAR Spanish is available for eligible students for whom a Spanish version of STAAR is the most appropriate measure of their academic progress.
For more information, contact the principal, school counselor, or special education director.

Failure to Perform Satisfactorily on STAAR or EOC

If a student does not perform satisfactorily on a required state assessment in any subject, the district will provide accelerated instruction for the student in the next school year through one of the following:

- Assigning the student to a teacher who is certified as a master, exemplary, or recognized teacher if one is available in the grade and subject matter of the state assessment on which the student did not perform satisfactorily, or
- Providing supplemental instruction.

A student may be required to attend any assigned supplemental instruction program before or after school or during the summer.

When a student fails to perform satisfactorily on a required state assessment in the same subject area for two or more years, the district shall develop an accelerated education plan. Parents are encouraged to participate in developing this plan.

Testing

In order for students to do their best on any test, they must be comfortable and alert.

Parents are encouraged to be aware of their child's schedule and to assure that the child comes to school every day – but especially on test days. We encourage students to:

- A good night's sleep
- A good breakfast; and
- Dressing appropriately for weather or for the temperature inside the testing center

Personal Graduation Plans — Middle School Students

For a middle school student who does not perform satisfactorily on a state-mandated examination, a school official will prepare a personal graduation plan (PGP).

School officials will also develop a PGP for a middle school student who is determined by the district to be unlikely to earn a high school diploma within five years of high school enrollment. The plan will, among other items:

- Identify the student's educational goals.
- Address the parent's educational expectations for the student.
- Outline an intensive instruction program for the student.

[See the school counselor and policy EIF(LEGAL) for more information.]

For a student receiving special education services, the student's IEP may serve as the student's PGP and would therefore be developed by the student's ARD committee.

[See **Personal Graduation Plans** on page 55 for information related to the development of personal graduation plans for high school students.]

Safe Storage of Firearms
A firearm should be stored unloaded in a safe or locked container, with ammunition stored elsewhere.
It is unlawful to store, transport, or abandon an unsecured firearm in a place where children are likely to be and can obtain access to the firearm. Under the Penal Code, a person commits the offense of making a firearm accessible to a child if the child gains access to a readily dischargeable firearm, and the person with criminal negligence:

- Failed to secure the firearm; or
- Left the firearm in a place to which the person knew or should have known the child would gain access

The penalty for allowing a child access to a firearm can range from a Class C misdemeanor (punishable by a $500 fine) to a Class A misdemeanor (punishable by a $4000 fine, a year in jail, or a combination of the two.)

Safety (All Grade Levels)
Student safety on campus, at school-related events, and in district vehicles is a high priority of the district. The cooperation of students is essential to ensuring school safety. A student is expected to:

- Avoid conduct that is likely to put the student or others at risk.
- Follow all behavioral standards in this handbook and the Student Code of Conduct or set by district employees.
- Help secure the campus by keeping all exterior doors closed, latched, and locked unless the door is actively monitored by a district employee.
- Follow instructions from teachers and other district employees regarding classroom doors.
- Help secure the campus by keeping all exterior doors closed, latched, and locked unless the door is actively monitored by a district employee.
- Follow instructions from teachers and other district employees regarding classroom doors.
- Remain alert to any safety hazards, such as intruders on campus or threats made by any person toward a student or staff member, and promptly report any incidents to a district employee. A student may submit anonymous reports about safety concerns using the ECISD or campus website and clicking on the Report Bullying/Anonymous Alerts icon located on the district website.
- Know emergency evacuation routes and signals.
- Follow immediately the instructions of teachers, bus drivers, and other district employees who are overseeing the welfare of students.

Accident Insurance
Soon after the school year begins, parents will have the opportunity to purchase low-cost accident insurance that would help meet medical expenses in the event of injury to their child.

Insurance for Career and Technical Education (CTE) Programs
The district may purchase accident, liability, or automobile insurance coverage for students and businesses involved in the district's CTE programs.

Preparedness Drills: Evacuation, Severe Weather, and Other Emergencies
Periodically, the school will conduct preparedness drills of emergency procedures. When the command is given or alarm is sounded, students need to follow the direction of teachers or others in charge quickly, quietly, and in an orderly manner.

Preparedness Training: CPR and Stop the Bleed
The district will offer instruction in CPR and the use of an automated external defibrillator (AED) at least once to students enrolled in grades 7-12. The instruction can be provided as part of any course and is not required to result in CPR or AED certification.

The district will annually offer students in grades 7-12 instruction on the use of bleeding control stations to respond to traumatic injury. For more information, see:

- Homeland Security's Stop the Bleed (https://www.dhs.gov/stopthebleed)
- Stop the Bleed Texas (https://stopthebleedtexas.org/)

Emergency Medical Treatment and Information

All parents are asked each year to complete a medical care authorization form, providing written parental consent to obtain emergency treatment and information about allergies to medications or drugs. Parents should contact the school nurse to update emergency care information (name of doctor, emergency phone numbers, allergies, and the like).

The district may consent to medical treatment, including dental treatment, if necessary, for a student if all of the following requirements are met:

- The district has received written authorization from a person having the right to consent;
- That person cannot be contacted; and
- That person has not given the district actual notice to the contrary.

The emergency care authorization form will be used by the district when a student's parent or authorized designee cannot be contacted. A student may provide consent if authorized by law or court order.

Regardless of parental authorization for the district to consent to medical treatment, district employees will contact emergency medical services to provide emergency care when required by law or when deemed necessary, such as to avoid a life-threatening situation.

Emergency School Closing Information

Each year, parents are asked to complete an emergency release form to provide contact if the district needs to notify parents of early dismissal, delayed opening, or restricted access to a campus because of severe weather, a security threat, or another emergency cause.

The district will rely on contact information on file to communicate with parents in an emergency situation, which may include real-time or automated messages. It is crucial to notify your child's school when a phone number changes. State law requires parents to update contact information within two weeks after the date the information changes.

If the campus must close, delay opening, or restrict access to the building because of an emergency, the district will also alert the community by using ECISD's on-line communications system.

[See **Parent Contact Information** on page 32 and **Automated Emergency Communications** on page 32.]

SAT, ACT, and Other Standardized Tests

[See **Standardized Testing** on page 81.]

Schedule Changes (Middle School and High School Grade Levels)

Every year, students are required to schedule state required and elective courses from the curriculum offerings. During the spring registration, students are encouraged to choose courses carefully and are advised to review these selections for the following school year. The selections made by the students determine personnel and design of the master schedule. Schedule changes are discouraged and will be approved only under certain circumstances; these may include when the student:

- Is using an alternative means to complete the course
- Fails a course prerequisite to a scheduled course
- Is a senior in a class that is removed from the school schedule

Exceptional circumstances will be discussed with the teacher, reviewed by the counselor, and approved by the Principal or principal's designee.

Schedule Corrections

Schedule corrections will occur only in the case(s) where an error in either level or course placement was made. These situations will be investigated and confirmed by the counselor and the principal.

Course Changes

No course will be dropped after the first 10 days of each semester. Credit will not be awarded after 10 days of each semester if a student changes a course or enters without having been enrolled in another school.
A student who drops courses after 10 school days will not receive credit for the semester in either the course dropped or the course in which he/she is enrolled. He will, however, receive grades for purposes of determining eligibility for extracurricular activities.
A change among levels (e.g., from academic level of honors of the same course) will not be treated as a course change. Exceptional circumstances will be discussed with the teacher, reviewed by the counselor and parent, and approved by the principal or principal's designee.

Course Level Change
All level change requests will be made with teacher and principal approval and must have written parent permission. A change request in level upward (such as from advanced to honors level of the same course) for courses must be made within the first 10 days of the semester. A change request downward (honors to advanced) must be made at the end of the first grading period of each semester.

Eligibility for Extracurricular Activities
If a student is failing a course at the time of withdrawal, he/she will be ineligible to participate in extracurricular activities for the length of time determined by the current U.I.L. Side by Side handbook.

PE Substitute Changes
A change from a PE equivalent course to a physical education course will allow for transfer of grades. Cooperative work programs course changes must be completed within the first 10 days of each semester.

School Facilities

Asbestos Management Plan (All Grade Levels)
The district works diligently to maintain compliance with federal and state law governing asbestos in school buildings. A copy of the district's asbestos management plan is available in the principal's office as well as the school's Central Administration Office. If you have any questions or would like to examine the district's plan in more detail, please contact the district's designated asbestos coordinator or Maintenance & Compliance Supervisor at 956-289-2577.

Food and Nutrition Services (All Grade Levels)
The district participates in the School Breakfast Program and National School Lunch Program and offers students nutritionally balanced meals daily in accordance with standards set forth in state and federal law.

The district participates in Provision II and will provide breakfast and lunch to all students at no cost. Information on this program can be obtained by calling (956) 289-2575.

The Texas Department of Agriculture repealed the Texas Public School Nutrition Policy and introduced the Competitive Food and Beverage Nutrition Standards in its place.

The standards established are to ensure students are able to purchase healthy meals and snacks. These standards apply to food sold at sites operating the National School Lunch Program (NSLP) and School Breakfast Program (SBP).

Competitive Food and Beverage Nutrition Standards apply to all schools and grade levels.

- Official School Day – The period from midnight before the beginning of the instructional day to 30 minutes after the end of the official instructional day. The Competitive Food and Nutrition Beverage Standards do not apply beyond the official instructional day.
- Competitive Food – The Competitive Food and Beverage Nutrition Standards apply to foods and / or beverages sold to students that compete with the school's operation of the NSLP and/or SBP.
- This includes, but is not limited to, food and/or beverages sold in a meal service line, in vending machines, in school stores, or a part of school's fundraisers.
- Fundraisers – The Competitive Food and Beverage Standards apply to food and/or beverages sold as fundraisers and cannot be in competition with school meal service or consumed in areas designated for school meals.
- Students with Special Needs – The Competitive Food and Beverage Nutrition Standards does not apply to students with special dietary needs or for those that need food and/or beverages for behavior modifications.

The following information is published as required by the USDA for participation in the National School Lunch Program:

"In accordance with federal civil rights law and U.S. Department of Agriculture (USDA) civil rights regulations and policies, this institution is prohibited from discriminating on the basis of race, color, national origin, sex, disability, age, or reprisal or retaliation for prior civil rights activity.

"Program information may be made available in languages other than English. Persons with disabilities who require alternative means of to obtain program information (e.g., Braille, large print, audiotape, American Sign Language), should contact the responsible state or local agency that administers the program or USDA's TARGET Center at (202) 720-2600 (voice and TTY) or contact USDA through the Federal Relay Service at (800) 877-8339.

> "To file a program discrimination complaint, a Complainant should complete a Form AD-3027, USDA Program Discrimination Complaint Form which can be obtained online at: https://www.usda.gov/sites/default/files/documents/ad-3027.pdf, from any USDA office, by calling (866) 632-9992, or by writing a letter addressed to USDA. The letter must contain the complainant's name, address, telephone number, and a written description of the alleged discriminatory action in sufficient detail to inform the Assistant Secretary for Civil Rights (ASCR) about the nature and date of an alleged civil rights violation. The completed AD-3027 form or letter must be submitted to USDA by:
>
> 1. **mail:**
>
> U.S. Department of Agriculture
> Office of the Assistant Secretary for Civil Rights
> 1400 Independence Avenue, SW
> Washington, D.C. 20250-9410; or
>
> 2. **fax:**
>
> (833) 256-1665 or (202) 690-7442; or
>
> 3. **email:**
>
> Program.Intake@usda.gov
>
> "This institution is an equal opportunity provider."

The responsible state agency that administers the program is the Texas Department of Agriculture (https://www.texasagriculture.gov/Home/Contact-Us), which can be reached at (800) TELL-TDA (835-5832) or (800) 735-2989 (TTY).

The local agency that administers the program is the district. See **Nondiscrimination Statement** on page 68 for the name and contact information for the Title IX Coordinator, ADA/Section 504 Director, and Superintendent of Schools for other concerns about discrimination.

Special Diets

USDA regulations require substitutions and/or modifications in school meals for children whose disabilities restrict their diets be supported by a statement from a licensed physician from the United States. Annual revision of special diets is required on the official diet order form found on our website.

Restrictions on Certain foods and beverages (All Grade Levels)

The district shall restrict the consumption of high-energy foods and beverages by students while on District property due to the potential risks of harmful side effects associated with these products. The district will provide education to students and parents regarding the health risks associated with the consumption of these products, in alignment with national nutritional guidelines and recommendations from the American Academy of Pediatrics (AAP).

For purposes of this policy, high-energy foods and beverages are defined as products that contain elevated levels of caffeine. Added sugars, stimulants (including but not limited to guarana, taurine, or similar compounds), or other substances marketed to increase energy, alertness, or physical performance. This includes, but is not limited to, energy drinks, energy shots, and high caffeinated beverages.

Nothing in this provision shall prohibit accommodation required by a student's disability, medical condition, allergy, or other special dietary need as documented and approved in accordance with the district's procedures. FFAC LOCAL-X adopted 07/28/2026.

Vending Machines (All Grade Levels)
The district has adopted and implemented the state and federal policies for food service, including guidelines to restrict student access to vending machines. For more information regarding these policies and guidelines, see the school principal. [See policy FFA for more information.]

Pest Management Plan (All Grade Levels)
The district is required to follow integrated pest management (IPM) procedures to control pests on school grounds. Although the district strives to use the safest and most effective methods to manage pests, including a variety of non-chemical control measures, periodic indoor and outdoor pesticide use is sometimes necessary to ensure a safe, pest-free school environment.

All pesticides used are registered for their intended use by the U.S. Environmental Protection Agency and are applied only by certified pesticide applicators. Except in an emergency, signs will be posted 48 hours before indoor application. All outdoor applications will be posted at the time of treatment, and signs will remain until it is safe to enter the area.

Parents who have questions or who want to be notified of the times and types of applications prior to pesticide application inside their child's school assignment area may contact the Maintenance Director 956-289-2577.

Conduct Before and After School (All Grade Levels)
Teachers and administrators have full authority over student conduct at before- or after-school activities. Whether a school activity is on or off district premises, students must follow the same rules of conduct that apply during the instructional day. Misbehavior will be subject to consequences established by the Student Code of Conduct or any stricter standards of behavior established by the sponsor for extracurricular participants.

Library (All Grade Levels)
All students have a class scheduled time and/or independent use time. Please visit the campus library to learn dates and times.

The library is a learning laboratory with books, computers, magazines, and other materials available for classroom assignments, projects, and reading or listening pleasure.

The district provides a wide range of library materials for students and faculty that support student achievement and present varying levels of difficulty, diversity of appeal, and a variety of points of view. The district follows the Texas State Library and Archive Commission's standards for school library collection development.
[If the district's board has established a local school library advisory council (SLAC), include information about the district's SLAC as adopted by the board.]

Parents are the primary decision makers regarding their student's access to library material. The district encourages parental involvement in library acquisition, maintenance, and campus activities. Parents are encouraged to communicate with the campus librarian and their child's teacher about special considerations regarding library materials self-selected by their student. A parent may submit to the district a list of library material that their child may not be allowed to check out or otherwise access for use outside the school library by submitting the list to the campus librarian.

The district will provide parents with a record of each time the parent's child checks out a library material that includes the title, author, genre, and return date of the library material through Follet/Destiny.

A parent may access the school's library or any available online catalog by visiting the district library webpage, selecting Follett/Destiny and Destiny Discover.

The district welcomes student and parent feedback on library materials and services. Parents may contact the campus librarian with questions or comments about their child's campus library. A district employee, parent, or

person residing in the district may submit a written challenge to the inclusion of any library material in the catalog of the school library by submitting the form available on the district's website.

Use of Hallways during Class Time (All Grade Levels)

During class times, loitering or standing in the halls is not permitted, and a student must have a hall pass to be outside the classroom for any purpose. Failure to obtain a pass will result in disciplinary action in accordance with the Student Code of Conduct.

Use by Students Before and After School (All Grade Levels)

Certain areas of the school will be accessible to students before and after school for specific purposes. Students are required to remain in the area where their activity is scheduled to take place.

Unless the teacher or sponsor overseeing an activity gives permission, a student will not be permitted to go to another area of the building or campus.

Students must leave campus immediately after dismissal of school in the afternoon, unless the student is involved in an activity under the supervision of a teacher or other authorized employee or adult.

Meetings of Non-curriculum-Related Groups (Secondary Grade Levels Only)

Student-organized, student-led non-curriculum-related groups are permitted to meet during the hours designated by the principal before and after school. These groups must comply with the requirements of policy FNAB(LOCAL).

A list of these groups is available in the principal's office.

Parental consent is required before a student may participate in a student club that is authorized or sponsored by the district. [See Extracurricular Activities, Clubs, and Organizations (All Grade Levels)]

School-Sponsored Field Trips (All Grade Levels)

The district periodically takes students on field trips for educational purposes.

A parent must provide permission for a student to participate in a field trip.

The district may ask the parent to provide information about a student's medical provider and insurance coverage and may also ask the parent to sign a waiver allowing for emergency medical treatment in the case of a student accident or illness during the field trip.

The district may require a fee for student participation in a field trip that is not required as part of a basic educational program or course to cover expenses such as transportation, admission, and meals; however, a student will not be denied participation because of financial need. See **Fees (All Grade Levels)** on page 49 for more information.

The district is not responsible for refunding fees paid directly to a third-party vendor.

Searches and Investigations

Searches in General (All Grade Levels)

In the interest of promoting student safety and drug-free schools, district officials may occasionally conduct searches and investigations.

District officials may conduct investigations in accordance with law and district policy and may question students regarding a student's own conduct or the conduct of others. [For questioning of students by law enforcement officials, see Law Enforcement Agencies (All Grade Levels).]

District officials may search students, their belongings, and their vehicles in accordance with law and district policy. Searches of students will be conducted without discrimination, based on, for example, reasonable suspicion or voluntary consent or pursuant to district policy providing for suspicion less security procedures including the use of metal detectors.

In accordance with the Student Code of Conduct, students are held responsible for prohibited items found in their possession, including items in their personal belongings or in vehicles parked on district property.

If there is reasonable suspicion to believe that searching a student's person, belongings, or vehicle will reveal evidence of a violation of the Student Code of Conduct, a district official may conduct a search in accordance with law and district regulations.

District Property (All Grade Levels)

Desks, lockers, district-provided technology, and similar items are the property of the district and are provided for student use as a matter of convenience. District property is subject to search or inspection at any time without notice. Students should have no expectation of privacy in district property.

Students are responsible for any item found in district property provided to the student that is prohibited by law, district policy, or the Student Code of Conduct.

Metal Detectors (All Grade Levels)

To maintain a safe and disciplined learning environment, the district reserves the right to subject students to metal detector searches when entering a district campus and at off-campus, school-sponsored activities.

Telecommunications and Other Electronic Devices (All Grade Levels)

Use of district-owned equipment and its network systems is not private and will be monitored by the district. [See policy CQ for more information.]

Any searches of personal electronic devices will be conducted in accordance with law, and the device may be confiscated to perform a lawful search. A confiscated device may be turned over to law enforcement to determine whether a crime has been committed.

[See **Electronic Devices and Technology Resources** on page 46 and policy FNF(LEGAL) for more information.]

Trained Dogs (All Grade Levels)

The district may use trained dogs to screen for concealed, prohibited items, including drugs and alcohol. Screenings conducted by trained dogs will not be announced in advance. The dogs will not be used with students, but students may be asked to leave personal belongings in an area that is going to be screened, such as a classroom, a locker, or a vehicle. If a dog alerts to an item or an area, it may be searched by district officials.

[See **Steroids** on page 61.]

Vehicles on Campus (Secondary Grade Levels Only)

If a vehicle subject to search is locked, the student will be asked to unlock the vehicle. If the student refuses, the district will contact the student's parents. If the parents also refuse to permit the vehicle to be searched, the district may turn the matter over to law enforcement. The district may contact law enforcement even if permission to search is granted.

Sexual Harassment

[See **Dating Violence, Discrimination, Harassment, and Retaliation** on page 41.]

Special Programs (All Grade Levels)

The district provides special programs for gifted and talented students, students who are homeless, students in foster care, bilingual students, migrant students, emergent bilingual students, students diagnosed with dyslexia, and students with disabilities. The coordinator of each program can answer questions about eligibility requirements, as well as programs and services offered in the district or by other organizations A student or parent with questions about these programs should contact the Office of the Assistant Superintendent for Curriculum & Instruction (956) 289-2300.

The Texas State Library and Archives Commission's Talking Book Program (https://www.tsl.texas.gov/tbp) provides audiobooks free of charge to qualifying Texans, including students with visual, physical, or reading disabilities such as dyslexia.

Standardized Testing

SAT/ACT (Scholastic Aptitude Test and American College Test)

Many colleges require either the American College Test (ACT) or the Scholastic Aptitude Test (SAT) for admission. These assessments are usually taken at the end of the junior year. Students are encouraged to talk

with the school counselor early during their junior year to learn about these assessments and determine the appropriate examination to take. The Preliminary SAT (PSAT) and Pre-ACT are the corresponding preparatory and readiness assessments for the SAT and ACT.

Note: These assessments may qualify a student to receive a performance acknowledgment on the student's transcript under the foundation graduation program and may qualify as a substitute for an end-of-course testing requirement in certain circumstances. A student's performance at a certain level on the SAT or ACT also makes the student eligible for automatic admission to a Texas public institution of higher education.

TSI (Texas Success Initiative) Assessment

Prior to enrollment in a Texas public college or university, most students must take a standardized test called the Texas Success Initiative (TSI) assessment. The TSI assesses the reading, mathematics, and writing skills that first-year students need to perform effectively as undergraduates in Texas public colleges and universities. This assessment may also be required before a student enrolls in a dual credit course offered through the district. Achieving certain benchmark scores on this assessment may also waive certain end-of-course assessment requirements in limited circumstances.

Student Speakers (All Grade Levels)

The district provides students the opportunity to introduce the following school events: 1.) football games 2.) opening announcements and greetings for the school day FNA(LOCAL). If a student meets the eligibility criteria and wishes to introduce one of the school events listed above, the student should submit his or her name in accordance with policy FNA(LOCAL).

Only those students in the highest two grade levels of the school at which the student is publicly speaking and who hold one of the following positions of honor based on neutral criteria are eligible to use the limited public forum: student council officers, class officers of the highest grade level in the school, captains of the football team, valedictorian, and salutatorian.

If a student meets the eligibility criteria and wishes to introduce one of the school events listed above, the student should submit his or her name in accordance with policy FNA(LOCAL).

[See **Graduation Speakers** on page 56 for information related to student speakers at graduation ceremonies and policy FNA(LOCAL) regarding other speaking opportunities.]

Summer School (All Grade Levels)

Summer School is available for student remediation and advancement. Dates and location are announced in May of each school year.

Tardies (All Grade Levels)

A student who is more than 15 minutes tardy to class may be subject to administrative or campus established consequence.

Textbooks, Electronic Textbooks, Technological Equipment, and Other Instructional Materials (All Grade Levels)

Instructional materials are any resources used in classroom instruction as part of the required curriculum, such as textbooks, workbooks, computer software, or online services.

The district selects instructional materials in accordance with state law and policy EFA.

The district provides approved instructional materials to students free of charge for each subject or class. Students must treat instructional materials with care, as directed by the teacher.

If a student requires a graphing calculator for a course and the district does not provide one, the student may use a calculator application with graphing capabilities on a phone, laptop, tablet, or other computing device.

A student who is issued a damaged item should report the damage to the teacher.

Any student who does not return an item or returns an item in an unacceptable condition loses the right to free textbooks and technological equipment until the item is returned or the damage is paid for by the parent. However, the student will be provided the necessary instructional resources and equipment for use at school during the school day.

For information on library books and other resources students may access voluntarily, see **Library (All Grade Levels)** on page 79.

Transfers (All Grade Levels)

The principal is authorized to transfer a student from one classroom to another.

The superintendent is authorized to investigate and approve transfers between schools.

[See **Safety Transfers/Assignments** on page 14, **Bullying** on page 23, and **A Student Who Has Learning Difficulties or Who Needs Special Education or Section 504 Services** on page 16, for other transfer options.]

Transportation (All Grade Levels)

School-Sponsored Trips

Students who participate in school-sponsored trips are required to use school-provided transportation to and from the event. However, in accordance with campus procedures, a parent may provide written consent for his or her child to ride with or be released after the event to the parent or another adult designated by the parent. [See **School-Sponsored Field Trips** on page 80.] *Also refer to ECISD Safety Regulations for Overnight Trips in Section A.

Buses and Other School Vehicles

The district makes school bus transportation available to all students living two or more miles from school and to any eligible students who are experiencing homelessness. This service is provided at no cost to students. More information may be obtained by calling (956) 316-7718 or (956) 316-8888.

Bus routes and stops will be designated annually. Any subsequent changes will be posted at the school and on the district's website. For the safety of the driver and all passengers, students must board district vehicles only at authorized stops and drivers must unload passengers only at authorized stops.

Due to ongoing rezoning, road construction, and residential construction, the school district identifies and prioritizes hazardous zones on a yearly basis.

Because students in these areas might encounter hazardous traffic conditions or be subject to a high risk of violence when walking to and from school, the district will provide transportation to these students. For additional information, please contact: Daniel Trevino, Director of Transportation, 1015 E. Schunior St., Edinburg, TX 78541, daniel.trevino@ecisd.us, (956) 929-3203.

A parent may designate a child-care facility or grandparent's residence as the regular pickup and drop-off location for his or her child. The designated location must be an approved stop on an approved route. For information on bus routes and stops or to designate an alternate pickup or drop-off location, contact Daniel Trevino, Director of Transportation, 1015 E. Schunior St., Edinburg, TX 78541, daniel.trevino@ecisd.us, (956) 929-3203.

Students are expected to assist district staff in ensuring that buses and other district vehicles are clean and safe. When riding in district vehicles, students are held to behavioral standards established in this handbook and the Student Code of Conduct. A student` must:

- Follow the driver's directions at all times.
- Enter and leave the vehicle in an orderly manner at the designated stop.
- Keep feet, books, instrument cases, and other objects out of the aisle.
- Not deface the vehicle or its equipment.
- Not put head, hands, arms, or legs out of the window, hold any object out of the window, or throw objects within or out of the vehicle.
- Not possess or use any form of tobacco or e-cigarettes in any district vehicle.
- Observe all usual classroom rules.
- Be seated while the vehicle is moving.
- Fasten their seat belts, if available.
- Wait for the driver's signal upon leaving the vehicle and before crossing in front of the vehicle.
- Follow any other rules established by the operator of the vehicle.

Misconduct will be punished in accordance with the Student Code of Conduct, including loss of the privilege to ride in a district vehicle.

[See the Student Code of Conduct for provisions regarding transportation to the DAEP.]

Vandalism (All Grade Levels)

Littering, defacing, or damaging school property is not tolerated. Students will be required to pay for damages they cause and will be subject to criminal proceedings as well as disciplinary consequences in accordance with the Student Code of Conduct.

Video Cameras (All Grade Levels)

For safety purposes, the district uses video and audio recording equipment to monitor student behavior, including on buses and in common areas on campus. Students will not be told when the equipment is being used.

The principal will review the video and audio recordings as needed and document student misconduct. Discipline will be in accordance with the Student Code of Conduct.

In accordance with state law, a parent of a student who receives special education services, a staff member (as this term is defined by law), a principal or assistant principal, or the board may make a written request for the district to place video and audio recording equipment in certain self-contained special education classrooms. The district will provide notice before placing a video camera in a classroom or other setting in which a child receives special education services. For more information or to request the installation and operation of this equipment, contact the principal or administrator that the district has designated to coordinate the implementation of and compliance with this law.

[See policy EHBAF(LOCAL) for more information.]

[See **Consent to Video or Audio Record a Student when Not Already Permitted by Law** on page 6 for video and other recording by parents or visitors to virtual or in-person classrooms.]

Visitors to the School (All Grade Levels)

General Visitors

Parents and others are welcome to visit district schools. For the safety of those within the school and to avoid disruption of instructional time, all visitors must:

- Request entry to the school at the primary entrance unless otherwise directed by a district employee.
- Report to the main office.
- Be prepared to show identification.
- Exit the school at the primary entrance and leave all exterior doors closed, latched, and locked unless actively monitored by a district employee.
- Comply with all applicable district policies and procedures.

ECISD utilizes the Raptor Visitor Management which is a web-based software application that has been developed with the purpose of aiding educational facilities in tracking their visitors, students and faculty. Raptor not only provides an effective, efficient method for tracking, but also goes beyond conventional applications by utilizing available public databases to help improve school security. It will allow schools to produce visitor badges, monitor volunteer hours, and electronically check all visitors against registered sexual offender databases or internal school alerts. The overall goal is to better control access to all ECISD schools; thus, providing enhanced protection for our students and staff.

If requested by a district employee, a visitor must provide identification such as a driver's license, other picture identification issued by a government entity, or employee or student identification issued by the district. A person who refuses to provide identification and who reasonably appears to have no legitimate reason to be on district property may be ejected from district property.

Individuals may visit classrooms or observe virtual instruction during instructional time only with approval of the principal and teacher. Visitors may not interfere with instruction or disrupt the normal school environment.

All visitors are expected to demonstrate the highest standards of courtesy and conduct. Disruptive behavior or violations of student privacy will not be permitted.

[See **Consent to Video or Audio Record a Student when Not Already Permitted by Law** on page 6 for video and other recording by parents or visitors to virtual or in-person classrooms.]

Unauthorized Persons

In accordance with Education Code 37.105, a school administrator, school resource officer (SRO), or district police officer has the authority to refuse entry to or eject a person from district property if the person refuses to leave peaceably on request and either of the following applies:

- The person poses a substantial risk of harm to any person
- The person behaves in a manner that is inappropriate for a school setting and persists in the behavior after being given a verbal warning that the behavior is inappropriate and may result in refusal of entry or ejection.

A verbal warning and persistent inappropriate behavior are not required for a person serving as a referee, judge, or other official of an extracurricular athletic activity or compensation sponsored or sanctioned by the school district or UIL to eject a spectator.

Appeals regarding refusal of entry or ejection from district property may be filed in accordance with policies FNG(LOCAL) or GF(LOCAL).
[See the Student Code of Conduct.]

Visitors Participating in Special Programs for Students

Business, Civic, and Youth Groups

The district may invite representatives from patriotic societies listed in Title 36 of the United States Code to present information to interested students about membership in the society.

Career Day

The district invites representatives from colleges and universities and other higher education institutions, prospective employers, and military recruiters to present information to interested students.

Volunteers (All Grade Levels)

The district invites and appreciates the efforts of volunteers who are willing to serve our district and students.

If you are interested in volunteering, please contact our district Parental Involvement Department at (956) 289-2318.

The district does not require state criminal history background checks for volunteers who are parents, guardians, or grandparents of a child enrolled in the district.

Subject to exceptions in accordance with state law and district procedures, other volunteers will be subject to a state criminal history background check and the volunteer must pay all cost for the background check.

Voter Registration (Secondary Grade Levels Only)

A student who is eligible to vote in any local, state, or federal election may obtain a voter registration application at the main campus office.

Withdrawing from School (All Grade Levels)

To withdraw a student under age 18 from school, the parent or guardian must submit a written request to the principal specifying the reasons for withdrawal and the final day the student will be in attendance. Withdrawal forms are available from the attendance office.

A student who is age 18 or older, who is married, or who has been declared by a court to be an emancipated minor may withdraw without parental signature.

Please provide the school at least three days' notice of withdrawal so that records and documents may be prepared.

Glossary

Accelerated instruction, including supplemental instruction, is an intensive educational program designed to help an individual student acquire the knowledge and skills required at his or her grade level. It is required when a student does not meet the passing standard on a state-mandated assessment. Accelerated instruction may be provided by assigning a student to a classroom teacher who is certified as a master, exemplary, or recognized teacher or by providing supplemental instruction in addition to regular instruction.

Accelerated learning committee (ALC), is a committee that must be established when a student does not perform satisfactorily on the math or reading assessment in grades 3, 5, or 8. The committee includes district personnel and the student's parent and develops an educational plan for accelerated instruction to enable the student to perform at the appropriate grade level by the end of the next school year.

ACT, or the American College Test, is one of the two most frequently used college or university admissions examinations. The test may be required for admission to certain colleges or universities.

ACT-Aspire is designed as a preparatory and readiness assessment for the ACT. This is usually taken by students in grade 10.

ARD stands for admission, review, and dismissal. The ARD committee convenes for each student who is identified as needing a full and individual evaluation for special education services. The eligible student and his or her parents are members of the committee.

Attendance review committee is responsible for reviewing a student's absences when the student's attendance drops below 90 percent, or in some cases 75 percent, of the days the class is offered. Under guidelines adopted by the board, the committee will determine whether there were extenuating circumstances for the absences and whether the student needs to complete certain conditions to master the course and regain credit or a final grade lost because of absences.

CPS stands for Child Protective Services.

DAEP stands for disciplinary alternative education program, a placement for students who have violated certain provisions of the Student Code of Conduct.

DFPS stands for the Texas Department of Family and Protective Services.

DPS stands for the Texas Department of Public Safety.

DSHS stands for the Texas Department of State Health Services.

ED stands for the U.S. Department of Education.

Emergent bilingual student refers to a student of limited English proficiency. Other related terms include English learner, English language learner, and limited English proficient student.

EOC (end-of-course) assessments are state-mandated and are part of the STAAR program. Successful performance on EOC assessments is required for graduation. These examinations will be given in English I, English II, Algebra I, Biology, and U.S. History.

ESSA is the federal Every Student Succeeds Act.

FERPA refers to the federal Family Educational Rights and Privacy Act, which grants specific privacy protections to student records. The law contains certain exceptions, such as for directory information, unless a student's parent or a student 18 years of age or older directs the school not to release directory information.

IEP stands for individualized education program and is the written record prepared by the ARD committee for a student with disabilities who is eligible for special education services.

IGC is the individual graduation committee, formed in accordance with state law, to determine a student's eligibility to graduate when the student has failed to demonstrate satisfactory performance on no more than two of the required state assessments.

ISS refers to in-school suspension, a disciplinary technique for misconduct found in the Student Code of Conduct. Although different from out-of-school suspension and placement in a DAEP, ISS removes the student from the regular classroom.

PGP stands for personal graduation plan, which is required for high school students and for any student in middle school who fails a section on a state-mandated test or is identified by the district as not likely to earn a high school diploma before the fifth school year after he or she begins grade 9.

PSAT is the preparatory and readiness assessment for the SAT. It also serves as the basis for the awarding of National Merit Scholarships.

Safe and Supportive School Team is a team established at each campus that is responsible for conducting a threat assessment regarding individuals who make threats of violence or exhibit harmful, threatening, or violent behavior and determining appropriate intervention, and providing guidance to students and school employees on recognizing harmful, threatening, or violent behavior that may pose a threat to the community, school, or individual.

SAT refers to the Scholastic Aptitude Test, one of the two most frequently used college or university admissions examinations. The test may be required for admissions to certain colleges or universities.

SHAC stands for School Health Advisory Council, a group of at least five members, a majority of whom must be parents, appointed by the school board to help ensure that local community values and health issues are reflected in the district's health education instruction, as well as assist with other student and employee wellness issues.

Section 504 is the federal law that prohibits discrimination against a student with a disability, requiring schools to provide opportunities for equal services, programs, and participation in activities. Unless the student is determined to be eligible for special education services under the Individuals with Disabilities Education Act (IDEA), general education with appropriate instructional accommodations will be provided.

STAAR is the State of Texas Assessments of Academic Readiness, the state's system of standardized academic achievement assessments.

STAAR Alternate 2 is an alternative state-mandated assessment designed for students with severe cognitive disabilities receiving special education services who meet the participation requirements, as determined by the student's ARD committee.

STAAR Spanish is an alternative state-mandated assessment administered to eligible students for whom a Spanish version of STAAR is the most appropriate measure of their academic progress.

State-mandated assessments are required of students at certain grade levels and in specified subjects. Except under limited circumstances, students must pass the STAAR EOC assessments to graduate. Students have multiple opportunities to take the tests, if necessary, for graduation.

Student Code of Conduct is developed with the advice of the district-level committee and adopted by the board and identifies the circumstances, consistent with law, when a student may be removed from a classroom, campus, or district vehicle; sets out the conditions that authorize or require the principal or another administrator to place the student in a DAEP; and outlines conditions for out-of-school suspension and for expulsion. The Student Code of Conduct also addresses notice to the parent regarding a student's violation of one of its provisions.

TAC stands for the Texas Administrative Code.

TEA stands for the Texas Education Agency, which oversees primary and secondary public education in Texas.

TELPAS stands for the Texas English Language Proficiency Assessment System, which assesses the progress that emergent bilingual students make in learning the English language and is administered for those who meet the participation requirements in kindergarten-grade 12.

TSI stands for the Texas Success Initiative, an assessment designed to measure the reading, mathematics, and writing skills that entering college-level freshmen students should have if they are to be successful in undergraduate programs in Texas public colleges and universities.

UIL refers to the University Interscholastic League, the statewide, voluntary nonprofit organization that oversees educational extracurricular academic, athletic, and music contests.

Appendix: Freedom from Bullying Policy

Note to Student Handbook developer: State law requires that the district's policy on bullying be distributed in its Student Handbook(s).

On April 6, 2023, TEA publicized minimum standards for bullying prevention policies and procedures in accordance with state law. TASB Policy Service included recommended revisions to FFI(LOCAL) in Update 121 in June 2023. TASB recommends that districts adopt revisions to this policy prior to the beginning of the 2023-24 school year. Districts should update the appendix to the student handbook containing FFI(LOCAL) as soon as the board adopts revisions to the policy.

The following has been formatted for the district to more easily insert its FFI(LOCAL) policy here rather than in the body of the handbook.

Note: School board policies may be revised at any time. For legal context and the most current copy of the local policy, visit https://pol.tasb.org/PolicyOnline/PolicyDetails?key=635&code=FFI#localTabContent. Below is the text of Edinburg Consolidated Independent School District policy FFI(LOCAL) as of the date this handbook was finalized for this school year.

Student Welfare: Freedom from Bullying
Policy FFI(LOCAL) adopted on May 22, 2023

Section A

EDINBURG CONSOLIDATED INDEPENDENT SCHOOL DISTRICT
Federal Programs Department

District Title I Parent and Family Engagement Policy
ESSA Section 1116
2026 – 2027

Parent and Family Engagement Program at ECISD	
Mission Statement	The TEAM of the Edinburg Consolidated Independent School District Board of Trustees, administrators, teachers, support staff, parents and community, in partnership with public and private agencies, is committed to provide the support, resources and academic rigor to ensure all students achieve educational and social excellence.
Statement Of Purpose	The Edinburg CISD administration and parents will meet in the summer of 2026 to develop, agree upon, and distribute to parents a written Parent and Family Engagement Policy. The policy will set expectations and establish a framework for quality family engagement participation. This will be achieved as part of the District's Improvement Plan process and Superintendent's District Parent Round Table (SDPRT). All information, oral or written related to school parent programs will be provided in a format and language that the parents can understand. Example, by providing information in English and Spanish or translated as needed. ESSA 1116 (B)(1) – (A)(2)(A) - (e)(5)
Policy Expectations & Objectives	Edinburg CISD values the role parents play as their children's first teacher and the influences of their continued support toward enabling their children to meet the state's student performance standards. Therefore, the expectation of our PFE Program is to build the capacity of all campuses in the planning and implementation of effective parent engagement activities and meetings to improve our students' academic achievement and the campus' performance. This will be done by including parents in the Fall review/revision of the District Improvement Plan and the Campus Improvement Plan and by participating in different meetings/committees throughout the school year. ESSA 1116 (a)(2)(B)
ECISD will build capacity by:	▪ Providing parents with opportunities to participate in district and campus initiatives and in decision-making, such as, but not limited to, D-SBDM, SDPRT, Campus-SBDM, PTA/PTO, and other Committees and meetings throughout the school year by posting the invite on social media and campus marquee, so that parents are able to voice other ideas for parental engagement activities. ESSA 1116 (a)(2)(F) – (e)(14) ▪ Providing educational opportunities and training, such as literacy or technology events, and PFE Symposium, at the campus and district level throughout the school year to help parents and children improve their academic achievement. ESSA 1116 (e)(2) ▪ Assisting parents in understanding the state's academic content and achievement standards, state, and local assessments, and how to monitor their children's progress. These opportunities will be addressed at PAC, PTA/PTO, SBDM, SDPRT, LPAC, special-called meetings, and through varies committees and trainings. In addition, parenting skills workshops, literacy and opportunities to volunteer will be provided for parents/families. ESSA 1116 (e)(2) ▪ Utilizing parents to assist in providing training during a faculty meeting or SDPRT to ECISD Administrators, Principals, Teachers, and Support Staff on the value and utility of contributions of parents/families, and in how to reach out to, communicate with, and work with parents as equal partners, to implement and coordinate parent programs, and build ties between the parents and the school. ESSA 1116 (e)(3)

	▪ Distributing to parents during the Fall of the school year the Title I Parent and Family Engagement Campus-Level Policy and School-Parent-Student Compact through On-line registration, Meet the Teacher, or other campus-level initiatives. ▪ Sharing how the Campus-Level Policy will outline what the campus will do for parents/families and School-Parent-Student Compact will outline the roles of parents, school, and students and how they will share responsibility for improved student academic achievement and mastery of the state's standards. ▪ Conducting an Annual Title I Parent Meeting twice in the Fall at flexible times and dates, at each campus to inform parents of the district's participation in Title I, Part A, and its requirements. The parents will also be informed of their right to be involved. ▪ Coordinating and integrating, to the extent feasible and appropriate, PFE programs and activities, with HeadStart, A Bright Beginning (Migrant 3yr. old Program), community agencies and private schools, by providing personal phone calls, translators as needed and posted flyers on social media platforms. ESSA 1116 (a)(2)(C) - (e)(4) ▪ Conducting an annual evaluation of the content and effectiveness of the PFE Policy, with the meaningful involvement of parents, by hosting a meeting to ask for parent input, and by passing out the evaluation to parents at pick up and drop off, of their children. ESSA 1116 (a)(2)(D) ▪ Ensuring full opportunities for the participation of all parents, particularly parents with limited English proficiency, economically disadvantaged, disabilities and parents of migratory children by: ESSA1116 (a)(2)(D)(i-iii) ➢ assuring that notices, information and reports are in a format and to the extent practicable, in the language that the parents understand. ➢ Providing parent engagement activities and meetings at Community Centers and neighborhoods throughout the community. ➢ Involving the participation of parents in the annual evaluation of the content and effect of the district Parent and Family Engagement Policy and practices. ➢ Surveying parents' needs to assist with the learning of their child/ren. ➢ Identifying ways to overcome barriers which may limit participation of parents. ➢ Building strong partnerships with parents and families by reaching out to all parents/family members and implementing programs, activities, and procedures to provide input and make recommendations regarding Title I Programs. ▪ Hosting a SDPRT Meeting and campus meetings in the Fall to discuss the findings of the annual evaluation to revise and design, with parents, the PFE Policy practices, and strategies to improve family engagement at the district and campus level. ESSA 1116 (a)(2)(E)
For Information	If you need this Policy translated, please visit www.ecisd.us or call (956) 289-2318

Edinburg CISD does not discriminate on the basis of race, color, national origin, sex, disability or age in its programs or activities and provides equal access to the Boy Scouts and other designated youth groups. The following person has been designated to handle inquiries regarding the nondiscrimination policies: Title IX issues: Mark S. Micallef, m.micallef@ecisd.us, Director of Personnel/Legal Issues, ADA/504 issues: Sofia Hinojosa, sofia.hinojosa@ecisd.us , Director of Student & Social Services, 411 N. 8thAvenue, Edinburg, TX 78539, (956) 289-2300. Edinburg CISD no discrimina por motivos de raza, color, origen nacional, sexo, discapacidad o edad en sus programas o actividades y brinda igualdad de acceso a los Boy Scouts y otros grupos juveniles designados. La siguiente persona ha sido designada para manejar consultas sobre las políticas de no discriminación: Title IX issues: Mark S. Micallef, m.micallef@ecisd.us, Director of Personnel/Legal Issues, ADA/504 issues: Sofia Hinojosa, sofia.hinojosa@ecisd.us, Director of Student & Social Services, 411 N. 8th Avenue, Edinburg, TX 78539, (956) 289-2300.

Edinburg Consolidated Independent School District
From the Office of the Superintendent of Schools

ECISD Safety Regulations for Overnight Trips
Acknowledgment Form for Secondary Students & Parents/Guardians

(Revised 09/02/25)

INSTRUCTIONS: Head sponsor/coach/director must ensure that the information below is reviewed with students and parents before departing for the overnight event/trip. Form will be collected and filed by the Sponsor before departing to the overnight event.

SPONSOR NAME: _____ **ORGANIZATION:** _____

1. Traveling with an organization, regardless of reason, *is* ***a privilege, not a right***.
2. *Not Following Rules/Misbehavior/Disrespectful:* Teachers will have a discipline plan for trip and communicate plan with all students & parents. ***Students must remain with the group, at the assigned hotel, and adhere to ECISD's student code of conduct.*** Violations of misconduct will require the parent to make travel arrangements to pick-up their child, at their expense.
3. K9 check is mandatory. The sponsor/director arranges this procedure. Drugs and alcohol is prohibited by all attendees.
4. ***Students will be allowed to keep his/her cell phones throughout the duration of the trip.*** Students are asked *not to abuse the privilege by posting inappropriate pictures of individuals on social media.* Keeping the cell phone is for security reasons. Cell phone may be confiscated if it is determined that student has abused the privilege.
5. Doors will be "taped" with packaging/painter's tape upon bed check. Head sponsor must assign teachers/chaperones the rooms they will be responsible for room checks throughout the night. The **"Nightly/Hall Bed Check Schedule"** will be created by the head director/Sponsor.
6. **Family/friends** wanting to visit with students need to check in with a teacher/sponsor and they must visit in the hotel lobby. **Curfew** is set by the head sponsor/coach/director and students will not be allowed out of the room after curfew. In case of emergency, immediately contact teacher(s) that are on floor duty.
7. All coaches/sponsors/directors traveling on the trip will provide parents with his/her contact information (ex: phone # or Remind App).
8. Only eligible designated students may travel. If traveling to a contest, only eligible student competitors may travel. Student alternates may travel if an official acknowledgment from the UIL or contest association requires them to compete (substitute).
9. **Students traveling must be passing all classes**.
10. **Students must follow safety precautions**: use the "buddy" system at all times, call teacher before opening door to a stranger, no swimming in hotel pool, no picture taking/videotaping without permission of individual and never leave hotel or contest site without the teacher's permission.
11. Unless a sponsor is present, **boys are not allowed in girls' room or vice versa**.
12. Students are not to wear pajamas in the hotel hallways. **Wear appropriate attire at all times.**
13. **Remind students of the room rules**: no one is allowed access to Pay-Per-View TV, do not abuse use of the room phone, do not make prank calls, clean up after yourself, and do not take anything from room that does not belong to you (towels, blow dryers, pillows, etc).
14. **Students are not allowed to use the hotel pool or attend waterparks**.
15. Parents requesting their child be dismissed to them during the trip must request so in writing and **submit request one week prior** to the trip. Sponsor/coach/director must file the letter. Student will be released only to the parent. Parent must provide identification to the head coach/director/sponsor upon release of student. Parents requesting child to travel with them to site, must follow the same protocol.
16. **All school rules and ECISD student code of conduct apply.**
17. If attending contest/fieldtrip in a different state, **the laws of that state apply.**

By signing below, the student and parent agree/comply to the above guidelines and regulations.

_____	_____	_____
Student Printed Name	Student Signature	Date
_____	_____	_____
Parent/Guardian Printed Name	Parent/Guardian Signature	Date

Nondiscrimination Statement: Edinburg CISD does not discriminate on the basis of race, color, national origin, sex, disability or age in its programs or activities and provides equal access to the Boy Scouts and other designated youth groups. The following person has been designated to handle inquiries regarding the nondiscrimination policies: Title IX issues: Mark S. Micallef, ***m.micallef@ecisd.us***, Director of Personnel/Legal Issues, ADA/504 issues: Sofia Hinojosa, ***sofia.hinojosa@ecisd.us*** , Director of Student & Social Services, 411 N. 8thAvenue, Edinburg, TX 78539, (956) 289-2300.

Declaración de no Discriminación: Edinburg CISD no discrimina por motivos de raza, color, origen nacional, sexo, discapacidad o edad en sus programas o actividades y brinda igualdad de acceso a los Boy Scouts y otros grupos juveniles designados. La siguiente persona ha sido designada para manejar consultas sobre las políticas de no discriminación: Title IX issues: Mark S. Micallef, ***m.micallef@ecisd.us***, Director of Personnel/Legal Issues, ADA/504 issues: Sofia Hinojosa, ***sofia.hinojosa@ecisd.us*** , Director of Student & Social Services, 411 N. 8th Avenue, Edinburg, TX 78539, (956) 289-2300.

Edinburg Consolidated Independent School District

STUDENT CODE OF CONDUCT 2026-2027

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Student Code of Conduct

Accessibility

If you have difficulty accessing the information in this document because of disability, please contact the campus principal.

Purpose

The Student Code of Conduct ("Code of Conduct"), as required by Chapter 37 of the Texas Education Code, provides methods and options for managing student behavior, preventing and intervening in student discipline problems, and imposing discipline.

The law requires the district to define misconduct that may—or must—result in a range of specific disciplinary consequences, including removal from a regular classroom or campus, out-of-school suspension, placement in a disciplinary alternative education program (DAEP), placement in a juvenile justice alternative education program (JJAEP), or expulsion from school.

This Code of Conduct has been adopted by the Edinburg Consolidated Independent School District board of trustees and developed with the advice of the district-level planning and decision-making committee. It provides information to parents and students regarding standards of conduct, consequences of misconduct, and procedures for administering discipline. This Code of Conduct remains in effect during summer school and at all school-related events and activities outside the school year until the board adopts an updated version for the next school year.

In accordance with state law, the Code of Conduct shall be posted at each school campus or shall be available for review at the campus principal's office. Additionally, the Code of Conduct shall be available at the campus behavior coordinator's office and posted on the district's website at https://www.ecisd.us. Parents shall be notified of any conduct violation that may result in a student being suspended, placed in a DAEP or JJAEP, expelled, or taken into custody by a law enforcement officer under Chapter 37 of the Education Code.

Not later than the first day of the 2025-2026 school year, the Texas Education Agency (TEA) shall prepare and provide to each school district a report identifying each law relating to school discipline that was amended and added by the 89th Legislature, Regular Session, 2025. A school district shall provide to each student and the parent of or person standing in parental relation to the student the prepared report.

Because the Code of Conduct is adopted by the district's board of trustees, it has the force of policy. In the event of a conflict between the Code of Conduct and the Student Handbook, the Code of Conduct shall prevail.

Please note: The discipline of students with disabilities who are eligible for services under federal law (Individuals with Disabilities Education Act and Section 504 of the Rehabilitation Act of 1973) is subject to the provisions of those laws.

School District Authority and Jurisdiction

School rules and the district's authority to administer discipline apply whenever the interest of the district is involved, on or off school grounds, in conjunction with or independent of classes and school-sponsored activities.

The district has disciplinary authority over a student:

1. During the regular school day;
2. While the student is traveling on district transportation;
3. During lunch periods in which a student is allowed to leave campus;
4. At any school-related activity, regardless of time or location;
5. For any school-related misconduct, regardless of time or location;
6. When retaliation against a school employee, board member, or volunteer occurs or is threatened, regardless of time or location;
7. When a student engages in cyberbullying, as defined by Education Code 37.0832;
8. When criminal mischief is committed on or off school property or at a school-related event;
9. For certain offenses committed within 300 feet of school property as measured from any point on the school's real property boundary line;
10. For certain offenses committed while on school property or while attending a school-sponsored or school-related activity of another district in Texas;
11. When the student commits a felony, as provided by Education Code 37.006 or 37.0081; and
12. When the student is required to register as a sex offender.

Campus Behavior Coordinator

As required by law, a single person at each campus must be designated to serve as the campus behavior coordinator (CBC). The designated person may be the principal, or any other campus administrator selected by the principal. Additional staff members may assist the CBC in the performance of the CBC's duties, provided that the CBC personally verifies that all aspects of Chapter 37, Subchapter A are appropriately implemented. The CBC is primarily responsible for maintaining student discipline. The CBC shall monitor disciplinary referrals and report the following behavior to the campus's threat assessment and safe and supportive school team:

- Conduct that contains the elements of the offense of terroristic threat under Penal Code 22.07
- Conduct that contains the elements of the offense of unlawfully carrying weapons under Penal Code 46.02
- Conduct that contains the elements of the offense of exhibiting, using, or threatening to exhibit or use a firearm under Education Code 37.125; and
- Any concerning student behaviors or behavioral trends that may pose a serious risk of violence to the student or others.

The district shall post on its website and in the Student Handbook, for each campus, the email address and telephone number of the person serving as CBC. Contact information may be found at http://www.ecisd.us.

Threat Assessment and Safe and Supportive School Team

The CBC or other appropriate administrator will work closely with the campus threat assessment and safe and supportive school team to implement the district's threat assessment policy and procedures, as required by law, and shall take appropriate disciplinary action in accordance with the Code of Conduct.

Searches

District officials may conduct searches of students, their belongings, and their vehicles in accordance with state and federal law and district policy. Searches of students shall be conducted in a reasonable and nondiscriminatory manner. Refer to the district's policies at FNF(LEGAL) and FNF(LOCAL) for more information regarding investigations and searches.

The district has the right to search a vehicle driven to school by a student and parked on school property whenever there is reasonable suspicion to believe it contains articles or materials prohibited by the district.

Desks, lockers, district-provided technology, and similar items are the property of the district and are provided for student use as a matter of convenience. District property is subject to search or inspection at any time without notice.

Reporting Crimes

The principal and other school administrators as appropriate shall report crimes as required by law and shall call local law enforcement when an administrator suspects that a crime has been committed on campus.

Security Personnel

The board utilizes police officers to ensure the security and protection of students, staff, and property. In accordance with law, the board has coordinated with the CBC and other district employees to ensure appropriate law enforcement duties are assigned to these persons. Provisions addressing the various types of security personnel can be found in the CKE policy series.

The law enforcement duties of district police officers are:

1. Protect the safety and welfare of any person in the jurisdiction of the District and protect the property of the District.
2. Enforce all state laws and investigate violations of law as needed. In doing so, District policy officers may serve search warrants in connection with District-related investigations in compliance with the Texas Code of Criminal Procedure.
3. Arrest suspects consistent with state and federal statutory and constitutional standards governing arrests, including arrests without warrant, for offenses that occur in the officer's presence or under the other rules set out in the Texas Code of Criminal Procedure.
4. Coordinate and cooperate with commissioned officers of all other law enforcement agencies in the enforcement of this policy as necessary.
5. Enforce District policies on District property, in school zones, at bus stops, or at District functions.
6. Investigate violations of District policy, rules, and regulations as requested by the Superintendent and participate in administrative hearings concerning the alleged violations.
7. Carry weapons as directed by the chief of police and approved by the Superintendent.
8. Carry out all other duties as directed by the chief of police or Superintendent.

"Parent" Defined

Throughout the Code of Conduct and related discipline policies, the term "parent" includes a parent, legal guardian, or other person having lawful control of the child.

Participating in Graduation Activities

The district has the right to limit a student's participation in graduation activities for violating the district's Code of Conduct.

Participation might include a speaking role, as established by district policy and procedures.

Students eligible to give the opening and closing remarks at graduation shall be notified by the campus principal. Notwithstanding any other eligibility requirements, in order to be considered eligible, a student shall not have

engaged in any misconduct that resulted in an out-of-school suspension, removal to a DAEP, or expulsion during the semester immediately preceding graduation.

The valedictorian and salutatorian may also have speaking roles at graduation. No student shall be eligible to have such a speaking role if he or she engaged in any misconduct that resulted in an out-of-school suspension, removal to a DAEP, or expulsion during the semester immediately preceding graduation.

Unauthorized Persons

In accordance with Education Code 37.105, a school administrator, SRO, or district police officer shall have the authority to refuse entry to or eject a person from district property if the person refuses to leave peaceably on request and:

1. The person poses a substantial risk of harm to any person; or
2. The person behaves in a manner that is inappropriate for a school setting and persists in the behavior after being given a verbal warning that the behavior is inappropriate and may result in refusal of entry or ejection.

Appeals regarding refusal of entry or ejection from district property may be filed in accordance with policies FNG(LOCAL) or GF(LOCAL), as appropriate. However, the timelines for the district's grievance procedures shall be adjusted as necessary to permit the person to address the board in person within 90 calendar days, unless the complaint is resolved before a board hearing.

See **DAEP—Restrictions During Placement** on page 24 for information regarding a student assigned to DAEP at the time of graduation.

Standards for Student Conduct

Each student is expected to:

- Demonstrate courtesy, even when others do not.
- Behave in a responsible manner.
- Exercise self-discipline.
- Attend all classes regularly and on time.
- Bring appropriate materials and assignments to class.
- Meet district and campus standards of grooming and dress.
- Obey all campus and classroom rules.
- Respect the rights and privileges of students, teachers, and other district staff and volunteers.
- Respect the property of others, including district property and facilities.
- Cooperate with and assist the school staff in maintaining safety, order, and discipline.
- Adhere to the requirements of the Student Code of Conduct.

General Conduct Violations

The categories of conduct below are prohibited at school, in vehicles owned or operated by the district, and at all school-related activities, but the list does not include the most severe offenses. In the subsequent sections on **In-School Suspension**, **Out-of-School Suspension** on page 18, **DAEP Placement** on page 16, **Placement and/or Expulsion for Certain Offenses** on page 26, and **Expulsion** on page 27, those offenses that require or permit specific consequences are listed. Any offense, however, may be severe enough to result in **Removal from the Regular Educational Setting** as detailed on page 15.

Disregard for Authority

Students shall not:

- Fail to comply with directives given by school personnel.
- Leave school grounds or school-sponsored events without permission.
- Disobey rules for conduct in district vehicles.
- Refuse to accept discipline or consequence assigned by a teacher or principal.

Mistreatment of Others

Students shall not:

- Use profanity or vulgar language or make obscene gestures.
- Fight or scuffle. (For assault, see **DAEP—Placement and/or Expulsion for Certain Offenses** on page 26.)
- Threaten a district student, employee, or volunteer, including off school property if the conduct causes a substantial disruption to the educational environment.
- Engage in any behavior that violates the Student Code of Conduct and is motivated by antisemitism. [see Glossary]
- Engage in bullying, cyberbullying, harassment, or making hit lists. (See **glossary** for all four terms.)
- Release or threaten to release intimate visual material of a minor or a student who is 18 years of age or older without the student's consent.
- Engage in sexual or gender-based harassment or sexual abuse, whether by word, gesture, or any other conduct directed toward another person, including a district student, employee, board member, or volunteer.
- Engage in conduct that constitutes dating violence. (See **glossary**.)
- Engage in inappropriate or indecent exposure of private body parts.
- Participate in hazing. (See **glossary**.)
- Coerce an individual to act through the use or threat of force.
- Commit extortion or blackmail.
- Engage in inappropriate verbal, physical, or sexual conduct directed toward another person, including a district student, employee, or volunteer.
- Record the voice or image of another without the prior consent of the individual being recorded or in any way that disrupts the educational environment or invades the privacy of others.

Property Offenses

Students shall not:

- Damage or vandalize property owned by others. (For felony criminal mischief, see **DAEP—Placement and/or Expulsion for Certain Offenses** on page 26.)
- Deface or damage school property, including textbooks, technology and electronic resources, lockers, furniture, and other equipment, with graffiti or by other means.
- Steal from students, staff, or the school.
- Commit or assist in a robbery or theft, even if it does not constitute a felony according to the Penal Code. (For felony robbery, aggravated robbery, and theft, see **DAEP— Placement and/or Expulsion for Certain Offenses** on page 26.)
- Enter, without authorization, district facilities that are not open for operations.

Possession of Prohibited Items

Students shall not possess or use:

- Fireworks of any kind, smoke or stink bombs, or any other pyrotechnic device;
- A razor, box cutter, chain, or any other object used in a way that threatens or inflicts bodily injury to another person;
- A "look-alike" weapon that is intended to be used as a weapon or could reasonably be perceived as a weapon;
- An air gun or BB gun;
- A short barrel firearm;
- Ammunition.
- A hand instrument designed to cut or stab another by being thrown;
- A firearm silencer or suppressor;
- *A location-restricted knife;
- *A club;
- *A firearm;
- A stun gun;
- Knuckles;
- A pocketknife or any other small knife;
- Mace or pepper spray;
- Pornographic material;
- Tobacco products (including nicotine pouches), cigarettes, e-cigarettes, and any component, part, or accessory for an e-cigarette device;
- Matches or a lighter;
- A laser pointer, unless it is for an approved use; or
- Any articles not generally considered to be weapons, including school supplies, when the principal or designee determines that a danger exists.

*For weapons and firearms, see **DAEP—Placement and/or Expulsion for Certain Offenses** on page 26. In many circumstances, possession of these items is punishable by mandatory expulsion under federal or state law.

Possession of Personal Communication

Students shall not:

- Bring or use a personal communication device, including a cell phone, or other electronic device on school property during the school day. [See Glossary]
- The district may authorize the use of a personal communication device for the following reasons:
  - To implement an individualized education program (IEP) or for a plan created under Section 504, Rehabilitation Act of 1973 (29 U.S.C Section 794) or a similar program or plan;
  - With documented need based on a directive from a qualified physician; or
  - To comply with a health or safety requirement imposed by law or as part of the district's safety protocols.

Inappropriate use of a personal communication device during the school day will result in disciplinary action in accordance with this Code of Conduct.

Illegal, Prescription, and Over-the-Counter Drugs

Students shall not:

- Possess, use, give, or sell alcohol or an illegal drug. (Also see **DAEP Placement** on page 16 and **Expulsion** on page 27 for mandatory and permissive consequences under state law.)
- Possess or sell seeds or pieces of marijuana in less than a usable amount.
- Possess, use, give, or sell paraphernalia related to any prohibited substance. (See **glossary** for "paraphernalia.")

- Possess, use, abuse, or sell look-alike drugs or attempt to pass items off as drugs or contraband.
- Abuse the student's own prescription drug, give a prescription drug to another student, or possess or be under the influence of another person's prescription drug on school property or at a school-related event. (See **glossary** for "abuse.")
- Abuse over-the-counter drugs. (See **glossary** for "abuse.")
- Be under the influence of prescription or over-the-counter drugs that cause impairment to body or mind. (See **glossary** for "under the influence.")
- Have or take prescription drugs or over-the-counter drugs at school other than as provided by district policy.

Misuse of Technology Resources and the Internet

Students shall not:

- Violate policies, rules, or agreements signed by the student or the student's parent regarding the use of technology resources.
- Attempt to access or circumvent passwords or other security-related information of the district, students, or employees or upload or create computer viruses, including off school property if the conduct causes a substantial disruption to the educational environment.
- Attempt to alter, destroy, or disable district technology resources including, but not limited to, computers and related equipment, district data, the data of others, or other networks connected to the district's system, including off school property if the conduct causes a substantial disruption to the educational environment.
- Use the internet or other electronic communications to threaten or harass district students, employees, board members, or volunteers, including off school property if the conduct causes a substantial disruption to the educational environment or infringes on the rights of another student at school.
- Send, post, deliver, or possess electronic messages that are abusive, obscene, sexually oriented, threatening, harassing, damaging to another's reputation, or illegal, including cyberbullying and "sexting," either on or off school property, if the conduct causes a substantial disruption to the educational environment or infringes on the rights of another student at school.
- Use the internet or other electronic communication to engage in or encourage illegal behavior or threaten school safety, including off school property if the conduct causes a substantial disruption to the educational environment or infringes on the rights of another student at school.
- Utilize artificial intelligence in a way that would constitute academic dishonesty or as a means of engaging in any other prohibited conduct.

Safety Transgressions

Students shall not:

- Possess published or electronic material that is designed to promote or encourage illegal behavior or that could threaten school safety.
- Engage in verbal (oral or written) exchanges that threaten the safety of another student, a school employee, or school property.
- Make false accusations or perpetrate hoaxes regarding school safety.
- Engage in any conduct that school officials might reasonably believe will substantially disrupt the school program or incite violence.
- Throw objects that can cause bodily injury or property damage.
- Discharge a fire extinguisher without valid cause.

Miscellaneous Offenses

Students shall not:

- Violate dress and grooming standards as communicated in the Student Handbook.
- Engage in academic dishonesty, which includes cheating or copying the work of another student, unauthorized use of artificial intelligence, plagiarism, and unauthorized communication between students during an examination.

- Gamble.
- Falsify records, passes, or other school-related documents.
- Engage in actions or demonstrations that substantially disrupt or materially interfere with school activities.
- Repeatedly violate other communicated campus or classroom standards of conduct.

The district may impose campus or classroom rules in addition to those found in the Code of Conduct. These rules may be posted in classrooms or given to the student and may or may not constitute violations of the Code of Conduct.

Discipline Management Techniques

Discipline shall be designed to improve conduct and encourage students to be responsible members of the school community. Disciplinary action shall draw on the professional judgment of teachers and administrators and on a range of discipline management techniques, including restorative practices. Discipline shall be based on the seriousness of the offense, the student's age and grade level, the frequency of misbehavior, the student's attitude, the effect of the misconduct on the school environment, and statutory requirements.

First-Time Offense of Possession or Use of Nicotine Delivery Product or E-Cigarette

An appropriate administrator may place a student in a disciplinary alternative education program for the first-time offense of possession or use of a nicotine delivery product or e-cigarette, as defined by Section 161.081, Health and Safety Code.

If a student who possesses or uses e-cigarette is not placed in a disciplinary alternative education program for the first-time offense under Education Code 37.008, the student shall be placed in in-school suspension for a period of at least 10 school days.

Students with Disabilities

The discipline of students with disabilities is subject to applicable state and federal law in addition to the Code of Conduct. In the event of any conflict, the district shall comply with federal law. For more information regarding discipline of students with disabilities, see policy FOF(LEGAL).

In accordance with the Education Code, a student who receives special education services may not be disciplined in a manner that results in a change to the student's educational placement for conduct meeting the definition of bullying, cyberbullying, harassment, or making hit lists (see **glossary**) until an Admission, Review, and Dismissal (ARD) committee meeting has been held to review the conduct.

In deciding whether to order suspension, DAEP placement, or expulsion, regardless of whether the action is mandatory or discretionary, the district shall take into consideration a disability that substantially impairs the student's capacity to appreciate the wrongfulness of the student's conduct.

Techniques

The following discipline management techniques may be used alone, in combination, or as part of progressive interventions for behavior prohibited by the Code of Conduct or by campus or classroom rules:

- Verbal correction, oral or written.
- Cooling-off time or a brief "time-out" period, in accordance with law.
- Seating changes within the classroom or vehicles owned or operated by the district.
- Temporary confiscation of items that disrupt the educational process.
- Rewards or demerits.
- Behavioral contracts.
- Counseling by teachers, school counselors, or administrative personnel.
- Parent-teacher conferences.
- Behavior coaching.
- Anger management classes.
- Mediation (victim-offender).
- Classroom circles.
- Family group conferencing.
- Grade reductions for cheating, plagiarism, and as otherwise permitted by policy.
- Detention, including outside regular school hours.
- Sending the student to the office, another assigned area, or to in-school suspension (ISS).
- Assignment of school duties, such as cleaning or picking up litter.
- Withdrawal of privileges, such as participation in extracurricular activities, eligibility for seeking and holding honorary offices, or membership in school-sponsored clubs and organizations.

- Penalties identified in student organizations' extracurricular standards of behavior.
- Restriction or revocation of district transportation privileges.
- School-assessed and school-administered probation.
- Corporal punishment, unless the student's parent or guardian has provided a signed statement prohibiting its use.
- In-school suspension, as specified in In-School Suspension.
- Out-of-school suspension, as specified in **Out-of-School Suspension** on page 18.
- Placement in a DAEP, as specified in **DAEP** on page 16.
- Expulsion and/or placement in an alternative educational setting, as specified in **Placement and/or Expulsion for Certain Offenses** on page 26.
- Expulsion, as specified in **Expulsion** on page 27.
- Referral to an outside agency or legal authority for criminal prosecution in addition to disciplinary measures imposed by the district.
- Other strategies and consequences as determined by school officials.

Prohibited Aversive Techniques

Aversive techniques are prohibited for use with students and are defined as techniques or interventions intended to reduce the reoccurrence of a behavior by intentionally inflicting significant physical or emotional discomfort or pain. Aversive techniques include:

- Using techniques designed or likely to cause physical pain, other than corporal punishment as permitted by district policy. [See policy FO(LOCAL).]
- Using techniques designed or likely to cause physical pain by electric shock or any procedure involving pressure points or joint locks.
- Directed release of noxious, toxic, or unpleasant spray, mist, or substance near a student's face.
- Denying adequate sleep, air, food, water, shelter, bedding, physical comfort, supervision, or access to a restroom facility.
- Ridiculing or demeaning a student in a manner that adversely affects or endangers the learning or mental health of the student or constitutes verbal abuse.
- Employing a device, material, or object that immobilizes all four of a student's extremities, including prone or supine floor restraint.
- Impairing the student's breathing, including applying pressure to the student's torso or neck or placing something in, on, or over the student's mouth or nose or covering the student's face.
- Restricting the student's circulation.
- Securing the student to a stationary object while the student is standing or sitting.
- Inhibiting, reducing, or hindering the student's ability to communicate.
- Using chemical restraints.
- Using time-out in a manner that prevents the student from being able to be involved in and progress appropriately in the required curriculum or any applicable individualized education program (IEP) goals, including isolating the student using physical barriers.
- Depriving the student of one or more of the student's senses, unless the technique does not cause the student discomfort or complies with the student's IEP or behavior intervention plan (BIP).

Notification

The CBC shall promptly notify a student's parent by phone or in person of any violation that may result in in-school or out-of-school suspension, placement in a DAEP, placement in a JJAEP, or expulsion. The CBC shall also notify a student's parent if the student is taken into custody by a law enforcement officer under the disciplinary provisions of the Education Code.

A good-faith effort shall be made to provide written notice of the disciplinary action to the student, on the day the action was taken, for delivery to the student's parent. If the parent has not been reached by telephone or in person by 5:00 p.m. of the first business day after the day the disciplinary action was taken, the CBC shall send written notification by U.S. Mail. If the CBC is not able to provide notice to the parent, the principal or designee shall provide the notice.

Before the principal or appropriate administrator assigns a student under age 18 to detention outside regular school hours, notice shall be given to the student's parent to inform him or her of the reason for the detention and permit arrangements for necessary transportation.

Parental Involvement

The principal, campus behavior coordinator, or other appropriate administrator shall notify the parent of or person standing in parental relation to a student who has been placed in a disciplinary alternative education program (DAEP) or expelled of the parent's or person's right to request a behavioral agreement that specifies the responsibilities of the parent or person and student.

The behavioral agreement must specify the responsibilities of the student and parent/guardian. If followed, the agreement may result in a reduced disciplinary placement period, as outlined in the agreement. Reduction in the disciplinary placement period does not entitle the student to different disciplinary placement. The decision to reduce, revoke, or amend the disciplinary placement period is at the sole discretion of the school administration. Compliance with the agreement is required for the reduction to remain valid.

[OR]

The district has not adopted a policy for parental involvement in school disciplinary placements under Education Code 37.0014.

Appeals

Questions from parents regarding disciplinary measures should be addressed to the teacher, campus administration, or CBC, as appropriate. Appeals or complaints regarding the use of specific discipline management techniques should be addressed in accordance with policy FNG(LOCAL). A copy of the policy may be obtained from the principal's office, the CBC's office, or the central administration office or through Policy Online® at the following address: http://www.ecisd.us.

The district shall not delay a disciplinary consequence while a student or parent pursues a grievance. In the instance of a student who is accused of conduct that meets the definition of sexual harassment as defined by Title IX, the district will comply with applicable federal law, including the Title IX formal complaint process. See policies FFH(LEGAL) and (LOCAL)

Removal from the School Bus

A bus driver may refer a student to the principal's office or the CBC's office to maintain effective discipline on the bus. The principal or CBC must employ additional discipline management techniques, as appropriate, which can include restricting or revoking a student's bus riding privileges.

To transport students safely, the vehicle operator must focus on driving and not be distracted by student misbehavior. Therefore, when appropriate disciplinary management techniques fail to improve student behavior or when specific misconduct warrants immediate removal, the principal or the CBC may restrict or revoke a student's transportation privileges, in accordance with law.

Removal from the Regular Educational Setting

In addition to other discipline management techniques, misconduct may result in removal from the regular educational setting in the form of a routine referral or a formal removal.

Routine Referral

A routine referral occurs when a teacher sends a student to the CBC's office as a discipline management technique. The CBC shall employ alternative discipline management techniques, including progressive interventions. A teacher or administrator may remove a student from class for behavior that violates this Code of Conduct to maintain effective discipline in the classroom.

Formal Teacher Removal

A teacher may initiate a formal removal from class if:

1. A student's behavior repeatedly interferes with the teacher's ability to teach the class or with other students' ability to learn
2. A student demonstrates behavior that is unruly, disruptive, or abusive toward the teacher, another adult, or another student in the classroom.
3. A student engages in conduct the constitutes bullying, as defined by Education Code 37.0832.

A teacher, CBC, or other appropriate administrator must notify a parent or person standing in parental relation to the student of the formal removal. A teacher may remove a student from class based on a single incident of behavior.

Within three school days of the formal removal, the CBC or appropriate administrator shall schedule a conference with the student's parent, the student, the teacher who removed the student from class, and any other appropriate administrator.

At the conference, the CBC or appropriate administrator shall inform the student of the alleged misconduct and the proposed consequences. The student shall have an opportunity to respond to the allegations.

When a student is removed from the regular classroom by a teacher and a conference is pending, the CBC or other administrator may place the student in:

- Another appropriate classroom.
- ISS.
- Out-of-school suspension.
- DAEP.

A teacher or administrator must remove a student from class if the student engages in behavior that under the Education Code requires or permits the student to be placed in a DAEP or expelled. When removing for those reasons, the procedures in the subsequent sections on DAEP or expulsion shall be followed.

Returning a Student to the Classroom

A student who has been formally removed from class by a teacher for conduct against the teacher containing the elements of assault, aggravated assault, sexual assault, or aggravated sexual assault may not be returned to the teacher's class without the teacher's written consent.

A student who has been formally removed by a teacher for any other conduct may be returned to the teacher's class without the teacher's written consent if the placement review committee determines that the teacher's class is the best or only alternative, and not later than the third class day after the day the student was removed from class, a conference in which the teacher was provided an opportunity to participate has been held. The student may not be returned to the teacher's class unless the teacher provides written consent for the student's return or a return to class plan has prepared for that student

Appeals of Formal Teacher Removals

A student may appeal the teacher's removal of the student from class to the school's placement review committee or the campus's threat assessment and safe and supportive school team, in accordance with a district policy providing for such an appeal to be made to this team.

In-School Suspension

An in-school suspension is not subject to any time limit.

A school's principal or other appropriate administrator shall review the in-school suspension of a student at least once every 10 school days after the date of the suspension begins to evaluate the educational progress of the student and to determine if continued in-school suspension is appropriate.

During in-school suspension, a student shall receive appropriate behavioral support services and comparable educational services as the student would receive in the classroom. If the student receives special education services, the student must continue to receive special education and related services specified in the student's individualized education program (IEP) and continue to have an opportunity to progress in the general curriculum.

[See **First-Time Offense of Possession or Use of Nicotine Delivery Product or E-Cigarette** for limitations to the general rule.]

Process

Before being suspended, a student shall have an informal conference with the CBC or appropriate administrator, who shall inform the student of the alleged misconduct and give the student an opportunity to respond to the allegation before the administrator makes a decision.

The CBC shall determine the number of days of a student's suspension.

In deciding whether to order in-school suspension, the CBC shall take into consideration:

1. Self-defense [see Glossary]
2. Intent or lack of intent at the time the student engaged in the conduct
3. The student's disciplinary history
4. A disability that substantially impairs the student's capacity to appreciate the wrongfulness of the student's conduct:
5. A student's status in the conservatorship of the Department of Family and Protective Services (foster care); or
6. A student's status as homeless.

The appropriate administrator shall determine any restrictions on participation in school-sponsored or school-related extracurricular and cocurricular activities.

Out-of-School Suspension

Misconduct

Students may be suspended for behavior listed in the Code of Conduct as a general conduct violation, DAEP offense, or expellable offense.

The district shall not use out-of-school suspension for students below grade 3 unless the conduct meets the requirements established in law.

A student below grade 3 or a student who is homeless shall not be placed in out-of-school suspension unless, while on school property or while attending a school-sponsored or school-related activity on or off school property, the student engages in:

- Conduct that contains the elements of a weapons offense, as provided in Penal Code sections 46.02 or 46.05;
- Conduct that threatens the immediate health and safety of other students in the classroom;
- Selling, giving, or delivering to another person or possessing, using, or being under the influence of any amount of marijuana, an alcoholic beverage, or a controlled substance or dangerous drug as defined by federal or state law.

The district shall use a positive behavior program as a disciplinary alternative for students below grade 3 who commit general conduct violations instead of suspension or placement in a DAEP. The program shall meet the requirements of law.

Process

State law allows a student to be assigned to out of school suspension for no more than three school days per behavior violation, with no limit on the number of times a student may be suspended in a semester or school year.

Before being suspended a student shall have an informal conference with the CBC or appropriate administrator, who shall inform the student of the alleged misconduct and give the student an opportunity to respond to the allegation before the administrator makes a decision.

The CBC shall determine the number of days of a student's suspension, not to exceed three school days.

In deciding whether to order out-of-school suspension, the CBC shall take into consideration:

1. Self-defense (see **glossary**),
2. Intent or lack of intent at the time the student engaged in the conduct,
3. The student's disciplinary history,
4. A disability that substantially impairs the student's capacity to appreciate the wrongfulness of the student's conduct,
5. A student's status in the conservatorship of the Department of Family and Protective Services (foster care), or
6. A student's status as homeless.

The appropriate administrator shall determine any restrictions on participation in school-sponsored or school-related extracurricular and cocurricular activities.

Alternative Assignment

A parent or person standing in parental relation to the student may submit a written request to the principal or other appropriate administrator to reassign a student placed in out-of-school suspension. The parent or person standing in parental relation to the student must provide information and documentation that they are unable to provide suitable supervision for the student during school hours during the period of the suspension. It is the sole discretion of the principal or other appropriate administrator to reassign the student placed in out-of-school suspension.

Coursework During Suspension

The district shall ensure a student receives access to coursework for foundation curriculum courses while the student is placed in in-school or out-of-school suspension, including at least one method of receiving this coursework that doesn't require the use of the internet.

A student removed from the regular classroom to ISS or another setting, other than a DAEP, will have an opportunity before the beginning of the next school year to complete each course the student was enrolled in at the time of removal. The district may provide the opportunity by any method available, including a correspondence course, another distance learning option, or summer school. The district will not charge the student for any method of completion provided by the district.

Disciplinary Alternative Education Program (DAEP) Placement

The DAEP shall be provided in a setting other than the student's regular classroom. An elementary school student may not be placed in a DAEP with a student who is not an elementary school student.

For purposes of DAEP, elementary classification shall be kindergarten–grade 5 and secondary classification shall be grades 6–12.

A student who is expelled for an offense that otherwise would have resulted in a DAEP placement does not have to be placed in a DAEP in addition to the expulsion.

In deciding whether to place a student in a DAEP, regardless of whether the action is mandatory or discretionary, the CBC shall take into consideration:

1. Self-defense (see **glossary**),
2. Intent or lack of intent at the time the student engaged in the conduct,
3. The student's disciplinary history,
4. A disability that substantially impairs the student's capacity to appreciate the wrongfulness of the student's conduct,
5. A student's status in the conservatorship of the Department of Family and Protective Services (foster care), or
6. A student's status as homeless.

Discretionary Placement: Misconduct That May Result in DAEP Placement

A student may be placed in a DAEP for behaviors prohibited in the General Conduct Violations section of this Code of Conduct.

Misconduct Identified in State Law

In accordance with state law, a student **may** be placed in a DAEP for any of the following offenses:

- Engaging in bullying that encourages a student to die by suicide.
- Inciting violence against a student through group bullying.
- Releasing or threatening to release intimate visual material of a minor or of a student who is 18 years of age or older without the student's consent.
- Involvement in a public school fraternity, sorority, or secret society, or gang including participating as a member or pledge, or soliciting another person to become a pledge or member of a public school fraternity, sorority, secret society, or gang. (See **glossary**.)
- Involvement in criminal street gang activity. (See **glossary**.)
- Any criminal mischief, including a felony.
- Assault (no bodily injury) with threat of imminent bodily injury.
- Assault by offensive or provocative physical contact.
- Engages in conduct that contains the elements of the offense of disruptive activities under Education Code 37.123.
- Engages in conduct that contains the elements of the offense of disruption of classes under Education Code 37.124.
- Possesses or uses an e-cigarette, as defined by Section 161.081, Health and Safety Code, except that if a student who possesses or uses an e-cigarette is not placed in a disciplinary alternative education program for the first-time offense under Education Code 37.008, the student shall be placed in in-school suspension for a period of at least 10 school days. See First Time Offense of Possession or Use of Nicotine Delivery Product or E-Cigarette for additional information.

In accordance with state law, a student **may** be placed in a DAEP if the superintendent or the superintendent's designee has reasonable belief (see **glossary**) that the student engaged in conduct punishable as a felony, , that occurs off school property and not at a school-sponsored or school-related event, if the student's presence in the regular classroom threatens the safety of other students or teachers or will be detrimental to the

educational process. Aggravated robbery or felonies listed as offenses in Title 5 [see Glossary] of the Penal Code are punishable as mandatory expulsions.

The CBC **may** place a student in a DAEP for off-campus conduct for which DAEP placement is required by state law if the administrator does not have knowledge of the conduct before the first anniversary of the date the conduct occurred.

Mandatory Placement: Misconduct That Requires DAEP Placement

A student **must** be placed in a DAEP if the student:

- Engages in conduct relating to a false alarm or report (including a bomb threat) or a terroristic threat involving a public school. (See **glossary**.)
- Commits the following offenses on school property, within 300 feet of school property as measured from any point on the school's real property boundary line, or while attending a school-sponsored or school-related activity on or off school property:
    - Engages in conduct punishable as a felony.
    - Commits an assault (see **glossary**) under Penal Code 22.01(a)(1).
    - Except as provided by Education Code 37.007 (a)(3), sells, gives, or delivers to another person or possesses, uses, or is under the influence of a controlled substance or dangerous drug in an amount not constituting a felony offense. (School-related felony drug offenses are addressed in **Expulsion** on page 27.) (See **glossary** for "under the influence", "controlled substance," and "dangerous drug.")
    - Sells, gives, or delivers to another person or possesses, uses, or is under the influence of marijuana or THC. A student with a valid prescription for low-THC cannabis as authorized by Chapter 487 of the Health and Safety Code does not violate this provision.
    - Sells, gives, or delivers to another person an alcoholic beverage; commits a serious act or offense while under the influence of alcohol; or possesses, uses, or is under the influence of alcohol.
    - Behaves in a manner that contains the elements of an offense relating to abusable volatile chemicals.
    - Sells, gives, or delivers to another person an e-cigarette, as defined by Section 161.081, Health and Safety Code.
    - Behaves in a manner that contains the elements of the offense of public lewdness or indecent exposure. (See **glossary**.)
    - Engages in conduct that contains the elements of an offense of harassment against an employee under Penal Code 42.07(a)(1), (2), (3), or (7).
- Engages in expellable conduct and is six to nine years of age.
- Commits a federal firearms violation and is younger than six years of age.
- Engages in conduct that contains the elements of the offense of retaliation under Penal Code 36.06 against any school employee or volunteer on or off school property.
- Engages in conduct that contains the elements of harassment under Penal Code 42.07 against and school employee or volunteer on or off of school property.

The student receives deferred prosecution (see **glossary**), or a court or jury finds that the student has engaged in delinquent conduct [see Glossary], or the superintendent or designee has a reasonable belief [see glossary] under Section 53.03, Family Code, for conduct defined as any of the following offenses under the Penal Code:

1. A felony offense under Title 5:
2. The offense of deadly conduct under Section 22.05
3. The felony offense of aggravated robbery under Section 29.03;
4. The offense of disorderly conduct involving a firearm under Section 42.01 (a)(7) or (8); or

5. The offense of unlawfully carrying weapons under Section 46.02, except for an offense punishable as a Class C misdemeanor under that section.

Sexual Assault and Campus Assignments

A student shall be transferred to another campus if:

- The student has been convicted of continuous sexual abuse of a young child or disabled individual or convicted of or placed on deferred adjudication for sexual assault or aggravated sexual assault against another student on the same campus; and
- The victim's parent or another person with the authority to act on behalf of the victim requests that the board transfer the offending student to another campus.

If there is no other campus in the district serving the grade level of the offending student, the offending student shall be transferred to a DAEP.

Process

Removals to a DAEP shall be made by the CBC.

Conference

When a student is removed from class for a DAEP offense, the CBC or appropriate administrator shall schedule a conference within three school days with the student's parent, the student, and, in the case of a teacher removal, the teacher.

At the conference, the CBC or appropriate administrator shall provide the student:

- Information, orally or in writing, of the reasons for the removal;
- An explanation of the basis for the removal; and
- An opportunity to respond to the reasons for the removal.

Following valid attempts to require attendance, the district may hold the conference and make a placement decision regardless of whether the student or the student's parents attend the conference.

Consideration of Mitigating Factors

In deciding whether to place a student in a DAEP, regardless of whether the action is mandatory or discretionary, the CBC shall take into consideration:

6. Self-defense (see **glossary**),
7. Intent or lack of intent at the time the student engaged in the conduct,
8. The student's disciplinary history,
9. A disability that substantially impairs the student's capacity to appreciate the wrongfulness of the student's conduct,
10. A student's status in the conservatorship of the Department of Family and Protective Services (foster care), or
11. A student's status as homeless.

Placement Order

After the conference, if the student is placed in a DAEP, the CBC shall write a placement order. A copy of the DAEP placement order and information for the parent or person standing in parental relation to the student regarding the process for requesting a full individual and initial evaluation of the student for purposes of special education services shall be sent to the student and the student's parent.

Not later than the second business day after the conference, the board's designee shall deliver to the juvenile court a copy of the placement order and all information required by Section 52.04 of the Family Code.

If the student is placed in a DAEP and the length of placement is inconsistent with the guidelines included in this Code of Conduct, the placement order shall give notice of the inconsistency.

DAEP at Capacity

If a DAEP is at capacity at the time the CBC is deciding placement for conduct related to marijuana, THC, an e-cigarette, alcohol, or an abusable volatile chemical, the student shall be placed in ISS then transferred to a DAEP for the remainder of the period if space becomes available before the expiration of the period of the placement.

If a DAEP is at capacity at the time the CBC is deciding placement for a student who engaged in violent conduct, a student placed in a DAEP for conduct related to marijuana, THC, an e-cigarette, alcohol, or an abusable volatile chemical may be placed in ISS to make a position in the DAEP available for the student who engaged in violent conduct. If a position becomes available in a DAEP before the expiration of the period of the placement for the student removed, the student shall be returned to a DAEP for the remainder of the period.

Coursework Notice

The parent or guardian of a student placed in DAEP shall be given written notice of the student's opportunity to complete, at no cost to the student, a foundation curriculum course in which the student was enrolled at the time of removal and which is required for graduation. The notice shall include information regarding all methods available for completing the coursework.

Length of Placement

The CBC shall determine the duration of a student's placement in a DAEP.

The duration of a student's placement shall be determined case by case based on the seriousness of the offense, the student's age and grade level, the frequency of misconduct, the student's attitude, and statutory requirements.

The maximum period of DAEP placement shall be one calendar year, except as provided below.

Unless otherwise specified in the placement order, days absent from a DAEP shall not count toward fulfilling the total number of days required in a student's DAEP placement order.

The district shall administer the required pre- and post-assessments for students assigned to DAEP for a period of 90 days or longer in accordance with established district administrative procedures for administering other diagnostic or benchmark assessments.

Exceeds One Year

Placement in a DAEP may exceed one year when a review by the district determines that the student is a threat to the safety of other students or to district employees.

The statutory limitations on the length of a DAEP placement do not apply to a placement resulting from the board's decision to place a student who engaged in the sexual assault of another student so that the students are not assigned to the same campus.

Exceeds School Year

Students who are in a DAEP placement at the end of one school year may be required to continue that placement at the start of the next school year to complete the assigned term of placement.

For placement in a DAEP to extend beyond the end of the school year, the CBC or the board's designee must determine that:

1. The student's presence in the regular classroom or campus presents a danger of physical harm to the student or others, or
2. The student has engaged in serious or persistent misbehavior (see **glossary**) that violates the district's Code of Conduct.

Exceeds 60 Days

For placement in a DAEP to extend beyond 60 days or the end of the next grading period, whichever is sooner, a student's parent shall be given notice and the opportunity to participate in a proceeding before the board or the board's designee.

Appeals

Questions from parents regarding disciplinary measures should be addressed to the campus administration.

Student or parent appeals regarding a student's placement in a DAEP should be addressed in accordance with policy FNG(LOCAL). A copy of this policy may be obtained from the principal's office, the CBC's office, the central administration office, or through Policy Online® at the following address: http://www.ecisd.us.

Appeals shall begin at Level One with the principal or CBC.

The district shall not delay disciplinary consequences pending the outcome of an appeal. The decision to place a student in a DAEP cannot be appealed beyond the board.

Restrictions During Placement

State law prohibits a student placed in a DAEP for reasons specified in state law from attending or participating in school-sponsored or school-related extracurricular activities.

The district shall provide transportation to students in a DAEP.

For seniors who are eligible to graduate and are assigned to a DAEP at the time of graduation, the last day of placement in the program shall be the last instructional day, and the student shall be allowed to participate in the graduation ceremony and related graduation activities unless otherwise specified in the DAEP placement order.

Placement Review

A student placed in a DAEP shall be provided a review of his or her status, including academic status, by the CBC or the board's designee at intervals not to exceed 120 days. In the case of a high school student, the student's progress toward graduation and the student's graduation plan shall also be reviewed. At the review, the student or the student's parent shall be given the opportunity to present arguments for the student's return to the regular classroom or campus. The student may not be returned to the classroom of a teacher who removed the student without that teacher's consent.

Additional Misconduct

If during the term of placement in a DAEP the student engages in additional misconduct for which placement in a DAEP or expulsion is required or permitted, additional proceedings may be conducted, and the CBC may enter an additional disciplinary order as a result of those proceedings.

Notice of Criminal Proceedings

When a student is placed in a DAEP for certain offenses, the office of the prosecuting attorney shall notify the district if:

1. Prosecution of a student's case was refused for lack of prosecutorial merit or insufficient evidence, and no formal proceedings, deferred adjudication (see **glossary**), or deferred prosecution will be initiated, or
2. The court or jury found a student not guilty or made a finding that the student did not engage in delinquent conduct or conduct indicating a need for supervision, and the case was dismissed with prejudice.

If a student was placed in a DAEP for such conduct, on receiving the notice from the prosecutor, the superintendent or designee shall review the student's placement and schedule a review with the student's parent not later than the third day after the superintendent or designee receives notice from the prosecutor. The student may not be returned to the regular classroom pending the review.

After reviewing the notice and receiving information from the student's parent, the superintendent or designee may continue the student's placement if there is reason to believe that the presence of the student in the regular classroom threatens the safety of other students or teachers.

The student or the student's parent may appeal the superintendent's decision to the board. The student may not be returned to the regular classroom pending the appeal. In the case of an appeal, the board shall, at the next scheduled meeting, review the notice from the prosecutor and receive information from the student, the student's parent, and the superintendent or designee, and confirm or reverse the decision of the superintendent or designee. The board shall make a record of the proceedings.

If the board confirms the decision of the superintendent or designee, the student and the student's parent may appeal to the Commissioner of Education. The student may not be returned to the regular classroom pending the appeal.

Withdrawal During Process

When a student violates the district's Code of Conduct in a way that requires or permits the student to be placed in a DAEP and the student withdraws from the district before a placement order is completed, the CBC may complete the proceedings and issue a placement order. If the student then re-enrolls in the district during the same or a subsequent school year, the district may enforce the order at that time, less any period of the placement that has been served by the student during enrollment in another district. If the CBC or the board fails to issue a placement order after the student withdraws, the next district in which the student enrolls may complete the proceedings and issue a placement order.

Newly Enrolled Students

The district shall continue the DAEP placement of a student who enrolls in the district and was assigned to a DAEP in an open-enrollment charter school or another district including a district in another state.

When a student enrolls in the district with a DAEP placement from a district in another state, the district has the right to place the student in DAEP to the same extent as any other newly enrolled student if the behavior committed is a reason for DAEP placement in the receiving district.

State law requires the district to reduce a placement imposed by a district in another state that exceeds one year so that the total placement does not exceed one year. After a review, however, the placement may be extended beyond a year if the district determines that the student is a threat to the safety of other students or employees or the extended placement is in the best interest of the student.

Emergency Placement Procedure

When an emergency placement is necessary because the student's behavior is so unruly, disruptive, or abusive that it seriously interferes with classroom or school operations, the student shall be given oral notice of the reason for the action. Not later than the tenth day after the date of the placement, the student shall be given the appropriate conference required for assignment to a DAEP.

Transition Services

In accordance with law and district procedures, campus staff shall provide transition services to a student returning to the regular classroom from an alternative education program, including a DAEP. See policy FOCA(LEGAL) for more information.

Placement and/or Expulsion for Certain Offenses

This section includes two categories of offenses for which the Education Code provides unique procedures and specific consequences.

Registered Sex Offenders

Upon receiving notification in accordance with state law that a student is currently required to register as a sex offender, the district must remove the student from the regular classroom and determine appropriate placement unless the court orders JJAEP placement.

If the student is under any form of court supervision, including probation, community supervision, or parole, the student shall be placed in either DAEP or JJAEP for at least one semester.

If the student is not under any form of court supervision, the student may be placed in DAEP or JJAEP for one semester or placed in a regular classroom. The student may not be placed in the regular classroom if the board or its designee determines that the student's presence:

1. Threatens the safety of other students or teachers,
2. Will be detrimental to the educational process, or
3. Is not in the best interests of the district's students.

Review Committee

At the end of the first semester of a student's placement in an alternative educational setting and before the beginning of each school year for which the student remains in an alternative placement, the district shall convene a committee, in accordance with state law, to review the student's placement. The committee shall recommend whether the student should return to the regular classroom or remain in the placement. Absent a special finding, the board or its designee must follow the committee's recommendation.

The placement review of a student with a disability who receives special education services must be made by the ARD committee.

Newly Enrolled Students

If a student enrolls in the district during a mandatory placement as a registered sex offender, the district may count any time already spent by the student in a placement or may require an additional semester in an alternative placement without conducting a review of the placement.

Appeal

A student or the student's parent may appeal the placement by requesting a conference between the board or its designee, the student, and the student's parent. The conference is limited to the factual question of whether the student is required to register as a sex offender. Any decision of the board or its designee under this section is final and may not be appealed.

Expulsion

In deciding whether to order expulsion, regardless of whether the action is mandatory or discretionary, the CBC shall take into consideration:

1. Self-defense (see **glossary**),
2. Intent or lack of intent at the time the student engaged in the conduct,
3. The student's disciplinary history,
4. A disability that substantially impairs the student's capacity to appreciate the wrongfulness of the student's conduct,
5. A student's status in the conservatorship of the Department of Family and Protective Services (foster care), or
6. A student's status as homeless.

Discretionary Expulsion: Misconduct That May Result in Expulsion

Some of the following types of misconduct may result in mandatory placement in a DAEP, whether or not a student is expelled. (See **DAEP Placement** on page 16.)

Any Location

A student **may** be expelled for:

- Engaging in bullying that encourages a student to die by suicide.
- Inciting violence against a student through group bullying.
- Releasing or threatening to release intimate visual material of a minor or of a student who is 18 years of age or older without the student's consent.
- Criminal mischief, if punishable as a felony.
- Breach of computer security. (See **glossary**.)
- Engaging in conduct relating to a false alarm or report (including a bomb threat) or a terroristic threat involving a public school.

At School, Within 300 Feet, or at a School Event

A student **may** be expelled for committing any of the following offenses on or within 300 feet of school property, as measured from any point on the school's real property boundary line, or while attending a school-sponsored or school-related activity on or off school property:

- Selling, giving, or delivering to another person, or possessing, using, or being under the influence of any amount of marijuana, a controlled substance, or a dangerous drug, unless the conduct is punishable as a felony. A student with a valid prescription for low-THC cannabis as authorized by Chapter 487 of the Health and Safety Code does not violate this provision. (See **glossary** for "under the influence.")
- Selling, giving, or delivering another person, or possessing, using, or being under the influence of alcohol; or committing a serious act or offense while under the influence of alcohol.
- Engaging in conduct that contains the elements of an offense relating to abusable volatile chemicals.
- Engaging in deadly conduct. (See **glossary**.)

Within 300 Feet of School

A student may be expelled for possession of a firearm, as defined by federal law, while within 300 feet of school property, as measured from any point on the school's real property boundary line.

Property of Another District

A student **may** be expelled for committing any offense that is a state-mandated expellable offense if the offense is committed on the property of another district in Texas or while the student is attending a school-sponsored or school-related activity of a school in another district in Texas.

While in a DAEP

A student may be expelled for engaging in documented serious misbehavior that violates the district's Code of Conduct, despite documented behavioral interventions while placed in a DAEP. For purposes of discretionary expulsion from a DAEP, serious misbehavior means:

1. Deliberate violent behavior that poses a direct threat to the health or safety of others;
2. Extortion, meaning the gaining of money or other property by force or threat;
3. Conduct that constitutes coercion, as defined by Penal Code 1.07; or
4. Conduct that constitutes the offense of:
    a. Public lewdness under Penal Code 21.07;
    b. Indecent exposure under Penal Code 21.08;
    c. Criminal mischief under Penal Code 28.03;
    d. Hazing under Education Code 37.152; or
    e. Harassment under Penal Code 42.07(a)(1) of a student or district employee.

Mandatory Expulsion: Misconduct That Requires Expulsion

A student **must** be expelled under federal or state law for any of the following offenses that occur or off school property on:

Under Federal Law

- Bringing to school or possessing at school, including any setting that is under the district's control or supervision for the purpose of a school activity, a firearm, as defined by federal law. (See **glossary**.)

Note*:* Mandatory expulsion under the federal Gun Free Schools Act does not apply to a firearm that is lawfully stored inside a locked vehicle or to firearms used in activities approved and authorized by the district when the district has adopted appropriate safeguards to ensure student safety.

Under the Penal Code

- Unlawfully carrying on or about the student's person the following, in the manner prohibited by Penal Code 46.02:
    - A handgun, defined by state law as any firearm designed, made, or adapted to be used with one hand. (See **glossary**.) *Note*: A student may not be expelled solely on the basis of the student's use, exhibition, or possession of a firearm that occurs at an approved target range facility that is not located on a school campus; while participating in or preparing for a school-sponsored, shooting sports competition or a shooting sports educational activity that is sponsored or supported by the Parks and Wildlife Department; or a shooting sports sanctioning organization working with the department. [See policy FNCG(LEGAL).]
    - A location-restricted knife, as defined by state law. (See **glossary**.)
- Possessing, manufacturing, transporting, repairing, or selling a prohibited weapon, as defined in state law. (See **glossary**.)
- Engages in conduct that contains the elements of the offense of exhibiting, using, or threatening to exhibit or use a firearm under Education Code 37.125.
- Behaving in a manner that contains elements of the following offenses under the Penal Code:
    - Aggravated assault, sexual assault, or aggravated sexual assault.
    - Arson. (See **glossary**.)
    - Murder, capital murder, or criminal attempt to commit murder or capital murder.
    - Indecency with a child.
    - Kidnapping or aggravated kidnapping.
    - Burglary, robbery, or aggravated robbery.
    - Manslaughter.
    - Criminally negligent homicide.
    - Continuous sexual abuse of a young child or disabled individual.
    - Behavior punishable as a felony that involves selling, giving, or delivering to another person or possessing, using, or being under the influence of a controlled substance or a dangerous drug.
    - Engaging in conduct that contains elements of assault against a school employee or volunteer.

Under Age Ten

When a student under the age of ten engages in behavior that is expellable behavior, the student shall not be expelled, but shall be placed in a DAEP. A student under age six shall not be placed in a DAEP unless the student commits a federal firearm offense.

Virtual Expulsion Program

In some circumstances, a student may be place in a virtual expulsion program.

- The school must ensure students in the program have the necessary technology and internet and must provide it if needed.
- The virtual program must, as much as possible, meet the same requirements as an in-person disciplinary alternative education program (DAEP).
- The students' placement must be reviewed every 45 school days.
- If an in-person spot becomes available, the school should plan the student's return to in-person learning.
- If continued virtual placement is appropriate, the school must document the decision.

Consideration of Virtual Education as Alternative to Expulsion

Before a school district may expel a student, the district must consider the appropriateness and feasibility of, as an alternative to expulsion, enrolling the student in a full-time hybrid program, full-time virtual campus. This requirement does not apply to a student expelled under Education Code 37.0081 or 37.007 (a),(d), or (e).

Process

If a student is believed to have committed an expellable offense, the CBC or other appropriate administrator shall schedule a hearing within a reasonable time. The student's parent shall be invited in writing to attend the hearing.

Until a hearing can be held, the CBC or other administrator may place the student in:

- Another appropriate classroom.
- ISS.
- Out-of-school suspension.
- DAEP.

Hearing

A student facing expulsion shall be given a hearing with appropriate due process. The student is entitled to:

1. Representation by the student's parent or another adult who can provide guidance to the student and who is not an employee of the district,
2. An opportunity to testify and to present evidence and witnesses in the student's defense, and
3. An opportunity to question the witnesses called by the district at the hearing.

After providing notice to the student and parent of the hearing, the district may hold the hearing regardless of whether the student or the student's parent attends.

The board of trustees delegates to the superintendent or superintendents designee authority to conduct hearings and expel students.

Board Review of Expulsion

After the due process hearing, the expelled student may request that the board review the expulsion decisions. The student or parent must submit a written request to the superintendent within seven days after receipt of the

written decision. The superintendent must provide the student or parent written notice of the date, time, and place of the meeting at which the board will review the decision.

The board shall review the record of the expulsion hearing in a closed meeting unless the parent requests in writing that the matter be held in an open meeting. The board may also hear a statement from the student or parent and from the board's designee.

The board shall consider and base its decision on evidence reflected in the record and any statements made by the parties at the review. The board shall make and communicate its decision orally at the conclusion of the presentation. Consequences shall not be deferred pending the outcome of the hearing.

Expulsion Order

Before ordering the expulsion, the board or CBC shall take into consideration:

1. Self-defense (see **glossary**),
2. Intent or lack of intent at the time the student engaged in the conduct,
3. The student's disciplinary history,
4. A disability that substantially impairs the student's capacity to appreciate the wrongfulness of the student's conduct,
5. A student's status in the conservatorship of the Department of Family and Protective Services (foster care), or
6. A student's status as homeless.

If the student is expelled, the board or its designee shall deliver to the student and the student's parent a copy of the order expelling the student.

Not later than the second business day after the hearing, the superintendent's designee shall deliver to the juvenile court a copy of the expulsion order and the information required by Section 52.04 of the Family Code.

If the length of the expulsion is inconsistent with the guidelines included in the Code of Conduct, the expulsion order shall give notice of the inconsistency.

Length of Expulsion

The length of an expulsion shall be based on the seriousness of the offense, the student's age and grade level, the frequency of misbehavior, the student's attitude, and statutory requirements.

The duration of a student's expulsion shall be determined on a case-by-case basis. The maximum period of expulsion is one calendar year, except as provided below.

An expulsion may not exceed one year unless, after review, the district determines that:

1. The student is a threat to the safety of other students or to district employees, or
2. Extended expulsion is in the best interest of the student.

State and federal law require a student to be expelled from the regular classroom for a period of at least one calendar year for bringing a firearm, as defined by federal law, to school. However, the superintendent may modify the length of the expulsion on a case-by-case basis.

Students who commit offenses that require expulsion at the end of one school year may be expelled into the next school year to complete the term of expulsion.

Withdrawal During Process

When a student's conduct requires or permits expulsion from the district and the student withdraws from the district before the expulsion hearing takes place, the district may conduct the hearing after sending written notice to the parent and student.

If the student then re-enrolls in the district during the same or subsequent school year, the district may enforce the expulsion order at that time, less any expulsion period that has been served by the student during enrollment in another district.

If the CBC or the board fails to issue an expulsion order after the student withdraws, the next district in which the student enrolls may complete the proceedings.

Additional Misconduct

If during the expulsion, the student engages in additional conduct for which placement in a DAEP or expulsion is required or permitted, additional proceedings may be conducted, and the CBC or the board may issue an additional disciplinary order as a result of those proceedings.

Restrictions During Expulsion

Expelled students are prohibited from being on school grounds or attending school-sponsored or school-related activities during the period of expulsion.

No district academic credit shall be earned for work missed during the period of expulsion unless the student is enrolled in a JJAEP or another district-approved program.

Newly Enrolled Students

The district shall place a newly enrolled student expelled from another district or an open-enrollment charter school directly into a DAEP until the period of the expulsion is completed.

If a student expelled in another state enrolls in the district, the district may continue the expulsion under the terms of the expulsion order, may place the student in a DAEP for the period specified in the order, or may allow the student to attend regular classes if:

1. The out-of-state district provides the district with a copy of the expulsion order, and
2. The offense resulting in the expulsion is also an expellable offense in the district in which the student is enrolling.

If a student is expelled by a district in another state for a period that exceeds one year and the district continues the expulsion or places the student in a DAEP, the district shall reduce the period of the expulsion or DAEP placement so that the entire period does not exceed one year, unless after a review it is determined that:

1. The student is a threat to the safety of other students or district employees, or
2. Extended placement is in the best interest of the student.

Emergency Expulsion Procedures

When an emergency expulsion is necessary to protect persons or property from imminent harm, the student shall be given verbal notice of the reason for the action. Emergency expulsion may be ordered based on a single incident of behavior by the student. Within ten days after the date of the emergency expulsion, the student shall be given appropriate due process required for a student facing expulsion.

DAEP Placement of Expelled Students

The district may provide educational services to any expelled student in a DAEP; however, educational services in the DAEP must be provided if the student is less than ten years of age.

Transition Services

In accordance with law and district procedures, campus staff shall provide transition services for a student returning to the regular classroom from placement in an alternative education program, including a DAEP or JJAEP. See policies FOCA(LEGAL) and FODA(LEGAL) for more information.

Certain Felonies

Regardless of whether DAEP placement or expulsion is required or permitted by one of the reasons in the DAEP Placement or Expulsion sections, in accordance with Education Code 37.0081, a student may be expelled and placed in either DAEP or JJAEP if the board or CBC makes certain findings and the following circumstances exist in relation to aggravated robbery or a felony offense under Title 5 [see Glossary] of the Penal Code. The student must have:

- Received deferred prosecution for conduct defined as aggravated robbery or a Title 5 felony offense;
- Been found by a court or jury to have engaged in delinquent conduct for conduct defined as aggravated robbery or a Title 5 felony offense;
- Been charged with engaging in conduct defined as aggravated robbery or a Title 5 felony offense;
- Been referred to a juvenile court for allegedly engaging in delinquent conduct for conduct defined as aggravated robber or a Title 5 felony offense.
- Received probation or deferred adjudication or have been arrested for, charged with, or convicted of aggravated robbery or a Title 5 felony offense.

The district may expel the student and order placement under these circumstances regardless of:

1. The district on which the student's conduct occurred
2. The location at which the conduct occurred;
3. Whether the conduct occurred while
4. Whether the student has successfully completed any court disposition requirements imposed in connection with the conduct.

Hearing and Required Findings

The student must first have a hearing before the board or its designee, who must determine that in addition to the circumstances above that allow for the expulsion, the student's, presence in the regular classroom:

1. Threatens the safety of other students or teachers;
2. Will be detrimental to the educational process; or
3. Is not in the best interest of the district's students.

Any decision of the board or the board's designee under this section is final and may not be appealed.

Length of Placement

1. The student graduates from high school;
2. The charges are dismissed or reduced to a misdemeanor offense; or
3. The student completes the term of the placement or is assigned to another program.

Placement Review

A student placed in a DAEP or JJAEP under this section is entitled to a review of his or her status, including academic status, by the CBC or board's designee at intervals not to exceed 120 days. In the case of a high school student, the student's progress toward graduation and the student's graduation plan shall also be reviewed. At the review, the student or the student's parent shall have the opportunity to present arguments for the student's return to the regular classroom or campus.

Newly Enrolled Students

A student who enrolls in the district before completing a placement under this section from another school district must complete the term of the placement.

Glossary

Abuse is improper or excessive use.

Aggravated robbery is defined in part by Penal Code 29.03(a) as when a person commits robbery and:

4. Causes serious bodily injury to another;
5. Uses or exhibits a deadly weapon; or
6. Causes bodily injury to another person or threatens or places another person in fear of imminent bodily injury or death, if the other person is:
    a. 65 years of age or older, or
    b. A disabled person.

Antisemitism is defined by Government Code section 448.001 as a certain perception of Jews that may be expressed as hatred toward Jews. The term includes rhetorical and physical acts of antisemitism directed toward Jewish or non-Jewish individuals or their property or toward Jewish community institutions and religious facilities. Examples of antisemitism are included with the International Holocaust Remembrance Alliance's "Working Definition of Antisemitism" adopted on May 26, 2016.

Armor-piercing ammunition is defined by Penal Code 46.01 as handgun ammunition used in pistols and revolvers and designed primarily for the purpose of penetrating metal or body armor.

Arson is defined in part by Penal Code 28.02 as a crime that involves:

1. Starting a fire or causing an explosion with intent to destroy or damage:
    a. Any vegetation, fence, or structure on open-space land; or
    b. Any building, habitation, or vehicle:
        (1) Knowing that it is within the limits of an incorporated city or town,
        (2) Knowing that it is insured against damage or destruction,
        (3) Knowing that it is subject to a mortgage or other security interest,
        (4) Knowing that it is located on property belonging to another,
        (5) Knowing that it has located within it property belonging to another, or
        (6) When the person starting the fire is reckless about whether the burning or explosion will endanger the life of some individual or the safety of the property of another.
2. Recklessly starting a fire or causing an explosion while manufacturing or attempting to manufacture a controlled substance if the fire or explosion damages any building, habitation, or vehicle; or
3. Intentionally starting a fire or causing an explosion and in so doing:
    a. Recklessly damaging or destroying a building belonging to another, or
    b. Recklessly causing another person to suffer bodily injury or death.

Assault is defined in part by Penal Code 22.01 as intentionally, knowingly, or recklessly causing bodily injury to another; intentionally or knowingly threatening another with imminent bodily injury; or intentionally or knowingly causing physical contact with another that can reasonably be regarded as offensive or provocative.

Breach of computer security includes knowingly accessing a computer, computer network, or computer system without the effective consent of the owner as defined in Penal Code 33.02, if the conduct involves accessing a computer, computer network, or computer system owned by or operated on behalf of a school district and the student knowingly alters, damages, or deletes school district property or information or commits a breach of any other computer, computer network, or computer system.

Bullying is defined as a single significant act or a pattern of acts by one or more students directed at another student that exploits an imbalance of power and involves engaging in written or verbal expression, expression through electronic means, or physical conduct that:

1. Has the effect or will have the effect of physically harming a student, damaging a student's property, or placing a student in reasonable fear of harm to the student's person or damage to the student's property;
2. Is sufficiently severe, persistent, or pervasive enough that the action or threat creates an intimidating, threatening, or abusive educational environment for a student;

3. Materially and substantially disrupts the educational process or the orderly operation of a classroom or school; or
4. Infringes on the rights of the victim at school.

Bullying includes cyberbullying. (See below.) This state law on bullying prevention applies to:

1. Bullying that occurs on or is delivered to school property or to the site of a school-sponsored or school-related activity on or off school property;
2. Bullying that occurs on a publicly or privately owned school bus or vehicle being used for transportation of students to or from school or a school-sponsored or school-related activity; and
3. Cyberbullying that occurs off school property or outside of a school-sponsored or school-related activity if the cyberbullying interferes with a student's educational opportunities or substantially disrupts the orderly operation of a classroom, school, or school-sponsored or school-related activity.

Chemical dispensing device is defined by Penal Code 46.01 as a device designed, made, or adapted for the purpose of dispensing a substance capable of causing an adverse psychological or physiological effect on a human being. A small chemical dispenser sold commercially for personal protection is not in this category.

Club is defined by Penal Code 46.01 as an instrument, specially designed, made, or adapted for the purpose of inflicting serious bodily injury or death by striking a person with the instrument, and includes but is not limited to a blackjack, nightstick, mace, and tomahawk.

Controlled substance means a substance, including a drug, an adulterant, and a dilutant, listed in Schedules I through V or Penalty Group 1, 1-A, 1-B, 2, 2-A, 3, or 4 of the Texas Controlled Substances Act. The term includes the aggregate weight of any mixture, solution, or other substance containing a controlled substance. The term does not include hemp, as defined by Agriculture Code 121.001, or the tetrahydrocannabinols (THC) in hemp.

Criminal street gang is defined by Penal Code 71.01 as three or more persons having a common identifying sign or symbol or an identifiable leadership who continuously or regularly associate in the commission of criminal activities.

Cyberbullying is defined by Education Code 37.0832 as bullying that is done through the use of any electronic communication device, including through the use of a cellular or other type of telephone, a computer, a camera, electronic mail, instant messaging, text messaging, a social media application, an internet website, or any other internet-based communication tool.

Dangerous drug is defined by Health and Safety Code 483.001 as a device or a drug that is unsafe for self-medication and that is not included in Schedules I through V or Penalty Groups 1 through 4 of the Texas Controlled Substances Act. The term includes a device or drug that federal law prohibits dispensing without prescription or restricts to use by or on the order of a licensed veterinarian.

Dating violence occurs when a person in a current or past dating relationship uses physical, sexual, verbal, or emotional abuse to harm, threaten, intimidate, or control another person in the relationship. Dating violence also occurs when a person commits these acts against a person in a marriage or dating relationship with the individual who is or was once in a marriage or dating relationship with the person committing the offense, as defined by Section 71.0021 of the Family Code.

Deadly conduct under Penal Code 22.05 occurs when a person recklessly engages in conduct that places another in imminent danger of serious bodily injury, such as knowingly discharging a firearm in the direction of an individual, habitation, building, or vehicle.

Deferred adjudication is an alternative to seeking a conviction in court that may be offered to a juvenile for delinquent conduct or conduct indicating a need for supervision.

Deferred prosecution may be offered to a juvenile as an alternative to seeking a conviction in court for delinquent conduct or conduct indicating a need for supervision.

Delinquent conduct is conduct that violates either state or federal law and is punishable by imprisonment or confinement in jail. It includes conduct that violates certain juvenile court orders, including probation orders, but does not include violations of traffic laws.

Discretionary means that something is left to or regulated by a local decision maker.

E-cigarette means an electronic cigarette or any other device that simulates smoking by using a mechanical heating element, battery, or electronic circuit to deliver nicotine or other substances to the individual inhaling from the device or a consumable liquid solution or other material aerosolized or vaporized during the use of an electronic cigarette or other device described by this provision. The term includes any device that is manufactured, distributed, or sold as an e-cigarette, e-cigar, or e-pipe or under another product name or description and a component, part, or accessory for the device, regardless of whether the component, part, or accessory is sold separately from the device.

Explosive weapon is defined by Penal Code 46.01 as any explosive or incendiary bomb, grenade, rocket, or mine and its delivery mechanism that is designed, made, or adapted for the purpose of inflicting serious bodily injury, death, or substantial property damage, or for the principal purpose of causing such a loud report as to cause undue public alarm or terror.

False alarm or report under Penal Code 42.06 occurs when a person knowingly initiates, communicates, or circulates a report of a present, past, or future bombing, fire, offense, or other emergency that he or she knows is false or baseless and that would ordinarily:

1. Cause action by an official or volunteer agency organized to deal with emergencies;
2. Place a person in fear of imminent serious bodily injury; or
3. Prevent or interrupt the occupation of a building, room, or place of assembly.

Firearm is defined by federal law (18 U.S.C. 921(a)) as:

1. Any weapon (including a starter gun) that will, is designed to, or may readily be converted to expel a projectile by the action of an explosive;
2. The frame or receiver of any such weapon;
3. Any firearm muffler or firearm silencer, defined as any device for silencing, muffling, or diminishing the report of a portable firearm; or
4. Any destructive device, such as any explosive, incendiary or poison gas bomb, or grenade.

Such term does not include an antique firearm.

Graffiti includes markings with paint, an indelible pen or marker, or an etching or engraving device on tangible property without the effective consent of the owner. The markings may include inscriptions, slogans, drawings, or paintings.

Handgun is defined by Penal Code 46.01 as any firearm that is designed, made, or adapted to be fired with one hand.

Harassment includes:

1. Conduct that meets the definition established in district policies DIA(LOCAL) and FFH(LOCAL);
2. Conduct that threatens to cause harm or bodily injury to another person, including a district student, employee, board member, or volunteer; is sexually intimidating; causes physical damage to the property of another student; subjects another student to physical confinement or restraint; or maliciously and substantially harms another student's physical or emotional health or safety, as defined in Education Code 37.001(b)(2); or
3. Conduct that is punishable as a crime under Penal Code 42.07, including the following types of conduct if carried out with the intent to harass, annoy, alarm, abuse, torment, or embarrass another:
    a. Initiating communication and, in the course of the communication, making a comment, request, suggestion, or proposal that is obscene, as defined by law;
    b. Threatening, in a manner reasonably likely to alarm the person receiving the threat, to inflict bodily injury on the person or to commit a felony against the person, a member of the person's family or household, or the person's property;

c. Conveying, in a manner reasonably likely to alarm the person receiving the report, a false report, which is known by the conveyor to be false, that another person has suffered death or serious bodily injury;
d. Causing the telephone of another to ring repeatedly or making repeated telephone communications anonymously or in a manner reasonably likely to harass, annoy, alarm, abuse, torment, embarrass, or offend another;
e. Making a telephone call and intentionally failing to hang up or disengage the connection;
f. Knowingly permitting a telephone under the person's control to be used by another to commit an offense under this section;
g. Sending repeated electronic communications in a manner reasonably likely to harass, annoy, alarm, abuse, torment, embarrass, or offend another;
h. Publishing on an internet website, including a social media platform, repeated electronic communications in a manner reasonably likely to cause emotional distress, abuse, or torment to another person, unless the communications are made in connection with a matter of public concern, as defined by law; or
i. Making obscene, intimidating, or threatening telephone calls or other electronic communications from a temporary or disposable telephone number provided by an internet application or other technological means.

Hazing is defined by Education Code 37.151 as an intentional, knowing, or reckless act, on or off campus, by one person alone or acting with others, directed against a student for the purpose of pledging, initiation into, affiliation with, holding office in, or maintaining membership in a student organization if the act meets the elements in Education Code 37.151, including:

1. Any type of physical brutality;
2. An activity that subjects the student to an unreasonable risk of harm or that adversely affects the student's mental or physical health, such as sleep deprivation, exposure to the elements, confinement to small spaces, calisthenics, or consumption of food, liquids, drugs, or other substances;
3. An activity that induces, causes, or requires the student to perform a duty or task that violates the Penal Code; or
4. Coercing a student to consume a drug or alcoholic beverage in an amount that would lead a reasonable person to believe the student is intoxicated. **Hit list** is defined in Education Code 37.001(b)(3) as a list of people targeted to be harmed, using a firearm, a knife, or any other object to be used with intent to cause bodily harm.

Improvised explosive device is defined by Penal Code 46.01 as a completed and operational bomb designed to cause serious bodily injury, death, or substantial property damage that is fabricated in an improvised manner using nonmilitary components.

Indecent exposure is defined by Penal Code 21.08 as an offense that occurs when a person exposes the person's anus or any part of the person's genitals with intent to arouse or gratify the sexual desire of any person and is reckless about whether another is present who will be offended or alarmed by the act.

Intimate visual material is defined by Civil Practices and Remedies Code 98B.001 and Penal Code 21.16 as visual material that depicts a person with the person's intimate parts exposed or engaged in sexual conduct. "Visual material" means any film, photograph, video tape, negative, or slide of any photographic reproduction or any other physical medium that allows an image to be displayed on a computer or other video screen and any image transmitted to a computer or other video screen.

Location-restricted knife is defined by Penal Code 46.01 as a knife with a blade over five and one-half inches.

Knuckles means any instrument consisting of finger rings or guards made of a hard substance and designed or adapted for inflicting serious bodily injury or death by striking a person with a fist enclosed in the knuckles.

Look-alike weapon means an item that resembles a weapon but is not intended to be used to cause serious bodily injury.

Machine gun as defined by Penal Code 46.01 is any firearm that is capable of shooting more than two shots automatically, without manual reloading, by a single function of the trigger.

Mandatory means that something is obligatory or required because of an authority.

Paraphernalia are devices that can be used for inhaling, ingesting, injecting, or otherwise introducing a controlled substance into a human body.

Personal Communication Device means a telephone, cell phone such as a smartphone, flip phone, tablet, smartwatch, radio device, paging, device, or any other electronic device capable of telecommunication or digital communication.

Possession means to have an item on one's person or in one's personal property, including, but not limited to:

1. Clothing, purse, or backpack;
2. A private vehicle used for transportation to or from school or school-related activities, including, but not limited to, an automobile, truck, motorcycle, or bicycle;
3. Personal communication devices or electronic devices; or
4. Any school property used by the student, including, but not limited to, a locker or desk.

Prohibited weapon under Penal Code 46.05(a) means:

1. The following items, unless registered with the U.S. Bureau of Alcohol, Tobacco, Firearms, and Explosives or otherwise not subject to that registration requirement or unless the item is classified as a curio or relic by the U.S. Department of Justice:
    a. An explosive weapon;
    b. A machine gun;
2. Armor-piercing ammunition;
3. A chemical dispensing device;
4. A zip gun;
5. A tire deflation device; or
6. An improvised explosive device.

Public Lewdness is defined by Penal Code 21.07 as an offense that occurs when a person knowingly engages in an act of sexual intercourse, deviate sexual intercourse, or sexual contact in a public place or, if not in a public place, when the person is reckless about whether another is present who will be offended or alarmed by the act.

Public school fraternity, sorority, secret society, or gang means an organization composed wholly or in part of students that seeks to perpetuate itself by taking additional members from the students enrolled in school based on a decision of its membership rather than on the free choice of a qualified student. Educational organizations listed in Education Code 37.121(d) are excepted from this definition.

Reasonable belief is that which an ordinary person of average intelligence and sound mind would believe. Chapter 37 requires certain disciplinary decisions when the superintendent or designee has a reasonable belief that a student engaged in conduct punishable as a felony offense. In forming such a reasonable belief, the superintendent or designee may use all available information and must consider the information furnished in the notice of a student's arrest under Code of Criminal Procedure Article 15.27.

Self-defense is the use of force against another to the degree a person reasonably believes is immediately necessary to protect himself or herself.

Serious misbehavior means:

1. Deliberate violent behavior that poses a direct threat to the health or safety of others;
1. Extortion, meaning the gaining of money or other property by force or threat;
2. Conduct that constitutes coercion, as defined by Section 1.07, Penal Code; or
3. Conduct that constitutes the offense of:
    a. Public lewdness under Penal Code 21.07;
    b. Indecent exposure under Penal Code 21.08;
    c. Criminal mischief under Penal Code 28.03;
    d. Hazing under Education Code 37.152; or

e. Harassment under Penal Code 42.07(a)(1) of a student or district employee.

Serious or persistent misbehavior includes, but is not limited to:

- Behavior that is grounds for permissible expulsion or mandatory DAEP placement.
- Behavior identified by the district as grounds for discretionary DAEP placement.
- Actions or demonstrations that substantially disrupt or materially interfere with school activities.
- Refusal to attempt or complete schoolwork as assigned.
- Insubordination.
- Profanity, vulgar language, or obscene gestures.
- Leaving school grounds without permission.
- Falsification of records, passes, or other school-related documents.
- Refusal to accept discipline assigned by the teacher or principal.

Short-barrel firearm is defined by Penal Code 46.01 as a rifle with a barrel length of less than 16 inches or a shotgun with a barrel length of less than 18 inches, or any weapon made from a rifle or shotgun that, as altered, has an overall length of less than 26 inches.

Terroristic threat is defined by Penal Code 22.07 as a threat of violence to any person or property with intent to:

1. Cause a reaction of any type by an official or volunteer agency organized to deal with emergencies;
2. Place any person in fear of imminent serious bodily injury;
3. Prevent or interrupt the occupation or use of a building; room, place of assembly, or place to which the public has access; place of employment or occupation; aircraft, automobile, or other form of conveyance; or other public place;
4. Cause impairment or interruption of public communications; public transportation; public water, gas, or power supply; or other public service;
5. Place the public or a substantial group of the public in fear of serious bodily injury; or
6. Influence the conduct or activities of a branch or agency of the federal government, the state, or a political subdivision of the state (including the district).

Tire deflation device is defined in part by Penal Code 46.01 as a device, including a caltrop or spike strip, that, when driven over, impedes or stops the movement of a wheeled vehicle by puncturing one or more of the vehicle's tires.

Title 5 felonies are those crimes listed in Title 5 of the Penal Code that typically involve injury to a person and may include:

- Murder, manslaughter, or homicide under Sections 19.02–.05;
- Kidnapping under Section 20.03;
- Trafficking of persons under Section 20A.02;
- Smuggling or continuous smuggling of persons under Sections 20.05–.06;
- Assault under Section 22.01;
- Aggravated assault under Section 22.02;
- Sexual assault under Section 22.011;
- Aggravated sexual assault under Section 22.021;
- Unlawful restraint under Section 20.02;
- Continuous sexual abuse of a young child or disabled individual under Section 21.02;
- Bestiality under Section 21.09;
- Improper relationship between educator and student under Section 21.12;
- Voyeurism under Section 21.17;
- Indecency with a child under Section 21.11;
- Invasive visual recording under Section 21.15;
- Disclosure or promotion of intimate visual material under Section 21.16;
- Sexual coercion under Section 21.18;
- Injury to a child, an elderly person, or a disabled person of any age under Section 22.04;

- Abandoning or endangering a child under Section 22.041;
- Deadly conduct under Section 22.05;
- Terroristic threat under Section 22.07;
- Aiding a person to die by suicide under Section 22.08; and
- Tampering with a consumer product under Section 22.09.

Under the influence means lacking the normal use of mental or physical faculties. Impairment of a person's physical or mental faculties may be evidenced by a pattern of abnormal or erratic behavior, the presence of physical symptoms of drug or alcohol use, or by admission. A student "under the in-fluence" need not be legally intoxicated to trigger disciplinary action.

Use means voluntarily introducing into one's body, by any means, a prohibited substance.

Zip gun is defined by Penal Code 46.01 as a device or combination of devices that was not originally a firearm and is adapted to expel a projectile through a smooth-bore or rifled-bore barrel by using the energy generated by an explosion or burning substance.